

531 F.3d 448

United States Court of Appeals,
Sixth Circuit.

JOHN B.; Carrie G.; Joshua M.; [Meagan A.](#); Erica A., by their next friend, L.A.; Dustin P. by his next friend, Linda C.; Bayli S. by her next friend, C.W.; James D. by his next friend, Susan H.; Elsie H. by her next friend, Stacy Miller; Julian C. by his next friend, Shawn C.; Troy D. by his next friend, T.W.; Ray M. by his next friend, P.D.; Roscoe W. by his next friend, K.B.; William B. by his next friend, K.B.; Jacob R. by his next friend, Kim R.; Justin S. by his next friend, Diane P.; Estel W. by his next friend, E.D.; individually and on behalf of all others similarly situated, Plaintiffs–Appellees,

v.

M.D. GOETZ, Jr., Commissioner, Tennessee Department of Finance and Administration; Darin Gordon, [Assistant Commissioner, Bureau of TennCare](#); Viola P. Miller, Commissioner, [Tennessee Department of Children's Services](#), Defendants–Appellants.

No. 07–6373.

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Argued: March 20, 2008.

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Decided and Filed: June 26, 2008.

Synopsis

Background: In class action on behalf of children enrolled in state managed health system that replaced fee-for-service Medicaid program, plaintiffs sought to enforce Social Security Act (SSA) provisions requiring early and periodic screening, diagnosis, and treatment (EPSDT) services including medical, vision, hearing, and dental. After parties entered consent decree and remedial plan, the United States District Court for the Middle District of Tennessee at

Nashville, [William J. Haynes, Jr., J.](#),  [2007 WL 4014015](#), issued discovery orders directing plaintiffs' computer expert to inspect state's computer system and computers of 50 key custodians to determine whether electronically stored information (ESI) was impaired, compromised, or removed, authorizing forensic copies of their hard drives, and directing United States Marshal or deputies to accompany computer expert to ensure execution of order, and [2007 WL 4198266](#), denied stay. State petitioned for mandamus relief from discovery orders.

[Holding:] The Court of Appeals, [Rogers](#), Circuit Judge, held that mandamus relief was warranted for orders authorizing forensic imaging.

Petition granted in part.

[R. Guy Cole, Jr.](#), Circuit Judge, filed opinion, concurring.

West Headnotes (12)

[1] Mandamus **Nature and scope of remedy in general**

250 Mandamus

250I Nature and Grounds in General

250k1 Nature and scope of remedy in general

Mandamus relief is an extraordinary remedy, only infrequently utilized by the Court of Appeals.

[10 Cases that cite this headnote](#)

[2] Mandamus **Nature of questions involved**

250 Mandamus

250I Nature and Grounds in General

250k11 Nature of questions involved

Generally, mandamus from the Court of Appeals is reserved for questions of unusual importance necessary to the economical and efficient administration of justice or important issues of first impression.

[9 Cases that cite this headnote](#)

[3] Mandamus **Matters of discretion**

250 Mandamus

250II Subjects and Purposes of Relief

250II(A) Acts and Proceedings of Courts, Judges, and Judicial Officers

250k28 Matters of discretion

For a writ of mandamus to issue from the Court of Appeals, petitioners must demonstrate a clear abuse of discretion on the part of the district court.

[5 Cases that cite this headnote](#)

[4] Mandamus **Nature and scope of remedy in general**

250 Mandamus

250I Nature and Grounds in General

250k1 Nature and scope of remedy in general

To distinguish between district court errors that are merely reversible and not subject to mandamus, and those errors that are of such gravity that mandamus is proper, the Court of Appeals balances five factors by examining whether: (1) the party seeking the writ has no other adequate means, such as direct appeal, to attain the relief desired, (2) the petitioner will be damaged or prejudiced in a way not correctable on appeal, (3) the district court's order is clearly erroneous as a matter of law, (4) the district court's order is an oft-repeated error, or manifests a persistent disregard of the federal rules, and (5) the district court's order raises new and important problems, or issues of law of first impression.

[16 Cases that cite this headnote](#)

[5] Mandamus **Modification or vacation of judgment or order**

Mandamus  **Proceedings in civil actions in general**

250 Mandamus

250I Nature and Grounds in General

250k4 Remedy by Appeal or Writ of Error

250k4(4) Modification or vacation of judgment or order

250 Mandamus

250II Subjects and Purposes of Relief

250II(A) Acts and Proceedings of Courts, Judges, and Judicial Officers

250k32 Proceedings in civil actions in general

Discovery orders authorizing forensic imaging by plaintiffs' computer expert accompanied by United States Marshal or deputies, to ensure copying of all hard drives of state computers and privately owned computers of key custodians to determine whether electronically stored information (ESI) was impaired, compromised, or removed, warranted mandamus relief, in class action on behalf of children seeking to enforce Social Security Act (SSA) provisions requiring state-managed health system to provide early and periodic screening, diagnosis, and treatment (EPSDT) services; state had no other adequate means of relief by direct appeal of disclosure of confidential state or private information wholly unrelated to suit, state would suffer damage or prejudice by disruption of state business that could not be corrected on appeal, orders were clearly erroneous as matter of law due to significant privacy, confidentiality, federalism, and comity concerns that were not outweighed by alleged discovery misconduct, and orders raised important issues related to ESI and forensic imaging. Social Security Act, §§ 1902(a)(43), 1905(r),  42 U.S.C.A. §§ 1396a(a)(43),  1396d(r).

[35 Cases that cite this headnote](#)

[6] Federal Courts **Sanctions**

170B Federal Courts

170BXVII Courts of Appeals

170BXVII(C) Decisions Reviewable

170BXVII(C)2 Particular Decisions, Matters, or Questions as Reviewable

170Bk3329 Sanctions

(Formerly 170Bk594)

Generally, discovery orders authorizing forensic imaging and production of computer hard drives are not immediately appealable under the final judgment rule or the collateral order doctrine because a party can obtain effective review of the orders by failing to comply and perfecting an appeal should the district court impose sanctions or a contempt citation.

[17 Cases that cite this headnote](#)

[7] Federal Courts 🔑 Preliminary proceedings; depositions and discovery

170B Federal Courts

170BXVII Courts of Appeals

170BXVII(C) Decisions Reviewable

170BXVII(C)2 Particular Decisions, Matters, or Questions as Reviewable

170Bk3305 Preliminary proceedings; depositions and discovery

(Formerly 170Bk594)

Under the “*Perlman* exception,” a discovery order directed at a disinterested third party is treated as an immediately appealable final order because the third party presumably lacks a sufficient stake in the proceeding to risk contempt by refusing compliance.

2 Cases that cite this headnote

[8] Federal Courts 🔑 Depositions and discovery

170B Federal Courts

170BXVII Courts of Appeals

170BXVII(K) Scope and Extent of Review

170BXVII(K)2 Standard of Review

170Bk3576 Procedural Matters

170Bk3591 Depositions and discovery

(Formerly 170Bk820)

Generally, district courts maintain broad discretion in matters of discovery, but Court of Appeals will find an abuse of that discretion if left with a definite and firm conviction that the court below committed a clear error of judgment.

5 Cases that cite this headnote

[9] Federal Civil Procedure 🔑 Discovery and Production of Documents and Other Tangible Things

170A Federal Civil Procedure

170AX Depositions and Discovery

170AX(E) Discovery and Production of Documents and Other Tangible Things

170AX(E)1 In General

170Ak1551 In general

Generally, a party to civil litigation has a duty to preserve relevant information, including electronically stored information (ESI), when that party has notice that the evidence is relevant

to litigation or should have known that the evidence may be relevant to future litigation.

204 Cases that cite this headnote

[10] Federal Civil Procedure 🔑 Discovery and Production of Documents and Other Tangible Things**Federal Civil Procedure** 🔑 Failure to Comply; Sanctions

170A Federal Civil Procedure

170AX Depositions and Discovery

170AX(E) Discovery and Production of Documents and Other Tangible Things

170AX(E)1 In General

170Ak1551 In general

170A Federal Civil Procedure

170AX Depositions and Discovery

170AX(E) Discovery and Production of Documents and Other Tangible Things

170AX(E)5 Compliance; Failure to Comply

170Ak1636 Failure to Comply; Sanctions

170Ak1636.1 In general

It is the responsibility of the parties to ensure that relevant electronically stored information (ESI) is preserved, and when that duty is breached, a district court may exercise its authority to impose appropriate discovery sanctions. Fed.Rules Civ.Proc.Rule 37(b, e), 28 U.S.C.A.

75 Cases that cite this headnote

[11] Federal Civil Procedure 🔑 Discovery and Production of Documents and Other Tangible Things

170A Federal Civil Procedure

170AX Depositions and Discovery

170AX(E) Discovery and Production of Documents and Other Tangible Things

170AX(E)1 In General

170Ak1551 In general

Under the Sedona principles, because litigants are generally responsible for preserving relevant electronically stored information (ESI) on their own, forensic imaging and production of computer hard drives, as a means by which to preserve relevant electronic evidence, should be employed in discovery in a very limited set of circumstances when a real danger of evidence destruction exists, when there is a lack of any

other available remedy, and upon a showing that the preservation order is an appropriate exercise of the trial court's discretion.

[69 Cases that cite this headnote](#)

[12] Federal Civil Procedure **Particular Subject Matters**

[170A](#) Federal Civil Procedure

[170AX](#) Depositions and Discovery

[170AX\(E\)](#) Discovery and Production of Documents and Other Tangible Things

[170AX\(E\)3](#) Particular Subject Matters

[170Ak1581](#) In general

Mere skepticism that an opposing party has not produced all relevant information is not sufficient to warrant drastic electronic discovery measures.

[69 Cases that cite this headnote](#)

Attorneys and Law Firms

***450 ARGUED:** [Michael W. Kirk](#), Cooper & Kirk, Washington, D.C., for Appellants. [Michele M. Johnson](#), Tennessee Justice Center, Nashville, Tennessee, for Appellees. **ON BRIEF:** [Michael W. Kirk](#), [Charles J. Cooper](#), [Brian S. Koukouchos](#), [Nicole Jo Moss](#), [Derek L. Shaffer](#), Cooper & Kirk, Washington, D.C., [Linda A. Ross](#), Office of the Tennessee Attorney General, Nashville, Tennessee, [Ronald G. Harris](#), [Aubrey B. Harwell, Jr.](#), Neal & Harwell, Nashville, Tennessee, for Appellants. [Michele M. Johnson](#),

***451** [G. Gordon Bonnyman, Jr.](#), Tennessee Justice Center, Nashville, Tennessee, for Appellees. [William P. Marshall](#), Ohio Attorney General Office, Columbus, Ohio, [Michael A. Cox](#), Michigan Department of Attorney General, Lansing, Michigan, [Gregory D. Stumbo](#), Office of the Attorney General, Frankfort, Kentucky, [Sarah Somers](#), [Jane Perkins](#), National Health Law Program, Chapel Hill, North Carolina, [Elizabeth A. Alexander](#), [Christopher E. Coleman](#), Lieff, Cabraser, Heimann & Bernstein, Nashville, Tennessee, [Kelly M. Dermody](#), Allison S. Elgert, Lieff, Cabraser, Heimann & Bernstein, San Francisco, California, for Amici Curiae.

Before: [COLE](#), [GIBBONS](#), and [ROGERS](#), Circuit Judges.

[ROGERS](#), J., delivered the opinion of the court, in which [GIBBONS](#), J., joined. [COLE](#), J. (pp. 461–62), delivered a separate concurring opinion.

OPINION

[ROGERS](#), Circuit Judge.

State defendants seek mandamus relief from two discovery orders issued by the district court during the course of this class-action litigation. The district court issued the orders after a discovery dispute arose regarding defendants' duty to preserve and produce electronically stored information relevant to the litigation. In the first order, the district court directed plaintiffs' computer expert and a court-appointed monitor to inspect the state's computer system and the computers of 50 key custodians to ascertain whether any relevant information has been impaired, compromised, or removed. The second order denies reconsideration of the first order and directs that the first order be executed forthwith. Both orders allow plaintiffs' computer expert to make forensic copies of the hard drives of identified computers, including not only those at the work stations of the state's key custodians, but also any privately owned computers on which the custodians may have performed or received work relating to the TennCare program. The orders also direct the U.S. Marshal, or his designated deputies, to accompany plaintiffs' computer expert to ensure full execution of the orders. This court entered an emergency stay of implementation of the orders on December 7, 2007. For the reasons stated below, we now grant in part defendants' petition for mandamus.

I.

This case arises from class-action litigation related to Tennessee's TennCare program. In 1993, Tennessee obtained a waiver from the Secretary of Health and Human Services to replace its fee-for-service Medicaid program with a managed care system called TennCare. In 1998, the instant action was filed on behalf of a class of approximately 500,000 children enrolled in the TennCare program, seeking to enforce certain provisions of the Social Security Act. Title XIX of the Social Security Act requires state plans that accept federal funding, like TennCare, to provide Medicaid-eligible persons under the age of 21 with certain Early and Periodic Screening, Diagnosis and Treatment (EPSDT) services. See  [42 U.S.C.](#)

§§ 1396a(a)(43), § 1396d(r). These services include regular medical screening, vision, hearing, and dental services. § 1396d(r).

Almost immediately after the case was filed, the parties entered into a Consent Decree. The decree recognized a number of deficiencies in the TennCare program and set goals and time frames for compliance with federal law. Pursuant to the decree, the state retained an expert to evaluate EPSDT services for children. *452 After the expert submitted a report in late 1998, the parties submitted two proposed agreed-upon orders and entered into a remedial plan. The district court approved the orders in May 2000. Eventually, the state encountered difficulty implementing the remedial plan and moved to stay implementation of the plan and modify the agreed-upon orders. In response, plaintiffs moved to hold defendants in contempt for violating both the Consent Decree and the May 2000 orders.

In December 2001, the district court, with Judge Nixon then presiding, ruled on the motions after three weeks of hearings. The court noted that “[t]he record demonstrates that the Defendants have been, for the most part, well-intentioned and diligent in attempting to comply with both the Consent Decree and federal EPSDT requirements,” but expressed that “from the beginning, the State’s efforts have been hampered by institutional inefficiencies and fundamental problems associated with the TennCare system.” *John B. v. Menke*, 176 F.Supp.2d 786, 790, 791 (M.D.Tenn.2001). Ultimately, the district court concluded that the state had not established compliance with federal EPSDT requirements, and held in abeyance consideration of whether defendants were in contempt for violating the Consent Decree. *Id.* at 791, 800, 806–07. As a remedy, the district court appointed a special master to confer with the parties and to submit a plan to address the deficiencies in the TennCare program. *Id.* at 807–08.

In 2004, the Governor of Tennessee proposed TennCare reform to control the mounting costs of the program. On account of these reforms, the parties again began to dispute issues related to the state’s compliance with the Consent Decree. In June 2004, plaintiffs moved for an order to show cause why defendants should not be held in contempt for violating the decree. On October 22, 2004, the district court issued a second order finding the state noncompliant and instructing the special master to create a remedial plan.

On November 18, 2004, defendants moved for leave to take discovery on the ground that the court’s October 22, 2004 order and plan were the product of allegedly improper *ex parte* communications between the court and the special master.¹ Thereafter, the case was held in abeyance for a time. On December 13, 2005, the court, at the proposal of both plaintiffs and defendants, vacated its October 22, 2004 order and denied as moot defendants’ discovery requests. However, on December 21, 2005, defendants renewed their motion for discovery, contending that the vacatur of the October 22, 2004 order did not eliminate the potential prejudice resulting from the *ex parte* communications between the judge and the special master.

In response to defendants’ renewed motion for discovery, Judge Nixon recused himself from the case. In his order of recusal of February 3, 2006, Judge Nixon wrote that he recused himself “to remove any barrier—perceived or real—to the ultimate goal of increasing the State’s compliance with EPSDT requirements.” The case was then transferred to Judge Haynes, who had handled another branch of TennCare litigation. Judge Haynes held a status conference on February 10, 2006, to discuss outstanding issues with the parties’ counsel. After review of the record, Judge Haynes decided to retain the special master as a technical advisor *453 and appoint monitors to assist the parties and the court in identifying issues remaining in the case.

At the February 10, 2006 conference, defendants took the position that the state had achieved compliance with the Consent Decree. In response, plaintiffs propounded discovery requests in March 2006 seeking information and documents, including electronically stored information (“ESI”), relevant to the state’s compliance. Defendants responded on May 15, 2006, but converted responsive ESI to hard paper copies. Between May and August 2006, the parties disputed whether the state was required to produce ESI as opposed to hard copies, and also disputed whether the state was required to provide responsive documentation from managed care contractors (“MCCs”).² When the parties could not resolve these issues, plaintiffs filed a motion to compel discovery on October 13, 2006. Prior to the dispute over ESI production, defendants had produced massive amounts of information by hard paper copy.

On November 21, 2006, the district court granted the plaintiffs’ motion to compel in part. The court ordered defendants to provide responsive documents to plaintiffs in electronic format, subject to defendants’ right to “claw-back”

privileged documents. The court also ordered defendants to provide a written description of the technical specifications regarding the state's electronic data, and further provided that the parties were to create a protocol for production of electronic records. Because defendants conceded that some hard documents provided were produced in incomplete form, the court permitted the plaintiffs to obtain assurances on the completeness of discovery responses by requesting certification of all persons who were involved in searching the records and making discovery available on the state's behalf. The district court also ordered defendants to produce responsive documents in the possession of the MCCs.

On December 6, 2006, the district court held an “experts only” conference, where it directed the parties’ computer experts to confer to develop a protocol to address problems with electronic discovery. At the end of the conference, the parties’ experts announced a protocol for discovery and preservation of responsive ESI. The parties settled on electronic searches with keywords to be identified by the plaintiffs. The defendants were obliged to survey individuals identified as designated record custodians to ascertain whether those individuals had preserved relevant ESI.³ On January 14, 2007, the court entered an order that authorized defendants to use zip software instead of forensic methods to preserve ESI.⁴ The court also ordered defendants to file certifications from all record custodians as to whether any relevant information had been “removed” from their computers.

***454** In the ensuing weeks, the parties continued to dispute issues related to the production of ESI. The dispute culminated in the plaintiffs’ filing a renewal of their motion to compel discovery on March 8, 2007. The district court conducted a hearing on the motion in June 2007 and, on October 9, 2007 and October 10, 2007, issued a 187–page memorandum opinion and accompanying order granting the motion to compel. In the memorandum opinion, the district court concluded that, from its perspective, “the core of this ESI discovery controversy is the absence of any effective attempt by the Defendants to preserve and segregate relevant ESI, since the filing of this action in 1998.” The district court made several findings of fact, including the following:

- (1) only in March 2004 did defendants prepare a litigation hold memorandum for employees and MCCs in TennCare;
- (2) even if defendants distributed the March 17, 2004 litigation hold memorandum, it was not effectively implemented;⁵

(3) under the state's standard email system, emails older than 180 days automatically roll off the system unless archived;

(4) in some instances, state employees had not archived emails, and some employees left employment without preserving relevant documents;

(5) defendants did not tell the MCCs to preserve and produce responsive information until November 2006;

(6) the defendants’ survey of state record custodians did not comply with the January 14, 2007 order.

In its conclusions of law, the district court discussed the defendants’ duty to preserve ESI, and concluded that defendants had a duty to preserve such information from the beginning of the litigation. The court again noted that defendants did not create any meaningful litigation hold until March 17, 2004, and, even then, did not implement that litigation hold memorandum effectively. The court concluded that while officials and employees may have been reminded of the obligation to preserve responsive documents, they were left “to decide on their own what to retain without evidence of any written instruction or guidance from counsel on what is significant [or] material information in this complex action.” Finally, after noting that other courts have sanctioned litigants for failing to preserve ESI, the court reserved discussion of sanctions until “completion of the ESI discovery ordered by the Court.”

In its accompanying order of October 10, 2007, the district court directed defendants to provide complete responses to plaintiffs’ discovery requests for ESI with the agreed terms, for the designated custodians, and for the time period of June 1, 2004 to the present. The court ordered that the ESI include all metadata and all deleted information on any computer of any of the designated custodians. Additionally, the order provided that plaintiffs’ computer expert was to “inspect the Defendants’ computer system to assess whether any changes have been made to hinder the ESI production.” The court also ordered defendants to implement the March 17, 2004 litigation hold memorandum, to comply with the January 14, 2007 order, and to have designated custodians file certifications regarding whether any ESI had been removed from any computer. Following entry of the memorandum ***455** opinion and order, the court appointed Ronald J. Hedges, a former U.S. magistrate for the District of New Jersey, to serve as monitor for the ESI discovery.

Between October 15, 2007 and November 6, 2007, the parties filed a number of motions with the district court pertaining to electronic discovery. On October 15, 2007, defendants moved for reconsideration or clarification of the court's October 10, 2007 order, arguing that the court misunderstood the origin, purpose, and scope of the March 17, 2004 litigation hold memorandum. Defendants contended that the memorandum was directed to team leaders of the "TennCare Transformation Work Teams," which no longer exist. Defendants further argued that implementation of the March 17, 2004 memorandum would be redundant in light of other court-ordered ESI preservation procedures and that implementation of the memorandum "may very well be impossible."

On October 16, 2007 and October 17, 2007, plaintiffs filed a reply and supplemental reply to defendants' motion for reconsideration and clarification. Plaintiffs questioned defendants' "belated" contention regarding the narrow scope of the March 17, 2004 litigation hold memorandum. Plaintiffs also argued that defendants had taken inconsistent positions with respect to that memorandum. On October 24, 2007, defendants filed a second motion for reconsideration and clarification of the October 10, 2007 order. Among other things, defendants argued that the redaction of certain confidential information from the ESI ordered produced was not possible.

On October 30, 2007, plaintiffs requested an order imposing sanctions on defendants for failure to comply with the October 10, 2007 order. On November 6, 2007, plaintiffs also filed a motion to compel defendants to comply with the October 10, 2007 order. Plaintiffs claimed that "[d]efendants' defiance of the Order threatens to make it impossible to retrieve deleted discovery documents or assess the full extent of the State's destruction of electronically stored information."

In response to these motions, the district court issued the two discovery orders contested here. The court issued the first order on November 15, 2007, denying in part and granting in part defendants' first motion for reconsideration and denying in full defendants' second motion for reconsideration. While the court clarified that implementation of the March 17, 2004 litigation hold memorandum "is limited to a second review of the Defendants' paper documents for relevance to this action, production to the Plaintiffs and preservation," the court denied the remainder of defendants' requests. Like the

order of October 10, 2007, the November 15, 2007 order included an inspection provision. The court ordered plaintiffs' computer expert, Michael Tigh, and monitor Ronald Hedges to inspect the state's computer system and any computers of the 50 key custodians that contain relevant information to "assess whether any production of information required by the Consent Decree or previous Order[s] of the Court and the October 10, 2007 Order of the Court, has been impaired or compromised or removed." In addition, however, the November 15, 2007 order further provided that Tigh and Hedges

shall make forensic copies of any computer inspected to ensure the preservation of all existing electronically stored information ("ESI"). The United States Marshal or his designated deputies shall accompany Mr. Tigh, his computer expert and Mr. Hedges to ensure that this Order is fully executed. Mr. Hedges shall provide any necessary guidance to *456 the United States Marshal or his designee in executing this Order.

On November 16, 2007, defendants filed an emergency motion for clarification and/or reconsideration of the November 15, 2007 order. Defendants contended that the November 15 order was "extraordinarily intrusive and wholly unwarranted," and requested clarification from the district court that (1) any forensic copies will be taken into the custody of the United States Marshal and retained under seal pending further order of the court, (2) Tigh will ensure that any forensic examination be conducted in a manner that protects against disruption of regular state operations, and (3) the personal computers and homes of relevant officials are not within the scope of the order.

On November 19, 2007, the district court issued the second order. The court granted in part and denied in part defendants' emergency motion. The court stated that it had "entered an earlier Order [the January 14, 2007 order] predicated on the parties' experts' agreement to ensure preservation of ESI in a less intrusive manner (Docket Entry No 789, Order), but the Defendants breached that agreement and violated that Order." The court found defendants' suggestions that Tigh and Hedges would be disruptive in making forensic copies "at best disingenuous." The court then supplemented the November 15 order by providing that the U.S. Marshal will assume custody of the forensic images and that the court will maintain those images under seal pending further order. For privately-owned computers not located on state property, the court provided that "the U.S. Marshal or his designee shall arrange with state security personnel to go to the locations where

such computers are located and shall remove the computers to a state office where Mr. Tigh can image them under the Monitor's oversight." In all other respects, the court's order of November 15, 2007 was to be executed "forthwith."

Thereafter, defendants sought an emergency stay from the district court. The district court denied defendants' motion to stay on November 26, 2007. In denying the stay, the court issued a memorandum opinion further explaining its bases for the November 15 and 19 orders. The court explained that "[t]hese Orders were to protect against the Defendants' destruction of responsive information in light of the Defendants' persistent refusals to produce ESI in violation of the Court's orders." The court stated its belief that "[d]efendants' assertions on ESI discovery have been inconsistent and inaccurate" and that the methods of forensic copying presented by the plaintiffs' expert "are neither disruptive nor unnecessarily intrusive." The court expressed that no threat of irreparable harm existed to defendants because "the forensic imaging will occur under safeguards that address the expressed legitimate concerns that the Defendants had."

On November 21, 2007, defendants filed an emergency motion with this court to stay the November 15 and 19 orders. This court granted the stay on December 7, 2007. We now address whether defendants are entitled to relief from the district court's orders.

II.

Because certain aspects of the district court's November 15 and 19 orders constitute a demonstrable abuse of discretion, we grant defendants' petition for mandamus. We set aside those portions of the orders that call for the forensic imaging of all hard drives and other devices that contain relevant ESI, including those provisions that require the U.S. Marshal or his designee to accompany plaintiffs' computer *457 expert in the execution of the orders. We express no opinion with respect to other provisions in the orders that can be executed in a manner consistent with this opinion.

[1] [2] [3] It is axiomatic that "[m]andamus relief is an extraordinary remedy, only infrequently utilized by this court." *In re Perrigo Co.*, 128 F.3d 430, 435 (6th Cir.1997). Mandamus from this court is generally reserved for "questions of unusual importance necessary to the economical and efficient administration of justice"

or "important issues of first impression." *Id.* (quoting *EEOC v. K-Mart Corp.*, 694 F.2d 1055, 1061 (6th Cir.1982)). Indeed, for the writ to issue, petitioners must demonstrate a "clear abuse of discretion" on the part of the district court. *Mallard v. U.S. Dist. Court*, 490 U.S. 296, 309, 109 S.Ct. 1814, 104 L.Ed.2d 318 (1989); *In re King World Prods., Inc.*, 898 F.2d 56, 58 (6th Cir.1990).

[4] In an effort to distinguish between "errors that are merely reversible and not subject to mandamus, and those errors that are of such gravity that mandamus is proper," *In re Bendectin Prods. Liab. Litig.*, 749 F.2d 300, 303 n. 5 (6th Cir.1984) (citation omitted), this court balances five factors. We examine whether: (1) the party seeking the writ has no other adequate means, such as direct appeal, to attain the relief desired; (2) the petitioner will be damaged or prejudiced in a way not correctable on appeal; (3) the district court's order is clearly erroneous as a matter of law; (4) the district court's order is an oft-repeated error, or manifests a persistent disregard of the federal rules; and (5) the district court's order raises new and important problems, or issues of law of first impression. *In re Perrigo Co.*, 128 F.3d at 435 (citing *In re Chimenti*, 79 F.3d 534, 540 (6th Cir.1996)). These factors need not all be met, and some factors will often be balanced in opposition to each other. *Id.* Because the first, second, third, and fifth factors all weigh in favor of granting the writ, this case presents the type of extraordinary circumstance that warrants mandamus relief.

[5] At the outset, it is clear that defendants have no other adequate means to attain the relief they desire. This court has recognized that mandamus may be used as a "means of immediate appellate review of orders compelling the disclosure of documents and information claimed to be protected from disclosure by privilege or other interests in confidentiality." *United States ex rel. Pogue v. Diabetes Treatment Centers of Am., Inc.*, 444 F.3d 462, 472 (6th Cir.2006) (quoting *In re Perrigo Co.*, 128 F.3d at 436); see also *In re Ford Motor Co.*, 345 F.3d 1315, 1316 (11th Cir.2003) (noting that mandamus has been found appropriate where discovery orders implicate privacy rights). The orders at issue here compel the imaging and production of various state-owned and privately owned computers and electronic devices, and that media will almost certainly contain confidential state or private personal information that

is wholly unrelated to the TennCare litigation. Plaintiffs are correct that the discovery orders merely call for the imaging of the relevant media and that the district court has yet to determine how to proceed with respect to the information contained on that media. Nevertheless, the mere imaging of the media, in and of itself, raises privacy and confidentiality concerns. Duplication, by its very nature, increases the risk of improper exposure, whether purposeful or inadvertent. Further, counsel for plaintiffs conceded at oral argument that the information contained on the hard drives, including information not related to this litigation, must eventually be accessed to determine relevance.

***458** [6] [7] Moreover, discovery orders such as those at issue here are generally not immediately appealable under the final judgment rule or the collateral order doctrine. *See*  *United States ex rel. Pogue*, 444 F.3d at 471–72. This is so because a party “can obtain effective review of the district court order by failing to comply with the order and perfecting an appeal should the district court impose sanctions” or a contempt citation. *Dow Chem. Co. v. Taylor*, 519 F.2d 352, 355 (6th Cir.1975); *see also*  *Coleman v. Am. Red Cross*, 979 F.2d 1135, 1138 (6th Cir.1992). Although it is true that nothing prevents defendants in this case from disobeying the district court's orders and incurring a citation for contempt from which they could appeal, that approach would not afford defendants an *adequate* means to attain relief. The orders at issue here extend not only to computers and devices in the personal custody of defendants, but also to computers and devices in the custody of individuals that are not party to this litigation. As a consequence, defendants' refusal to obey the district court's orders will not preclude other individuals subject to the orders from complying. Because defendants, as state officers, maintain an interest in preventing the imaging of all computers and devices that contain confidential state information, an appeal from a contempt citation would not suffice to protect this interest.⁶ Accordingly, the first factor weighs in favor of mandamus relief.

With respect to the second mandamus factor, the record indicates that the district court's orders will cause defendants to suffer at least some damage or prejudice that cannot be corrected on appeal. Contrary to the district court's conclusion, these orders cannot be executed without some disruption of state business. The orders require the plaintiffs' computer expert, accompanied by a deputy U.S. Marshal, to enter state agencies, and the offices and homes of state officials, to make forensic copies of hard drives

and other devices that contain information related to the TennCare program. Leaving aside for the moment other federalism and comity concerns implicated by the orders, such procedures cannot be carried out without disrupting state business to some degree. And, as discussed, the imaging of these computers and devices will result in the duplication of confidential and private information unrelated to the TennCare litigation. This duplication implicates significant privacy and confidentiality interests—regardless of whether the imaged media are initially held under seal—and these interests cannot be fully protected *ex post*. For these reasons, the second mandamus factor weighs in favor of granting the writ.

[8] Most importantly, the district court's orders are clearly erroneous as a matter of law, thus meeting the third mandamus factor. Although district courts generally maintain broad discretion in matters of discovery, *see*  ***459** *Criss v. City of Kent*, 867 F.2d 259, 261 (6th Cir.1988), this court will find an abuse of that discretion if “left with ‘a definite and firm conviction that the court below committed a clear error of judgment.’ ”  *Bill Call Ford, Inc. v. Ford Motor Co.*, 48 F.3d 201, 209 (6th Cir.1995) (quoting  *Taylor v. U.S. Parole Comm'n*, 734 F.2d 1152, 1155 (6th Cir.1984)). The provisions in the orders that require the forensic imaging of all computers containing responsive ESI constitute an abuse of discretion.

[9] [10] As a general matter, it is beyond question that a party to civil litigation has a duty to preserve relevant information, including ESI, when that party “has notice that the evidence is relevant to litigation or ... should have known that the evidence may be relevant to future litigation.” *See*  *Fujitsu Ltd. v. Fed. Express Corp.*, 247 F.3d 423, 436 (2d Cir.2001); *see also*  *Zubulake v. UBS Warburg LLC*, 220 F.R.D. 212, 216–18 (S.D.N.Y.2003); The Sedona Principles: Best Practices, Recommendations & Principles for Addressing Electronic Document Production, Second Edition 11, 28 (The Sedona Conference Working Group Series, 2007), available at http://www.thesedonaconference.org/content/miscFiles/TSC_PRINCP_2nd_ed_607.pdf. It is the responsibility of the parties to ensure that relevant ESI is preserved, and when that duty is breached, a district court may exercise its authority to impose appropriate discovery sanctions. *See* Fed.R.Civ.P. 37(b), (e) LQ; The Sedona Principles, *supra*, at 70 (noting that sanctions should be considered only if the court finds a clear duty to preserve, a culpable failure to preserve and produce relevant ESI, and

a reasonable probability of material prejudice to the adverse party).

[11] There is less clarity, however, surrounding the question of a district court's authority to compel the forensic imaging and production of computer hard drives as a means by which to preserve relevant electronic evidence. Because litigants are generally responsible for preserving relevant information on their own, such procedures, if at all appropriate, should be employed in a very limited set of circumstances. *Cf.* The Sedona Principles, *supra*, at 33 (noting that, because all litigants are obligated to preserve relevant information in their possession, preservation orders generally must be premised on a demonstration that a real danger of evidence destruction exists, a lack of any other available remedy, and a showing that the preservation order is an appropriate exercise of the court's discretion). In this case, the district court ordered the forensic imaging predominantly for preservation purposes, explaining that "[t]hese Orders were to protect against the Defendants' destruction of responsive information in light of the Defendants' persistent refusals to produce ESI in violation of the Court's orders." In so doing, the district court committed a clear error in judgment.

[12] To be sure, forensic imaging is not uncommon in the course of civil discovery. See  *Balboa Threadworks, Inc. v. Stucky*, No. 05-1157-JTM-DWB, 2006 WL 763668, at *3 (D.Kan. March 24, 2006). A party may choose on its own to preserve information through forensic imaging, and district courts have, for various reasons, compelled the forensic imaging and production of opposing parties' computers. See, e.g.,  *Ameriwood Indus., Inc. v. Liberman*, No. 4:06CV524-DJS, 2006 WL 3825291, at *3-*6 (E.D.Mo. Dec.27, 2006), amended by 2007 WL 685623 (E.D.Mo. Feb.23, 2007);  *Cenveo Corp. v. Slater*, No. 06-CV-2632, 2007 WL 442387, at *1-*3 (E.D.Pa. Jan. 31, 2007);  *Frees, Inc. v. McMillian*, No. 05-1979, 2007 WL 184889, at *2 (W.D.La. Jan.22, 2007). Nevertheless, "[c]ourts have been cautious in requiring the mirror *460 imaging of computers where the request is extremely broad in nature and the connection between the computers and the claims in the lawsuit are unduly vague or unsubstantiated in nature."  *Balboa Threadworks*, 2006 WL 763668, at *3; see also *Balfour Beatty Rail, Inc. v. Vaccarello*, No. 3:06-CV-551-J-20MCR, 2007 WL 169628, at *2-*3 (M.D.Fla. Jan.18, 2007); *Diepenhorst v. City of Battle Creek*, No. 1:05-CV-734, 2006 WL 1851243, at *2-*4 (W.D. Mich. June 30, 2006). As the

Tenth Circuit has noted, albeit in an unpublished opinion, mere skepticism that an opposing party has not produced all relevant information is not sufficient to warrant drastic electronic discovery measures. See *McCurdy Group, LLC v. Am. Biomedical Group, Inc.*, 9 Fed.Appx. 822, 831 (10th Cir.2001). And the Sedona Principles urge general caution with respect to forensic imaging in civil discovery:

Civil litigation should not be approached as if information systems were crime scenes that justify forensic investigation at every opportunity to identify and preserve every detail.... [M]aking forensic image backups of computers is only the first step of an expensive, complex, and difficult process of data analysis that can divert litigation into side issues and satellite disputes involving the interpretation of potentially ambiguous forensic evidence.

The Sedona Principles, *supra*, at 34, 47. Thus, even if acceptable as a means to preserve electronic evidence, compelled forensic imaging is not appropriate in all cases, and courts must consider the significant interests implicated by forensic imaging before ordering such procedures. *Cf.* Fed.R.Civ.P. 34(a) Advisory Committee Note (2006) ("Courts should guard against undue intrusiveness resulting from inspecting or testing [electronic information] systems.").

The district court's compelled forensic imaging orders here fail to account properly for the significant privacy and confidentiality concerns present in this case. The district court has ordered plaintiffs' computer expert, accompanied by deputy U.S. Marshals, to enter state agencies, and the offices and homes of state officials, to make forensic images of hard drives and other devices, whether state-owned or privately owned, that contain information relevant to the instant litigation. As discussed, the media at issue will almost certainly contain confidential state or private personal information that is wholly unrelated to the litigation. Although the risk of improperly exposing such information, standing alone, might not preclude the employment of forensic imaging in all cases, the forensic imaging must be premised on an interest significant enough to override that risk. Such an interest is not demonstrably present in this case.

In its memorandum opinion of October 9, 2007, the district court explained that it issued the contested orders because it believed that defendants had failed to comply with various discovery orders and had not properly preserved relevant ESI throughout the course of this litigation. The record is not sufficient for this court to question those conclusions.

Even so, the record lacks evidence that defendants have intentionally destroyed relevant ESI in the past, and nothing in the record indicates that defendants are unwilling, or will refuse, to preserve and produce all relevant ESI in the future. Furthermore, forensic imaging is not the only available means by which the district court may respond to what it perceives to be discovery misconduct. The district court maintains authority to impose sanctions for discovery violations under the federal rules and pursuant to its inherent powers. Although we take no position regarding the propriety of sanctions in this case, such measures can be less intrusive than forensic imaging, and it is not apparent from the record that the district court has exercised its sanctioning authority. In fact, the district court expressly reserved discussion of sanctions in its October 9, 2007 opinion.

Aside from these privacy and confidentiality considerations, this case raises other obvious issues that counsel against the forensic imaging procedures ordered by the district court. As directives to state officials, these orders implicate federalism and comity considerations not present in typical civil litigation. Many of the computers subject to the orders are in the custody of high ranking state officials, and these computers will contain information related to confidential state matters. Further, the orders call for federal law enforcement officers to accompany plaintiffs' computer expert into state agencies—and, in some cases, the homes and offices of state officials—to effect the imaging. These procedures clearly do not take adequate account of federalism and comity considerations. If the use of federal law enforcement officers in matters of civil discovery is proper under some circumstances, those circumstances are not present here.

Certainly, state officials are not immune from complying with federal discovery mandates. However, where less intrusive means are available to address the perceived discovery violations of state parties, those means should be employed before resorting to inherently intrusive measures like forensic imaging, especially in cases where there is no evidence of purposeful or intentional destruction of relevant ESI. In light of the significant confidentiality and federalism concerns present in this case, the district court's forensic imaging orders constitute the type of “demonstrable abuse of discretion” that warrants mandamus relief. See *In re Wilkinson*, 137 F.3d 911, 914 (6th Cir.1998). The third mandamus factor thus weighs in favor of granting the writ.

Finally, the fifth mandamus factor weighs in favor of mandamus relief. This case involves important issues related to electronic discovery and forensic imaging. It also raises issues of federalism and comity that are not present in typical civil litigation. Addressing these issues now serves to provide district courts with guidance on such matters in the future.

For the foregoing reasons, we grant defendants' petition for mandamus and set aside those provisions of the district court's November 15, 2007 and November 19, 2007 orders that require the forensic imaging of state-owned and privately owned computers, including the provisions that require the U.S. Marshal or his designee to assist plaintiffs' computer expert in the execution of the orders. We recognize that the two contested orders also contain provisions related to the inspection of defendants' computer system. We decline to address those provisions to the extent that those provisions can be executed in a manner consistent with this opinion and without undue intrusion.

R. GUY COLE, JR., Circuit Judge, concurring.

I concur in the majority's thoughtful opinion and write separately only to recognize the district court's efforts to resolve this extensive and complex proceeding, which has been made more difficult by Defendants' repeated delays and the institutional inefficiencies that plague the TennCare system.

This case has been pending for ten years. Since spring 2006 alone, the district court has overseen a discovery process that has included nine hearings and conferences, generating a record that spans more than 1,700 transcript pages. After finding that Defendants repeatedly violated their agreements set forth in the Consent Decree, breached their agreement with Plaintiffs regarding the dates for ESI discovery, and ignored the district court's directions to provide ESI to Plaintiffs, the court understandably concluded that extraordinary action was necessary to preserve potentially relevant ESI. And I would ordinarily defer to the discretion of the district court, which has had the arduous job of managing this difficult case—along with another branch of TennCare litigation—for the past decade.

This case is unique, however, in that the court's order includes the forensic imaging of computers in the custody of individuals not party to this matter, and that the order may lead to confrontations between federal marshals and state officials. Under these circumstances, I agree with the majority that, without evidence that Defendants intentionally destroyed

relevant ESI in the past or that they are affirmatively unwilling to preserve all relevant ESI in the future, the district court should first employ less intrusive means to address the perceived discovery violations.

It is clear that the district court's focus has been to assist the parties in forging a solution that would ensure that Tennessee's children receive the benefits owed to them under the Consent Decree and federal law. Defendants' continual noncompliance and acrimonious litigation practice has unfortunately steered this case away from such goal, with the costs borne by the judicial system and the citizens of Tennessee. The district

court has thus far reserved the exercise of its wide discretion to hold Defendants in contempt or to impose monetary sanctions. If the district court resorts to such measures and Defendants nevertheless continue to disregard their undisputed duty to preserve and produce relevant ESI, the preservation order at issue in this case, in my view, may no longer be considered inappropriate.

All Citations

531 F.3d 448, Med & Med GD (CCH) P 302,450

Footnotes

- 1 The dispute regarding the *ex parte* communications involved the special master's submission of an August 2, 2004 status report to the court. The status report allegedly "repeatedly cited statements Defendants had made in confidence to the Special Master's Office pursuant to the compliance evaluation process."
- 2 MCCs deliver the health care services to the plaintiff class.
- 3 For discovery purposes, there are 50 key record custodians that were apparently proposed by plaintiffs and accepted by defendants. The state also provided a list of over 160 designated record custodians (of which the 50 key custodians are part) whose files were reviewed for the purpose of responding to discovery requests.
- 4 Prior to the January 14, 2007 order, the district court entered an order at a December 20, 2006 status conference that instructed defendants to "make a forensic copy of the current 'My Documents' or equivalent folder from the local machines of all designated custodians." In response, the state raised questions about the method of preservation of responsive ESI and, based on the consensus of the parties, the court allowed defendants to use zip software rather than forensic copying to preserve responsive ESI.
- 5 On March 17, 2004, the state issued a memorandum to work teams established by the Governor to reform the TennCare program. This memorandum acknowledged a duty to preserve relevant ESI and other information, and set out procedures for such preservation. The parties have disputed the scope and purpose of this memorandum.
- 6 These facts also give the district court's orders some of the markings of immediate appealability articulated in  [Perlman v. United States](#), 247 U.S. 7, 13, 38 S.Ct. 417, 62 L.Ed. 950 (1918). Under  [Perlman](#), "a discovery order directed at a disinterested third party is treated as an immediately appealable final order because the third party presumably lacks a sufficient stake in the proceeding to risk contempt by refusing compliance."  [Church of Scientology of Cal. v. United States](#), 506 U.S. 9, 18 n. 11, 113 S.Ct. 447, 121 L.Ed.2d 313 (1992). This court has noted that the  [Perlman](#) exception "was designed to allow the holder of the privilege and not the custodian of the documents to immediately appeal without being subject to contempt." [United States v. James T. Barnes & Co.](#), 758 F.2d 146, 146 (6th Cir.1985). Because defendants in this case are record custodians, this case does not fit precisely within the  [Perlman](#) exception. And because our authority in mandamus is clear here, there is no need to apply  [Perlman](#) to the facts of this case.

Negative Treatment

Negative Citing References (17)

The KeyCited document has been negatively referenced by the following events or decisions in other litigation or proceedings:

Treatment	Title	Date	Type	Depth	Headnote(s)
Abrogation Recognized by	1. Hardy v. UPS Ground Freight, Inc. 🟢 2019 WL 3290346 , D.Mass. Plaintiff Arthur Hardy ("Plaintiff") alleges that his former employer, Defendant UPS Ground Freight, Inc. ("Defendant"), violated Mass. Gen. Laws ch. 151B, § 4(4) and (4A) by...	July 22, 2019	Case		5 F.3d
Abrogation Recognized by	2. France v. Chippewa County , 🟢 2021 WL 11431784 , W.D.Mich. This Order addresses Plaintiff Jennifer France's motion for an order compelling Defendants to forensically image the cell phones of Defendant Commissioner Robert Savoie and former...	Nov. 22, 2021	Case		9 10 12 F.3d
Abrogation Recognized by	3. Gertcher v. Therrian 2022 WL 21296151 , W.D.Mich. This order addresses Plaintiff Candace Gertcher's "motion to compel entry on land to Michigan State Police Calumet Post and Michigan State Police Lansing Post #11." (ECF No. 71.)...	Mar. 23, 2022	Case		9 F.3d
Abrogation Recognized by	4. Campbell v. O'Reilly Auto Enterprises, LLC 2025 WL 2401302 , W.D.Mich. This removed diversity case is set for a jury trial on July 29, 2025. Plaintiff Charles Campbell seeks to recover monetary damages in connection with injuries he allegedly...	May 16, 2025	Case		9 F.3d
Abrogation Recognized by	5. Palltronics, Inc. v. PALIoT Solutions, Inc. 🟢 2025 WL 4477299 , E.D.Mich. On January 10, 2025, Plaintiff Palltronics, Inc. filed a motion to compel discovery responses from Defendant PALIoT Solutions, Inc. (ECF No. 81). Defendant filed its own motion to...	July 17, 2025	Case		5 6 F.3d
Abrogation Recognized by	6. Henry v. Mihm 🟢 MOST NEGATIVE 2026 WL 622851 , E.D.Mich. CIVIL RIGHTS — Prisons. Special relationship between corrections officer and state Department of Corrections (DOC) supported imputation of DOC's failure to preserve footage.	Mar. 05, 2026	Case		9 10 11 F.3d
Declined to Extend by	7. Mohrmeyer v. Wal-Mart Stores East, L.P. 2009 WL 4166996 , E.D.Ky. TORTS - Sanctions. A customer injured when he fell in a retail store restroom was not entitled to a sanction for spoliation of evidence.	Nov. 20, 2009	Case		9 10 11 F.3d
Distinguished by	🚩 8. Johnson v. Midland Credit Management Incorporated 2009 WL 10723012 , N.D.Ohio	Feb. 09, 2009	Case		5 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
	On April 29, 2005, Plaintiff Zloro Johnson ("Plaintiff" or "Johnson") filed the above-captioned case, on behalf of himself and all those similarly situated, against Defendants...				
Distinguished by	9. Johnson v. Midland Credit Management Incorporated ” 2009 WL 10723017 , N.D.Ohio On February 9, 2009, this court upheld its decision to allow Plaintiff Zloro Johnson ("Plaintiff" or "Johnson") the opportunity to inspect the computer system of Defendants Midland...	Mar. 05, 2009	Case		1 2 4 F.3d
Distinguished by	10. Aster Research Technologies, Inc. v. Raba-Kistner Infrastructure, Inc. ” 2009 WL 10701166 , W.D.Tex. Came on this day to be considered defendants Raba-Kistner Infrastructure, Inc., et alia's ("defendants") motion to compel an inspection of plaintiff Atser Research Technologies,...	July 08, 2009	Case		11 F.3d
Distinguished by	11. In re Life Investors Ins. Co. of America ” 589 F.3d 319 , 6th Cir.(Tenn.) INSURANCE - Writs. Insurer was not entitled to mandamus relief from District Court's ruling regarding interpretation of health insurance policy.	Dec. 17, 2009	Case		5 F.3d
Distinguished by	12. Estate of Boles v. National Heritage Realty, Inc. ” 2010 WL 3218386 , N.D.Miss. For the reasons stated below, the Court denies Defendants' Motion for Stay [188]. When deciding whether to issue a stay pending appeal, the Court must consider four factors:...	Aug. 07, 2010	Case		5 6 11 F.3d
Distinguished by	13. Superior Boiler Works, Inc. v. Kimball 259 P.3d 676 , Kan. TORTS - Evidence. Spoliation of evidence tort is not recognized absent independent tort, contract, assumption of duty, or special relationship.	Aug. 12, 2011	Case		9 F.3d
Distinguished by	14. Finkelstein v. San Mateo County District Attorney's Office ” 2018 WL 8193870 , N.D.Cal. Previously, the Court stated that it would permit imaging of at least some of Plaintiffs' electronic devices in order to preserve existing data on such devices. The Court ordered...	May 17, 2018	Case		9 11 F.3d
Distinguished by	15. Delta T, LLC v. Williams ” 337 F.R.D. 395 , S.D.Ohio LABOR AND EMPLOYMENT — Discovery. Limited scope of search of devices possessed by former employee and company weighed in favor of granting request for third-party forensic...	Jan. 12, 2021	Case		5 11 12 F.3d
Distinguished by	16. Estate of Lasiv by Lasiv v. Pereira ” 293 A.3d 510 , N.J.Super.A.D.	Apr. 18, 2023	Case		5 11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
	HEALTH — Discovery. Expert would be permitted to conduct on-site inspection of patient's electronic medical records in order to identify metadata she wanted copied.				
Distinguished by	17. Jones v. Riot Hospitality Group LLC ” 95 F.4th 730 , 9th Cir.(Ariz.) LITIGATION — Discovery. Evidence was sufficient to support finding that deletion of text messages was done with intent required to support terminating sanctions.	Mar. 05, 2024	Case		9 12 F.3d

Overruling Risk (1)

The KeyCited document has potentially been negatively impacted by the following events or decisions in other litigation or proceedings:

Treatment	Title	Date	Type	Depth	Headnote(s)
Overruling Risk	 1. Campbell-Ewald Co. v. Gomez 136 S.Ct. 663 LITIGATION - Settlements. Complaint was not mooted by unaccepted offer of judgment on individual claims in class suit under Telephone Consumer Protection Act.	Jan. 20, 2016	Case	—	—

History (18)

Direct History (4)

 1. [John B. v. Goetz](#)
2007 WL 3012808 , M.D.Tenn. , Oct. 10, 2007

On Reconsideration in Part

 2. [John B. v. Goetz](#)
2007 WL 4014015 , M.D.Tenn. , Nov. 15, 2007

Stay Denied by

3. [John B. v. Goetz](#)
2007 WL 4198266 , M.D.Tenn. , Nov. 26, 2007

AND Mandamus Granted, Vacated in Part by

  4. [John B. v. Goetz](#) 
531 F.3d 448 , 6th Cir.(Tenn.) , June 26, 2008

Related References (14)

5. [John B. v. Menke](#)
176 F.Supp.2d 786 , M.D.Tenn. , Dec. 19, 2001

6. [John B. v. Goetz](#)
2006 WL 8458468 , M.D.Tenn. , Feb. 03, 2006

7. [John B. v. Goetz](#)
2006 WL 8458469 , M.D.Tenn. , Nov. 21, 2006

8. [John B. v. Goetz](#)
2007 WL 9798360 , M.D.Tenn. , June 01, 2007

 9. [John B. v. Goetz](#)
661 F.Supp.2d 871 , M.D.Tenn. , Sep. 18, 2009

Reversed in Part by

-  10. [John B. v. Goetz](#)
626 F.3d 356 , 6th Cir.(Tenn.) , Nov. 30, 2010

On Remand to

11. [John B. v. Emkes](#)
2011 WL 795019 , M.D.Tenn. , Mar. 01, 2011

Subsequent Determination

12. [John B. v. Emkes](#)
852 F.Supp.2d 944 , M.D.Tenn. , Feb. 14, 2012

Affirmed by

-  13. [John B. v. Emkes](#)
710 F.3d 394 , 6th Cir.(Tenn.) , Mar. 14, 2013

14. [John B. v. Emkes](#)
852 F.Supp.2d 957 , M.D.Tenn. , Feb. 14, 2012

Affirmed by

-  15. [John B. v. Emkes](#)
710 F.3d 394 , 6th Cir.(Tenn.) , Mar. 14, 2013

-  16. [John B. v. Goetz](#)
879 F.Supp.2d 787 , M.D.Tenn. , Jan. 28, 2010

17. [John B. v. Emkes](#)
2011 WL 4007330 , M.D.Tenn. , Sep. 08, 2011

18. [John B. v. Emkes](#)
517 Fed.Appx. 409 , 6th Cir.(Tenn.) , Mar. 13, 2013

Citing References (497)

Treatment	Title	Date	Type	Depth	Headnote(s)
Distinguished by NEGATIVE	1. Delta T, LLC v. Williams ” 337 F.R.D. 395, 400+ , S.D.Ohio LABOR AND EMPLOYMENT — Discovery. Limited scope of search of devices possessed by former employee and company weighed in favor of granting request for third-party forensic...	Jan. 12, 2021	Case		5 11 12 F.3d
Distinguished by NEGATIVE	2. Estate of Boles v. National Heritage Realty, Inc. ” 2010 WL 3218386, *2+ , N.D.Miss. For the reasons stated below, the Court denies Defendants' Motion for Stay [188]. When deciding whether to issue a stay pending appeal, the Court must consider four factors:...	Aug. 07, 2010	Case		5 6 11 F.3d
Distinguished by NEGATIVE	 3. Johnson v. Midland Credit Management Incorporated 2009 WL 10723012, *4+ , N.D.Ohio On April 29, 2005, Plaintiff Zloro Johnson (“Plaintiff” or “Johnson”) filed the above-captioned case, on behalf of himself and all those similarly situated, against Defendants...	Feb. 09, 2009	Case		5 F.3d
Examined by	4. In re Metropolitan Government of Nashville and Davidson County, Tenn. ” 606 F.3d 855, 863+ , 6th Cir.(Tenn.) LABOR AND EMPLOYMENT - Writs. Employer was not entitled to grant of petition for writ of mandamus to reinstate jury verdict in discrimination action.	June 04, 2010	Case		4 5 F.3d
Examined by	5. Dodd v. Hendrickson USA, LLC ” 349 F.R.D. 286, 307+ , W.D.Ky. LABOR AND EMPLOYMENT — Discovery. Employer failed to establish substantial justification for ordering former employee to produce her cell phone for forensic imaging.	Apr. 10, 2025	Case		9 10 12 F.3d
Examined by	 6. BASF Corporation v. Man Diesel & Turbo North America, Inc. 2016 WL 5817159, *30+ , M.D.La. I. INTRODUCTION AND RULING #—— II. PROCEDURAL HISTORY #—— III. FACTUAL BACKGROUND #—— A. BASF and Its Geismar Facility #—— B. Man and Its Relationship with BASF's Geismar...	Sep. 30, 2016	Case		9 F.3d
Examined by	7. Preston v. County of Macomb ” 2021 WL 4820556, *3+ , E.D.Mich. Before the Court is Plaintiff Jessica Lynne Preston's motion to compel discovery. (ECF No. 95.) Specifically, Plaintiff seeks to compel Defendant Macomb County to identify the...	Oct. 15, 2021	Case		9 10 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Examined by	8. Manning v. Erdos  2024 WL 2882647, *5+ , S.D.Ohio This matter is before the Court on Defendant's Response to Order to Show Cause (Doc. 91) and Plaintiff's Motion to Appoint Counsel (Doc. 94). The Court RESERVES the issue of...	June 07, 2024	Case		9 F.3d
Examined by	9. Cranpark, Inc. v. Rogers Group, Inc.  2010 WL 11469139, *2+ , N.D.Ohio The above-captioned case is before the Court on Plaintiff Cranpark, Inc.'s ("Plaintiff") Motion to Compel and for Sanctions. ECF Dkt. #98. For the following reasons the Court...	Feb. 02, 2010	Case		9 10 F.3d
Examined by	10. Matrix Partners VIII, LLP v. Natural Resource Recovery, Inc.  2009 WL 10677430, *4+ , E.D.Tex. Before the Court are two motions related to discovery in this civil action: Plaintiffs' Motion to Compel [Clerk's Docket No. 50], and Plaintiffs' Motion to Compel Forensic...	June 05, 2009	Case		9 11 12 F.3d
Abrogation Recognized by 	11. Gertcher v. Therrian 2022 WL 21296151, *4+ , W.D.Mich. This order addresses Plaintiff Candace Gertcher's "motion to compel entry on land to Michigan State Police Calumet Post and Michigan State Police Lansing Post #11." (ECF No. 71.)...	Mar. 23, 2022	Case		9 F.3d
Declined to Extend by 	12. Mohrmeyer v. Wal-Mart Stores East, L.P. 2009 WL 4166996, *3+ , E.D.Ky. TORTS - Sanctions. A customer injured when he fell in a retail store restroom was not entitled to a sanction for spoliation of evidence.	Nov. 20, 2009	Case		9 10 11 F.3d
Distinguished by 	13. Finkelstein v. San Mateo County District Attorney's Office  2018 WL 8193870, *1+ , N.D.Cal. Previously, the Court stated that it would permit imaging of at least some of Plaintiffs' electronic devices in order to preserve existing data on such devices. The Court ordered...	May 17, 2018	Case		9 11 F.3d
Distinguished by 	14. Aster Research Technologies, Inc. v. Raba-Kistner Infrastructure, Inc.  2009 WL 10701166, *8+ , W.D.Tex. Came on this day to be considered defendants Raba-Kistner Infrastructure, Inc., et alia's ("defendants") motion to compel an inspection of plaintiff Atser Research Technologies,...	July 08, 2009	Case		11 F.3d
Distinguished by 	15. Johnson v. Midland Credit Management Incorporated  2009 WL 10723017, *2+ , N.D.Ohio On February 9, 2009, this court upheld its decision to allow Plaintiff Zloro Johnson ("Plaintiff" or "Johnson") the opportunity to inspect the computer system of Defendants Midland...	Mar. 05, 2009	Case		1 2 4 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	16. In re United States ” 32 F.4th 584, 590+ , 6th Cir.(Mich.) CRIMINAL JUSTICE — Pleas. Mandamus directing court to reconsider plea agreement it improperly rejected after improperly participating in plea negotiations was appropriate.	Apr. 26, 2022	Case		1 2 4 F.3d
Discussed by	17. In re Dombrowski ” 2021 WL 5562286, *1+ , 6th Cir. Plaintiff Laura Dombrowski petitions for a writ of mandamus asking that we direct the district court to reinstate her demand for a jury trial in this action to quiet title to...	Sep. 24, 2021	Case		2 4 F.3d
Discussed by	18. In re Owens ” 843 Fed.Appx. 677, 678+ , 6th Cir. LITIGATION — Writs. Ordering District Court to grant defendant's motion to file proffer letter under seal in his criminal case was not warranted as mandamus relief.	Jan. 22, 2021	Case		2 4 F.3d
Discussed by	19. Holt-Orsted v. City of Dickson ” 641 F.3d 230, 236+ , 6th Cir.(Tenn.) CIVIL RIGHTS - Privileges. Court of appeals lacked jurisdiction over interlocutory appeal.	May 24, 2011	Case		6 7 F.3d
Discussed by	20. In re Professionals Direct Ins. Co. ” 578 F.3d 432, 437+ , 6th Cir. INSURANCE - Writs. Mandamus of district court's order compelling insurer to produce certain allegedly privileged documents was not warranted.	Aug. 24, 2009	Case		4 5 F.3d
Discussed by	21. J.T. v. City and County of San Francisco ” 2024 WL 3834200, *4+ , N.D.Cal. This case concerning an alleged mass arrest (or detention) following the Dolores Hill Bomb, an unsanctioned skateboarding event, in the summer of 2023. Plaintiffs J.T., L.R., and...	Aug. 14, 2024	Case		9 11 12 F.3d
Discussed by	22. Moser v. Health Insurance Innovations, Inc. ” 2018 WL 6735710, *5+ , S.D.Cal. Before the Court is the parties' Joint Motion for Determination of Discovery Dispute. [Doc. No. 87.] In the Joint Motion, defendant Health Insurance Innovations, Inc. ("HII") seeks...	Dec. 21, 2018	Case		9 12 F.3d
Discussed by	23. Procaps S.A. v. Patheon Inc. ” 2014 WL 11498060, *23+ , S.D.Fla. Plaintiff, Procaps S.A. (Procaps) moved to compel a forensic examination of information stored in electronic storage information systems by Defendant, Patheon Inc. (Patheon). DE...	Dec. 01, 2014	Case		9 12 F.3d
Discussed by	24. Marisco, LTD. v. M/V HERCULES ” 2025 WL 3554266, *3+ , D.Hawai'i Before the Court is Defendant GulfMark Americas, Inc.'s (GulfMark) Motion to Compel Plaintiff Marisco, LTD.'s Discovery Responses ("Motion" or "Motion to Compel") filed March 3,...	May 29, 2025	Case		5 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	25. Tireboots by Universal Canvas, Inc. v. Tiresocks, Inc. ¶¶ 2022 WL 2316228, *2+ , N.D.Ill. Before the court is Plaintiff's motion to compel a forensic examination of Defendants Tiresocks, Inc.'s and Tiresocks International Inc.'s electronically stored information ("ESI")...	June 28, 2022	Case		11 F.3d
Discussed by	26. Phoenix Process Equipment Company v. Capital Equipment & Trading Corporation ¶¶ 2022 WL 3094320, *5+ , W.D.Ky. Spoliation, defined as the intentional destruction or alteration of evidence, is a very serious accusation and, if proven, is a very serious offense. Those claiming spoliation...	July 18, 2022	Case		9 F.3d
Discussed by	27. KCH Services, Inc. v. Vanaire, Inc. 2009 WL 2216601, *1+ , W.D.Ky. This matter is before the court upon the plaintiff's motion for default judgment, sanctions, or an adverse-inference instruction due to the spoliation of evidence, refusal to...	July 22, 2009	Case		9 11 F.3d
Discussed by	28. Palltronics, Inc. v. PALIoT Solutions, Inc. ¶¶ 2025 WL 4477299, *8+ , E.D.Mich. On January 10, 2025, Plaintiff Palltronics, Inc. filed a motion to compel discovery responses from Defendant PALIoT Solutions, Inc. (ECF No. 81). Defendant filed its own motion to...	July 17, 2025	Case		5 6 F.3d
Discussed by	29. Green Empire Farms, Inc. v. Plant Products USA, Inc. ¶¶ 2024 WL 4220709, *3+ , E.D.Mich. Green Empire Farms brings this action against Plant Products USA for damages to its tomato crops allegedly caused by the use of SaniDate, a non-party product that clogged its...	Sep. 17, 2024	Case		9 12 F.3d
Discussed by	30. Withrow v. FCA US LLC ¶¶ 2022 WL 18630375, *9+ , E.D.Mich. This is a products liability case involving allegedly defective Bosch CP4 fuel-injection pumps in vehicles made by Defendant FCA US LLC (FCA). Plaintiff Jeff Withrow (Withrow)...	Nov. 21, 2022	Case		9 F.3d
Discussed by	31. France v. Chippewa County, ¶¶ 2021 WL 11431784, *1+ , W.D.Mich. This Order addresses Plaintiff Jennifer France's motion for an order compelling Defendants to forensically image the cell phones of Defendant Commissioner Robert Savoie and former...	Nov. 22, 2021	Case		9 10 12 F.3d
Discussed by	32. FCA US LLC v. Bullock ¶¶ 329 F.R.D. 563, 567+ , E.D.Mich. COMMERCIAL LAW — Discovery. Former attorney accused of misuse of client's proprietary information was required to produce files deleted from her computer.	Jan. 18, 2019	Case		9 11 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	33. Trek, Inc. v. ITR America, LLC 2017 WL 11533311, *9+ , E.D.Mich. I. Recommendation#—— II. Report#—— A. Trek's First Amended Complaint against ITR in Michigan#—— B. ITR's Lawsuit Against Trek in Mississippi#—— C. The Five Pending...	Nov. 09, 2017	Case		6 11 F.3d
Discussed by	34. State Farm Mutual Automobile Insurance Company v. Physiatrix, Inc. ” 2014 WL 10295400, *2+ , E.D.Mich. Before the Court is State Farm's motion seeking "case-terminating" sanctions against Defendants Physiatrix, Inc., Genex Physical Therapy and Drs. Kallil Kazan and Naim Khanafer...	Mar. 17, 2014	Case		9 10 F.3d
Discussed by	35. Audio Visual Innovations, Inc. v. Burgdorf ” 2014 WL 505565, *2+ , E.D.Mich. This is a trade secrets case. Plaintiff Audio Visual Innovations, Inc. ("AVI") sells, installs, and services teleconferencing and video teleconferencing equipment. AVI filed...	Feb. 03, 2014	Case		5 6 F.3d
Discussed by	36. Adkins v. Wolever ” 2011 WL 13327114, *4+ , W.D.Mich. Plaintiff, a former prisoner incarcerated by the Michigan Department of Corrections (MDOC), brought this action pursuant to 42 U.S.C. § 1983. Plaintiff alleged that on November 26,...	Apr. 21, 2011	Case		9 F.3d
Discussed by	37. MSC Software Corp. v. Altair Engineering, Inc. ” 2008 WL 5381864, *9+ , E.D.Mich. LITIGATION - Discovery. A software corporation was not entitled to discovery of hard drives that belonged to an employee of an engineer company they were suing.	Dec. 22, 2008	Case		5 6 11 F.3d
Discussed by	38. Par Pharmaceutical, Inc. v. QuVa Pharma, Inc. ” 2019 WL 959700, *5+ , D.N.J. This matter comes before the Court on the following motions: (1) a motion by Defendants QvVa Pharma Inc. ("QuVa"), Stuart Hinchin, Peter Jenkins, Mike Rutkowski, Donna Kohut, David...	Feb. 27, 2019	Case		12 F.3d
Discussed by	39. Nielsen v. Seven Seventeen Credit Union, Inc. ” 2026 WL 111324, *6+ , N.D.Ohio Pending before the Court is the Joint Motion for Sanctions filed by Defendants Angelo LoCastro ("Mr. LoCastro") and 717 Credit Union, Inc. ("717 Credit Union") (collectively...	Jan. 15, 2026	Case		9 10 F.3d
Discussed by	40. Westley v. Harris ” 2025 WL 3492127, *6+ , N.D.Ohio Pending before the Court is Plaintiff James Westley's ("Plaintiff" or "Mr. Westley") Emergency Motion for Sanctions for Spoliation of Evidence and Notice of Defendants' Continued...	Dec. 05, 2025	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	41. Safelite Group, Inc. v. Lockridge ” 2025 WL 2717319, *4+ , S.D.Ohio Safelite Group, Inc. is a nationwide auto glass repair and replacement provider. Caliber Collision Centers recently expanded its collision repair business to include auto glass...	Sep. 24, 2025	Case		9 10 F.3d
Discussed by	42. Young v. City of Logan ” 2025 WL 2483445, *8+ , S.D.Ohio Plaintiff, Harold D. Young, an Ohio resident proceeding here pro se, was granted leave to proceed in forma pauperis by previous Order of the Court. (ECF No. 8.) This matter is now...	Aug. 28, 2025	Case		9 11 F.3d
Discussed by	43. Safelite Group, Inc. v. Lockridge ” 2024 WL 4343038, *3+ , S.D.Ohio Safelite Group, Inc. is a nationwide auto glass repair and replacement provider. Caliber Collision Centers recently expanded its collision repair business to include auto glass...	Sep. 30, 2024	Case		9 10 F.3d
Discussed by	44. Crossley v. Kettering Adventist Healthcare ” 2023 WL 2554942, *2+ , S.D.Ohio This matter is before the Court on Plaintiff's "Motion for Sanction Based On Spoliation of Evidence" (ECF No. 37). Specifically, Plaintiff requests an adverse-inference jury...	Mar. 17, 2023	Case		9 F.3d
Discussed by	45. Heid v. Mohr ” 2020 WL 2764029, *3+ , S.D.Ohio This matter is before the Court for consideration of several pending motions. For the reasons that follow, Plaintiffs are ADVISED that they must each personally sign every document...	May 28, 2020	Case		9 10 11 F.3d
Discussed by	46. M.A. v. Wyndham Hotels & Resorts, Inc. ” 2020 WL 1443043, *2+ , S.D.Ohio This matter is before the Court on Plaintiffs' Objections in related cases M.A. v. Wyndham Hotels & Resorts, Inc., et al. No. 2:19-CV-849 (M.A. ECF No. 149) and H.H. v. G6...	Mar. 25, 2020	Case		9 F.3d
Discussed by	47. Sweltic Chiropractic & Rehabilitation Center, Inc. v. Foot Levelers, Inc. ” 2016 WL 1657922, *2+ , S.D.Ohio Plaintiff, Sweltic Chiropractic and Rehabilitation Center, Inc., brings this action against Defendants, Foot Levelers, Inc. and John Does 1-10, alleging that Defendants sent...	Apr. 27, 2016	Case		9 10 11 F.3d
Discussed by	48. Bennett v. State Farm Fire and Casualty Company, Inc. ” 2024 WL 7001845, *5+ , D.S.C. This matter is before the court on the defendant's motion to compel (doc. 64). The plaintiff is proceeding pro se in this matter. Pursuant to the provisions of 28 U.S.C. §...	Oct. 31, 2024	Case		9 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	49. IHS Global Limited v. Trade Data Monitor LLC ¶ 2019 WL 7049687, *3+ , D.S.C. The following matter is before the court on plaintiffs IHS Global Limited and IHS Global, Inc.'s (collectively, "plaintiffs") motion to compel, ECF No. 117. For the reasons set...	Dec. 23, 2019	Case		9 11 12 F.3d
Discussed by	50. Cross by and Through Steele v. XPO Express, Inc. ¶ 2016 WL 11519221, *6+ , D.S.C. Plaintiff moves to compel a full response to her discovery requests (ECF No. 37) and seeks a forensic examination of the personal laptop of Defendant Timothy Craig Groshans...	May 03, 2016	Case		9 12 F.3d
Discussed by	51. East Bridge Lofts Property Owners Association, Inc. v. Crum & Forster Specialty Insurance Company ¶ 2015 WL 12831731, *2+ , D.S.C. Plaintiffs move for a forensic examination of Defendant's "email accounts, computers, and servers" due to Defendant's alleged failure "to preserve, collect, or produce employee...	June 18, 2015	Case		9 12 F.3d
Discussed by	52. Su v. Tosh Pork, LLC ¶ 2024 WL 5701505, *5+ , W.D.Tenn. On May 10, 2024, Movants, Ms. Ma Concepcion Cazares Franco and Mr. Carlos Alberto Almaras Villegas, filed a Motion to Quash or Modify Subpoenas and for a Protective Order. (Docket...	Oct. 15, 2024	Case		9 12 F.3d
Discussed by	53. Consolidated Industries, LLC v. Maupin ¶ 2023 WL 8481137, *1+ , W.D.Tenn. Before the Court are four Motions. Plaintiff filed a Motion to Compel Forensic Examination, a Motion to Compel Discovery Supplementation, and a Motion for Sanctions. ECF Nos. 73,...	Aug. 29, 2023	Case		9 12 F.3d
Discussed by	54. Corum v. Wensley ¶ 2023 WL 6192728, *3+ , E.D.Tenn. This case is before the undersigned pursuant to 28 U.S.C. § 636, the Rules of this Court, and Standing Order 13-02. Now before the Court is Plaintiff's Motion to Compel Forensic...	July 19, 2023	Case		9 11 12 F.3d
Discussed by	55. Nacco Materials Handling Group, Inc. v. Lilly Co. ¶ 278 F.R.D. 395, 402+ , W.D.Tenn. LITIGATION - Discovery. Dealer breached its duty to preserve relevant evidence relating to manufacturer's claim that it improperly accessed website.	Nov. 16, 2011	Case		9 10 11 F.3d
Discussed by	56. Downs v. Virginia Health System ¶ 2014 WL 12776888, *3+ , W.D.Va. All non-dispositive pretrial motions and issues, except motions in limine, having been previously referred pursuant to 28 U.S.C. § 636(b)(1)(A) (docket #12), this matter is now...	June 02, 2014	Case		5 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Discussed by	57. In re: American Medical Systems, Inc. ¶¶ 2016 WL 6666890, *4+ , S.D.W.Va. Pending before the court is the motion of American Medical Systems, Inc. ("AMS") requesting a preservation order and an order allowing forensic examination of electronic devices...	Nov. 10, 2016	Case		9 11 F.3d
Abrogation Recognized by NEGATIVE	58. Henry v. Mihm ¶¶ 2026 WL 622851, *8+ , E.D.Mich. CIVIL RIGHTS — Prisons. Special relationship between corrections officer and state Department of Corrections (DOC) supported imputation of DOC's failure to preserve footage.	Mar. 05, 2026	Case		9 10 11 F.3d
Abrogation Recognized by NEGATIVE	59. Campbell v. O'Reilly Auto Enterprises, LLC 2025 WL 2401302, *5 , W.D.Mich. This removed diversity case is set for a jury trial on July 29, 2025. Plaintiff Charles Campbell seeks to recover monetary damages in connection with injuries he allegedly...	May 16, 2025	Case		9 F.3d
Abrogation Recognized by NEGATIVE	60. Hardy v. UPS Ground Freight, Inc. ¶¶ 2019 WL 3290346, *3+ , D.Mass. Plaintiff Arthur Hardy ("Plaintiff") alleges that his former employer, Defendant UPS Ground Freight, Inc. ("Defendant"), violated Mass. Gen. Laws ch. 151B, § 4(4) and (4A) by...	July 22, 2019	Case		5 F.3d
Distinguished by NEGATIVE	61. Jones v. Riot Hospitality Group LLC ¶¶ 95 F.4th 730, 738 , 9th Cir.(Ariz.) LITIGATION — Discovery. Evidence was sufficient to support finding that deletion of text messages was done with intent required to support terminating sanctions.	Mar. 05, 2024	Case		9 12 F.3d
Distinguished by NEGATIVE	62. Estate of Lasiw by Lasiw v. Pereira ¶¶ 293 A.3d 510, 524 , N.J.Super.A.D. HEALTH — Discovery. Expert would be permitted to conduct on-site inspection of patient's electronic medical records in order to identify metadata she wanted copied.	Apr. 18, 2023	Case		5 11 F.3d
Distinguished by NEGATIVE	63. Superior Boiler Works, Inc. v. Kimball 259 P.3d 676, 687 , Kan. TORTS - Evidence. Spoliation of evidence tort is not recognized absent independent tort, contract, assumption of duty, or special relationship.	Aug. 12, 2011	Case		9 F.3d
Distinguished by NEGATIVE	64. In re Life Investors Ins. Co. of America ¶¶ 589 F.3d 319, 323+ , 6th Cir.(Tenn.) INSURANCE - Writs. Insurer was not entitled to mandamus relief from District Court's ruling regarding interpretation of health insurance policy.	Dec. 17, 2009	Case		5 F.3d
Cited by	65. Gilmore-Bey v. Schneider ¶¶ 2025 WL 1810315, *1 , 6th Cir.(Mich.) This matter is before the court upon initial consideration of appellate jurisdiction. Nintu Xi Gilmore-Bey filed a civil action in the district court, naming multiple defendants....	May 16, 2025	Case		4 6 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	66. United States v. Currency \$3,840,772.58 US Dollars Constituting 125 International Wire Transfers Seized From U.S. Correspondent Bank, Citibank 2025 WL 1556553, *1 , 6th Cir.(Mich.) This matter is before the court upon initial consideration of appellate jurisdiction. The United States filed a civil forfeiture action, alleging that certain seized funds were...	May 01, 2025	Case		6 F.3d
Cited by	67. Spencer v. Gasper 2022 WL 20730193, *2 , 6th Cir. In Case No. 22-1318, William Sim Spencer appeals from the district court's order granting Joseph M. Gasper's motion to dismiss Spencer's complaint brought under 42 U.S.C. § 1983....	Aug. 09, 2022	Case		—
Cited by	68. In re National Prescription Opiate Litigation 2021 WL 3777638, *1+ , 6th Cir. In this multidistrict litigation arising from Petitioners' allegedly improper distribution and dispensation of prescription opioids, the district court scheduled a trial...	Jan. 12, 2021	Case		4 F.3d
Cited by	69. In re Caudill 2020 WL 6748203, *1 , 6th Cir. Petitioner David R. Caudill petitions for a writ of mandamus asking that we direct the district court to grant his motion for leave to amend his complaint to include a jury demand...	Oct. 30, 2020	Case		2 4 F.3d
Cited by	70. In re National Prescription Opiate Litigation 956 F.3d 838, 843+ , 6th Cir.(Ohio) PRODUCTS LIABILITY — Writs. Mandamus relief was warranted from decision allowing untimely amendment of complaints in multidistrict litigation arising from opioid crisis.	Apr. 15, 2020	Case		3 4 F.3d
Cited by	71. In re National Prescription Opiate Litigation 2019 WL 7482137, *1 , 6th Cir. Petitioners—sixteen manufacturers, distributors, and pharmacies involved in multi-district litigation arising from the alleged over-prescription of opioid medications—seek a writ...	Oct. 10, 2019	Case		1 F.3d
Cited by	72. United States v. Lanier 748 Fed.Appx. 674, 677+ , 6th Cir.(Tenn.) CRIMINAL JUSTICE — Writs. District court's decisions on remand in fraud prosecution did not reveal such high degree of favoritism or antagonism was to warrant recusal.	Sep. 06, 2018	Case		2 F.3d
Cited by	73. In re Johnson 2018 WL 11303641, *1 , 6th Cir. Vincent Johnson petitions for a writ of mandamus and moves for leave to proceed in forma pauperis. Johnson seeks a writ of mandamus pursuant to 28 U.S.C. §§ 1651 and 1361 to compel...	July 16, 2018	Case		1 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	74. United States v. Ragland  2018 WL 3244006, *2, 6th Cir. Joshua Ragland appeals from a district court order denying enjoinder of his criminal prosecution for possession of a firearm (destructive device) by a prohibited person and...	June 05, 2018	Case		4 F.3d
Cited by	75. In re Hall  2018 WL 11303639, *1, 6th Cir. Jack Hall, a pro se Michigan inmate, petitions for a writ of mandamus, requests oral argument, and moves to proceed in forma pauperis. He asks this court to vacate the district...	May 23, 2018	Case		1 F.3d
Cited by	76. In re United Shore Financial Services, LLC  2018 WL 2283893, *1, 6th Cir. United Shore Financial Services, LLC petitions for a writ of mandamus, seeking to compel the district court to vacate two orders: (1) an August 28, 2017 order directing production...	Jan. 03, 2018	Case		4 F.3d
Cited by	77. In re Ealy  2014 WL 13064776, *1, 6th Cir. Lance Ealy is charged with access device fraud and related crimes. Proceeding pro se, he petitions for a writ of mandamus asking, among other things, for an order compelling the...	Nov. 03, 2014	Case		2 4 F.3d
Cited by	78. In re Syncora Guarantee Inc. 757 F.3d 511, 516, 6th Cir.(Mich.) BANKRUPTCY - Appeals. Insurer was entitled to order for district court to adjudicate its appeal.	July 02, 2014	Case		—
Cited by	79. United States v. Meade  2014 WL 13064973, *1+, 6th Cir. Richard D. Meade appeals a district court's pre-judgment order denying his motion to arrest the judgment and dismiss the indictment for failure to charge an offense. Meade moves to...	Apr. 11, 2014	Case		1 3 F.3d
Cited by	80. In re Jones  680 F.3d 640, 642+, 6th Cir. CIVIL RIGHTS - Writs. Inmate was not entitled to mandamus relief directing district court to respond to objections to summary judgment.	May 25, 2012	Case		1 2 3 F.3d
Cited by	81. U.S. v. Contents of Woodforest Nat. Bank Account No. XXX0017 2011 WL 5373991, *2, 6th Cir. This appeal is from the district court's order granting a stay in a civil forfeiture action. The parties were requested to address the basis of appellate jurisdiction. Upon review...	Oct. 31, 2011	Case		4 F.3d
Cited by	82. In re HCR ManorCare, Inc.  2011 WL 7461073, *1+, 6th Cir. The petitioners are the defendants in these consolidated cases under the Fair Labor Standards Act ("FLSA") challenging their timekeeping policy of automatically deducting thirty...	Sep. 28, 2011	Case		1 3 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	83. Grain v. Trinity Health ” 431 Fed.Appx. 434, 445 , 6th Cir.(Mich.) LABOR AND EMPLOYMENT - Discrimination. Hospital's closure of its intracranial program was not pretext for discrimination under § 1981.	July 08, 2011	Case		8 F.3d
Cited by	84. In re Bartholomew 2011 WL 11563899, *1 , 6th Cir. The petitioners seek a writ of mandamus directing the Fayette County Clerk to accept and record a copy of a military power-of-attorney executed by Petitioner Latona Bartholomew and...	Jan. 06, 2011	Case		1 F.3d
Cited by	85. Scarff Brothers, Inc. v. Bischer Farms, Inc. ” 386 Fed.Appx. 518, 523 , 6th Cir.(Mich.) AGRICULTURE - Animals. Any agister status of feedlot owners did not relieve owners of contractual obligations to cattle broker.	July 15, 2010	Case		—
Cited by	86. O'Brien v. Ed Donnelly Enterprises, Inc. ” 575 F.3d 567, 587 , 6th Cir.(Ohio) LABOR AND EMPLOYMENT - Hours and Wages. District court abused its discretion in striking portions of employee's summary judgment affidavit in FLSA action.	Aug. 05, 2009	Case		9 F.3d
Cited by	87. McDermott v. Continental Airlines, Inc. ” 339 Fed.Appx. 552, 560 , 6th Cir.(Ohio) LABOR AND EMPLOYMENT - Wrongful Discharge. Employee did not show that employer lacked overriding justification, as required to prevail in wrongful discharge claim.	July 30, 2009	Case		8 F.3d
Cited by	88. In re Ashenfelter 2009 WL 9072813, *1 , 6th Cir. The petitioner, a reporter for the Detroit Free Press, has been subpoenaed as a nonparty witness in a Privacy Act lawsuit filed against the United States Department of Justice by...	Apr. 16, 2009	Case		3 F.3d
Cited by	89. Alabama Aircraft Industries, Inc. v. Boeing Company ” 2022 WL 433457, *14 , 11th Cir.(Ala.) Pemco and Boeing are aerospace companies that perform contract work for the United States Air Force. Like other companies in this highly competitive arena, Pemco and Boeing...	Feb. 14, 2022	Case		9 10 F.3d
Cited by	90. P&B Franchise, LLC v. Dawson ” 2024 WL 326956, *2+ , D.Ariz. Pending before the Court is Plaintiffs' Motion for Order Directing Defendant to Preserve and Make Computer Devices and Systems Available for Forensic Imaging and Analysis (Doc. 6.)...	Jan. 29, 2024	Case		11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	91. 3D Systems, Inc. v. Wynne  2024 WL 5702701, *1, S.D.Cal. Plaintiff 3D Systems, Inc. moves to compel a forensic inspection of hard drives belonging to defendants Ben Wynne and Chris Tanner and documents "imported or created on Defendants'...	Aug. 21, 2024	Case		11 F.3d
Cited by	92. Juul Labs, Inc. v. Chou  2022 WL 2161062, *2+, C.D.Cal. Before the Court is Plaintiff's Motion to Compel Inspection of Defendants' Electronic Devices ("Motion to Compel"). [Dkt. No. 179.] The Court conducted an informal discovery...	Apr. 19, 2022	Case		12 F.3d
Cited by	93. SGII, Inc. v. Suon  2021 WL 6752324, *9, C.D.Cal. On July 6, 2021, SeneGence International, Inc. ("Plaintiff"), a cosmetics company, filed a complaint against a former employee, Soda Chanda Suon ("Defendant"), alleging he...	Dec. 29, 2021	Case		6 F.3d
Cited by	 94. Henson v. Turn, Inc.  2018 WL 5281629, *5+, N.D.Cal. Plaintiffs Anthony Henson and William Cintron, subscribers to Verizon's cellular and data services, bring this data-privacy class action against defendant Turn, Inc. The...	Oct. 22, 2018	Case		5 F.3d
Cited by	95. Alexis v. Rogers 2017 WL 1073404, *4, S.D.Cal. On January 20, 2017, Defendants filed an "Omnibus Discovery Motion and Motion for Terminating Issue, Evidentiary, and/or Monetary Sanctions Against Plaintiff." ECF No. 82 ("Mot.")....	Mar. 21, 2017	Case		12 F.3d
Cited by	96. Brady v. Grendene USA, Inc.  2015 WL 4523220, *8+, S.D.Cal. Before the Court is a Joint Motion filed by the defendants on March 3, 2015. [Doc. 194] By way of background, the parties have now filed 15 Motions and Joint Motions and more than...	July 24, 2015	Case		9 11 12 F.3d
Cited by	 97. Sophia & Chloe, Inc. v. Brighton Collectibles, Inc.  2014 WL 12642170, *3+, S.D.Cal. Before the Court is the parties' renewed dispute regarding plaintiff's request for, inter alia, forensic examinations of computers used by certain defense representatives. [Doc....	May 28, 2014	Case		9 12 F.3d
Cited by	 98. Sophia & Chloe, Inc. v. Brighton Collectibles, Inc.  2013 WL 5212013, *2+, S.D.Cal. Before the Court is the parties' dispute regarding plaintiff's request for forensic examinations of computers used by certain defense representatives. [Doc. Nos. 31, 32] For the...	Sep. 13, 2013	Case		9 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	 99. MGA Entertainment, Inc. v. National Products Ltd.  2012 WL 12886446, *2 , C.D.Cal. On January 6, 2012, Plaintiffs filed a Motion for Reconsideration of this Court's October 3, 2011 Discovery Order, ("Motion," Dkt. No. 244), including, among other documents, the...	Jan. 26, 2012	Case		5 F.3d
Cited by	 100. Han v. Futurewei Technologies, Inc.  2011 WL 4344301, *3 , S.D.Cal. Presently before the Court is a Joint Motion for Determination of Discovery Dispute ("Joint Motion" or "Joint Mot."), in which Defendant Futurewei Technologies, Inc. d/b/a...	Sep. 15, 2011	Case		9 F.3d
Cited by	101. Bangkok Broadcasting & T.V. Co., LTD. v. IPTV Corp.  2009 WL 10670411, *3 , C.D.Cal. Plaintiff Bangkok Broadcasting & T.V. Co., LTD. ("Plaintiff" or "BBTV") filed a document entitled "Emergency Ex Parte Application To Permit BBTV To Make An Image Copy Of..."	July 08, 2009	Case		5 F.3d
Cited by	 102. Tucker v. American Intern. Group, Inc.  281 F.R.D. 85, 97 , D.Conn. INSURANCE - Discovery from Agents or Brokers. Non-party broker would not be compelled to allow inspection of its electronic records.	Mar. 15, 2012	Case		5 F.3d
Cited by	103. Covad Communications Co. v. Revonet, Inc.  258 F.R.D. 5, 11 , D.D.C. LITIGATION - Discovery. Defendant was responsible for cost of producing forensic copy of electronic information.	May 27, 2009	Case		11 F.3d
Cited by	104. Selinger v. Kimera Labs, Inc.  2022 WL 668340, *6 , S.D.Fla. At issue are two competing motions for sanctions. Plaintiff Melissa Selinger filed her amended motion for sanctions against Defendants Kimera Labs, Inc. and Duncan Ross...	Mar. 04, 2022	Case		9 F.3d
Cited by	105. In re 3M Combat Arms Earplug Products Liability Litigation  2020 WL 6066199, *3 , N.D.Fla. Pending before the Court is Defendants' Motion to Compel Forensic Analysis of Plaintiff Lloyd Baker's E-Mail Account. ECF No. 14. Mr. Baker has filed a response in opposition, ECF...	Sep. 17, 2020	Case		9 12 F.3d
Cited by	106. In re Abilify (Aripiprazole) Products Liability Litigation 2017 WL 9249652, *3 , N.D.Fla. Pending before the Court is Defendants' Motion to Compel the Production of Plaintiffs' Online Gambling Records and for Inspection. ECF No. 602. Plaintiffs have filed a response in...	Dec. 07, 2017	Case		5 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	107. Health Management Associates, Inc. v. Salyer 2015 WL 12778793, *1, S.D.Fla. THIS CAUSE comes before this Court upon the above Motion. The Plaintiff seeks to have a computer forensics expert to search Defendant Steven Salyer's personal computer devices and...	Aug. 19, 2015	Case		9 F.3d
Cited by	108. Procaps S.A. v. Patheon Inc. 2014 WL 11498061, *4+, S.D.Fla. The Special Master, who both parties agreed to, filed an 85–page report [ECF No. 627] recommending denial of Plaintiff Procaps S.A.'s ("Procaps") "Motion to Compel Forensic...	Dec. 30, 2014	Case		9 12 F.3d
Cited by	109. Alipourian-Frascogna v. Airways 2023 WL 5934897, *5, N.D.Ill. Plaintiff Suzanne Alipourian-Frascogna brings claims under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000E, et seq., and 42 U.S.C. § 1981, for harassment on the basis...	Sep. 12, 2023	Case		12 F.3d
Cited by	110. Johns v. Chemtech Services, Inc. 2021 WL 4498651, *1, N.D.Ill. This matter is before the Court on discovery referral. (D.E. 14.) Defendant Chemtech Services, Inc. ("Chemtech"), in defending against this Title VII employment discrimination...	Aug. 27, 2021	Case		—
Cited by	111. Hansen v. Country Mutual Insurance Co. 2020 WL 5763588, *3, N.D.Ill. On June 4, 2020, plaintiffs Chad and Melissa Hansen filed an emergency motion to compel an inspection of certain of defendant Country Mutual Insurance Co.'s computer systems and...	Sep. 28, 2020	Case		12 F.3d
Cited by	112. Belcastro v. United Airlines, Inc. 2019 WL 7049914, *2, N.D.Ill. Before the Court is defendants United Airlines, Inc.'s and James Simons' ("defendants") renewed motion to compel plaintiff Christopher Belcastro ("Belcastro") to submit to a...	Dec. 23, 2019	Case		—
Cited by	113. Motorola Solutions, Inc. v. Hytera Communications Corp. 365 F.Supp.3d 916, 926, N.D.Ill. COMMERCIAL LAW — Discovery. Forensic inspection of competitor's computers, which were located in China, was not proportional to the needs of the case.	Mar. 15, 2019	Case		9 11 12 F.3d
Cited by	114. Motorola Solutions, Inc. v. Hytera Communications Corp. 314 F.Supp.3d 931, 939, N.D.Ill. LITIGATION — Discovery. The owner of trade secrets was not entitled to forensic inspection of computers in China in action for misappropriation of trade secrets.	May 17, 2018	Case		9 11 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	 115. Hespe v. City of Chicago  2016 WL 7240754, *4 , N.D.Ill. Before the Court is defendants' motion [151] for ruling on their objections to Magistrate Judge Mason's ruling in his April 27, 2016 Order [147]. For the reasons stated below, the...	Dec. 15, 2016	Case		5 9 F.3d
Cited by	116. United States v. Williams 2025 WL 2649771, *4 , N.D.Ind. The Government charged Defendant, Jamon Williams ("Williams"), in a single count indictment with being a felon in possession of a firearm, in violation of 18 U.S.C. § 922(g)(1)....	Sep. 16, 2025	Case		—
Cited by	117. Wells v. Freeman Company 2022 WL 22672924, *4 , S.D.Ind. Plaintiff Alexis Wells sued Defendants The Freeman Company ("Freeman") and Timothy Vaughn, a former Freeman manager, under a variety of legal claims. After summary judgment only...	Dec. 20, 2022	Case		—
Cited by	 118. Zimmer, Inc. v. Stryker Corporation 2015 WL 13700949, *3 , N.D.Ind. Pending and ripe before the Court are the following two motions. On March 6, 2015, Plaintiff, Zimmer, Inc. ("Zimmer"), filed its Motion to Compel Limited Forensic Examination to...	May 11, 2015	Case		—
Cited by	 119. White v. Graceland College Center for Professional Development & Lifelong Learning, Inc.  2009 WL 722056, *7 , D.Kan. LABOR AND EMPLOYMENT - Discovery. An employee who brought a Family Medical Leave Act (FMLA) claim against her employer was entitled to compel her employer to re-produce in native...	Mar. 18, 2009	Case		11 F.3d
Cited by	120. Myers v. Parker, Inc. 2025 WL 2741651, *5 , E.D.Ky. Defendant Parker, Inc. has filed a motion for summary judgment that is more aptly characterized as a motion for sanctions seeking dismissal of some portion of Plaintiffs Ben Myers...	July 03, 2025	Case		9 F.3d
Cited by	121. Schnatter v. 247 Group, LLC  2022 WL 2402658, *6 , W.D.Ky. Before the Court is the "Motion for Discovery Sanctions" filed by Defendants 247 Group, LLC and Wasserman Media Group, LLC (collectively "Defendants"). (DN 151.) Plaintiff John H....	Mar. 14, 2022	Case		9 10 F.3d
Cited by	122. Brewer v. Alliance Coal, LLC 2021 WL 3729297, *5 , E.D.Ky. This matter is before the Court upon the parties' Status Reports on the collective action notice forms and distribution protocol (Docs. # 96 and 97), submitted pursuant to a...	Aug. 23, 2021	Case		10 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	123. Martinez v. White 2018 WL 6739072, *2 , W.D.Ky. This matter is before the Court upon three motions by Plaintiff Leonel Martinez: a Motion for this Court to Reject Defendants for Bringing False Claims, [R. 257]; a Motion for...	Dec. 21, 2018	Case		9 F.3d
Cited by	124. Moore v. Parker 2016 WL 6914884, *1 , W.D.Ky. Brian Keith Moore, an inmate incarcerated at the Kentucky State Penitentiary, filed this 42 U.S.C. § 1983 action against Captain Jay Jones, Sergeant Anthony Hale, and Corrections...	Nov. 23, 2016	Case		9 F.3d
Cited by	125. First Technology Capital, Inc. v. JPMorgan Chase Bank, N.A. 2014 WL 12648548, *3 , E.D.Ky. The Court considers JPMorgan Chase Bank's motion for spoliation sanctions. Chase seeks various potential sanctions for alleged loss of electronic files created and/or received by...	Aug. 21, 2014	Case		9 F.3d
Cited by	126. In re Black Diamond Min. Co., LLC 514 B.R. 230, 238 , E.D.Ky. BANKRUPTCY - Professionals. Permissive adverse inference jury instructions were proper sanction for defendants' spoliation of evidence.	July 22, 2014	Case		9 F.3d
Cited by	127. Meany v. American Casualty Company of Reading, Pennsylvania 2014 WL 12725815, *3 , W.D.Ky. The plaintiff, Michael Meany, asks the district court to impose sanctions on Altec Industries, Inc., for its destruction of certain electronically stored information and for its...	Mar. 24, 2014	Case		9 F.3d
Cited by	128. McCarty v. Covol Fuels No. 2, LLC 978 F.Supp.2d 799, 814+ , W.D.Ky. TORTS - Negligence. Owner of facility did not assume duty of care to worker who was installing an overhead commercial-grade door at facility.	Oct. 16, 2013	Case		9 10 11 F.3d
Cited by	129. Keats v. Council on Occupational Educ., Inc. 2012 WL 6084646, *3 , W.D.Ky. This is an appeal from a Bankruptcy Court decision which has proceeded to this point under quite unusual circumstances. Pursuant to the consent of both parties, Bankruptcy Judge...	Dec. 06, 2012	Case		4 F.3d
Cited by	130. Arch Ins. Co. v. Broan-Nutone, LLC 2011 WL 3880514, *2+ , E.D.Ky. This matter is before the court on Defendant Broan-Nutone's Motion for Summary Judgment or Alternative Sanction for Spoliation (R. 71). Because Plaintiffs Arch Insurance Company...	Aug. 31, 2011	Case		9 F.3d
Cited by	131. Potts v. Martin & Bayley, Inc. 2010 WL 3001639, *9+ , W.D.Ky. TORTS - Evidence. Evidence of prior gas overflows that occurred at gas station was admissible in customer's negligence and premises liability action.	July 27, 2010	Case		10 11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	132. Arthur J. Gallagher & Co. v. O'Neill 🟢 2017 WL 4998650, *3 , E.D.La. This is a breach of contract action with related state law claims alleging misappropriation of trade secrets and breach of duty filed by an employer, Arthur J. Gallagher & Co....	Nov. 02, 2017	Case		9 12 F.3d
Cited by	133. First American Bankcard, Inc. v. Smart Business Technology, Inc. 🟢 2017 WL 2267149, *4+ , E.D.La. This is an action asserting various state law claims pending in this court under the court's diversity of citizenship jurisdiction. Plaintiff, First American Bankcard, Inc., seeks...	May 24, 2017	Case		6 F.3d
Cited by	134. Rogers v. Averitt Express, Inc. 215 F.Supp.3d 510, 516 , M.D.La. TRANSPORTATION — Evidence. Sanctions of excluding evidence of spine surgery and adverse presumption jury instruction were unwarranted in determining injured motorist's damages.	Mar. 06, 2017	Case		9 11 F.3d
Cited by	135. Ball v. LeBlanc 🟢 300 F.R.D. 270, 283+ , M.D.La. LITIGATION - Sanctions. Prison officials' modifications to death row tiers during three-week court-ordered data collection period in action brought by inmates alleging they were...	Dec. 19, 2013	Case		9 10 12 F.3d
Cited by	136. NOLA Spice Designs, LLC v. Haydel Enterprises, Inc. 2013 WL 3974535, *2 , E.D.La. This is a trademark infringement case under the Lanham Act, which also includes a state law claim, commenced by plaintiff NOLA Spice Designs, LLC ("Nola"). Nola seeks (1) a...	Aug. 02, 2013	Case		12 F.3d
Cited by	137. United States v. Murray 🟢 2019 WL 1993785, *5 , D.Mass. Defendant Matthew Murray is charged by indictment with aiding and abetting the distribution and possession with intent to distribute 100 kilograms or more of marijuana in violation...	May 06, 2019	Case		5 F.3d
Cited by	138. ELYSE MCKENNA, Plaintiff, v. ROBERT F. RILEY, et al., Defendants. Additional Party Names: RILEY & HURLEY P.C. 🟢 2026 WL 1529244, *2 , E.D.Mich. This matter is before the Court on Defendants/ Counterclaim Plaintiffs Riley and Riley & Hurley P.C.'s ("the Riley Defendants") Motion to Compel McKenna to Produce Documents in...	June 01, 2026	Case		5 6 F.3d
Cited by	139. MOLLIE WILLIAMS, Plaintiff, v. AMAZON.COM SERVICES LLC, et al., Defendants. Additional Party Names: Dion Bryant Carter, Jr. 🟢 2026 WL 1412605, *11 , E.D.Mich. Plaintiff Mollie Williams sued Defendant Amazon.com Services LLC (Amazon) in state court for employment discrimination based on her sexuality. (ECF No. 1-1). Specifically,...	May 19, 2026	Case		9 10 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	140. West v. Davidov ” 2026 WL 794320, *1+ , E.D.Mich. Plaintiff Quintel Andrew West, a pro se prisoner of the Michigan Department of Corrections, brings this action under 42 U.S.C. § 1983, alleging that defendants were deliberately...	Mar. 20, 2026	Case		9 11 F.3d
Cited by	141. Bibb v. County of Monroe ” 2026 WL 117422, *1 , E.D.Mich. Before the Court are Defendants' motion to dismiss (ECF No. 11) and Plaintiff's motion to preserve evidence. (ECF No. 16.) For the reasons set forth below, Defendants' motion to...	Jan. 15, 2026	Case		10 11 12 F.3d
Cited by	142. Harris v. Spearling ” 2025 WL 4641664, *5 , E.D.Mich. This is a civil rights case. Plaintiffs Roxanne Harris and Josh Boggess, proceeding pro se, are suing Tax Assessor Linda Spearling, Code Enforcement Agents John Pilon and John...	Dec. 11, 2025	Case		9 10 11 F.3d
Cited by	143. CHRISTOPHER GRAY, Plaintiff, v. DETROIT LAND BANK AUTHORITY, MOHAMMAD SALEH, and DETROIT BUILDINGS, SAFETY ENGINEERING AND ENVIRONMENTAL DEPARTMENT, Defendants. ” 2025 WL 4740020, *2 , E.D.Mich. This is a civil case. Plaintiff Christopher Gray, proceeding pro se, is suing Detroit Land Bank Authority (DLBA); Detroit Buildings, Safety Engineering, and Environmental...	Oct. 24, 2025	Case		9 10 11 F.3d
Cited by	144. Mosley v. Marriot International, Inc. ” 2024 WL 1224241, *2 , E.D.Mich. This matter is before the Court on the Motion for Partial Summary Judgment (ECF No. 69) filed by Defendants Marriott International, Inc. ("Marriott"), Cadillac Hotel Funding, LLC...	Mar. 21, 2024	Case		9 F.3d
Cited by	145. International Unions, Security Police and Fire Professionals of America v. Maritas ” 2022 WL 17828378, *4 , E.D.Mich. This is a defamation and tortious interference case. Plaintiffs are International Unions, Security Police and Fire Professionals of America, an unincorporated international union...	Sep. 22, 2022	Case		9 10 F.3d
Cited by	146. Design Basics, LLC v. Mitch Harris Building Co., Inc. ” 2021 WL 5563981, *4 , E.D.Mich. Plaintiff Design Basics, LLC filed this lawsuit against Defendants on November 11, 2016, alleging violations of the federal Copyright Act and the Digital Millennium Copyright Act...	Nov. 29, 2021	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	147. Prudential Defense Solutions, Inc. v. Graham ¶ 2021 WL 4810498, *5 , E.D.Mich. Plaintiff Prudential Defense Solutions, Inc., a private security and mobile patrol service company, brings this action asserting claims under the Michigan Uniform Trade Secrets Act...	Oct. 15, 2021	Case		9 F.3d
Cited by	148. Weidman v. Ford Motor Company 2021 WL 363560, *2 , E.D.Mich. Presently before the Court is the Plaintiffs' Motion for Entry of an ESI Protocol, filed on January 15, 2021. ECF No. 103. The Court entered an expedited briefing schedule on...	Feb. 03, 2021	Case		—
Cited by	149. Lipian v. University of Michigan 2019 WL 6339646, *2 , E.D.Mich. The Court held a hearing on objections to the Magistrate Judge's discovery orders on October 17, 2019. [Dkt. # 177]. At that hearing, the Court ruled that Defendants should be...	Nov. 27, 2019	Case		—
Cited by	150. J.S.T. Corporation v. Robert Bosch LLC ¶ 2019 WL 2324488, *7 , E.D.Mich. Plaintiff/Counter-Defendant J.S.T. Corporation ("JST" or "Plaintiff") alleges that Defendant Bosch Automotive Products (Suzhou) Co., Ltd. ("Bosch Suzhou") misappropriated JST's...	May 30, 2019	Case		9 10 12 F.3d
Cited by	151. Pochert v. Restaurant Partners Inc. ¶ 2019 WL 13294841, *2 , W.D.Mich. Plaintiff Natalie Pochert, who was formerly employed by Defendants, filed this action under Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 2000e et seq. ("Title...	May 23, 2019	Case		9 12 F.3d
Cited by	152. Northington v. Abdellatif ¶ 2018 WL 3688665, *6 , E.D.Mich. Magistrate Judge Mona K. Majzoub set forth the following relevant background of this case in her Report and Recommendation ("R&R") filed December 1, 2017: Plaintiff Gary...	Aug. 03, 2018	Case		9 F.3d
Cited by	153. Guyzik v. Moore ¶ 2017 WL 6422066, *2 , E.D.Mich. Plaintiff Manuel Ramon Guyzik was mistakenly implicated in a drug distribution conspiracy and subsequently arrested by some of the individual Defendants. (Dkt. #30.) The only...	Dec. 18, 2017	Case		9 F.3d
Cited by	154. State Farm Mutual Automobile Insurance Company v. Pointe Physical Therapy, LLC. ¶ 2017 WL 11379855, *7 , E.D.Mich. Two related motions filed by State Farm were heard on November 20, 2017, pursuant to notice. (Dkt. 286, 287). The first is a motion for sanctions (default, monetary sanctions, and...	Dec. 15, 2017	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	155. Sobol v. Imprimis Pharmaceuticals ” 2017 WL 5035837, *5+ , E.D.Mich. Plaintiff Louis L. Sobol, M.D., alleges that Defendant Imprimis Pharmaceuticals violated the Telephone Consumer Protection Act (TCPA) by sending junk faxes. [ECF No. 1]. Before...	Oct. 26, 2017	Case		9 10 F.3d
Cited by	156. Estate of Romain v. City of Grosse Pointe Farms ” 2016 WL 7664226, *3 , E.D.Mich. This case involves the alleged, suspicious circumstances surrounding the death of JoAnn Matouk Romain (“Ms. Romain”). Her estate (“Plaintiffs”) filed this lawsuit on June 10, 2014,...	Nov. 22, 2016	Case		9 10 F.3d
Cited by	157. Mitchell v. Clayton ” 2016 WL 633949, *2 , E.D.Mich. Plaintiff Gary Mitchell brings this action pursuant to 18 U.S.C. § 1983, alleging violations of his constitutional rights while he was detained at the Washtenaw County Jail. The...	Feb. 10, 2016	Case		9 10 F.3d
Cited by	158. Stryker Corp. v. Ridgeway ” 2015 WL 4425947, *3 , W.D.Mich. This matter is before the Court on appeals filed by Christopher Ridgeway to three of the Magistrate Judge's non-dispositive pretrial orders. Ridgeway appeals the January 5, 2015,...	July 20, 2015	Case		9 12 F.3d
Cited by	159. Design Basics, LLC v. Marhofer ” 2015 WL 14103199, *2 , E.D.Mich. On December 23, 2014, defendants filed a motion to dismiss, or in the alternative, for a mandatory presumption based on plaintiff's spoliation of evidence. (Dkt. 81). Judge Cox...	June 15, 2015	Case		9 10 F.3d
Cited by	160. Cannon v. Bernstein 2015 WL 13741225, *7 , E.D.Mich. This matter is before the Court on defendants' second motion for summary judgment. (Dkt. 85). Defendants contend they are entitled to summary judgment based on collateral estoppel...	May 26, 2015	Case		9 F.3d
Cited by	161. Blankenship v. Superior Controls, Inc. ” 2014 WL 12659920, *2 , E.D.Mich. The present controversy originated as defendants' motion to compel discovery from plaintiff, filed on February 5, 2014. (Dkt. 68). District Judge Denise Page Hood referred this...	Sep. 26, 2014	Case		9 F.3d
Cited by	162. Bailey v. Trust Logistics ” 2014 WL 1317502, *5 , E.D.Mich. Plaintiff Sandra Bailey filed this lawsuit in Lenawee County Circuit Court against Defendants Trust Logistics and Daniel Keller arising out of a fatal traffic accident. Defendants...	Apr. 01, 2014	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	163. Harper v. Toxicology 2013 WL 12109525, *1 , W.D.Mich. This is a diversity action brought by a federal prisoner against a testing laboratory, alleging negligence. Plaintiff asserts that in May of 2013, defendant received a urine sample...	Nov. 06, 2013	Case		9 F.3d
Cited by	164. Fair Housing Center of Southwest Michigan v. Hunt 2013 WL 5719152, *13 , W.D.Mich. This was a civil rights action alleging housing discrimination in violation of the Fair Housing Act (FHA), 42 U.S.C. §§ 3601–3619, the Civil Rights Act, 42 U.S.C. §§ 1982–1996b,...	Oct. 21, 2013	Case		—
Cited by	165. Barrette Outdoor Living, Inc. v. Michigan Resin Representatives 2013 WL 3983230, *10 , E.D.Mich. The Plaintiff, Barrette Outdoor Living, Inc. ("Barrette Outdoor"), commenced this action on July 29, 2011, by accusing the Defendants, Michigan Resin Representatives, LLC...	Aug. 01, 2013	Case		9 10 11 F.3d
Cited by	166. Coach, Inc. v. Dequindre Plaza, L.L.C. 2013 WL 2152038, *7 , E.D.Mich. This matter is before the Court on Defendants Dequindre Plaza, L.L.C., Michael Surnow, Jeffrey Surnow, and Terry Bingham (collectively "the Dequindre Defendants") Objections to...	May 16, 2013	Case		9 F.3d
Cited by	167. Coleman v. Canton Township 2010 WL 3906640, *4 , E.D.Mich. Both of the above-captioned lawsuits arise out of allegations by the Plaintiff, Arnold Coleman, that the Defendants, Canton Township, et al., had been subjected to various...	Sep. 30, 2010	Case		9 F.3d
Cited by	168. Laethem Equipment Co. v. Deere & Co. 261 F.R.D. 127, 145 , E.D.Mich. LITIGATION - Discovery. Requesting party was required to pay for production of electronically stored information.	Aug. 27, 2009	Case		11 F.3d
Cited by	169. Technical Sales Associates, Inc. v. Ohio Star Forge Co. 2009 WL 728520, *4 , E.D.Mich. This is a dispute over sales commissions which is the subject of two consolidated cases. Plaintiff Technical Sales Associates, Inc. ("TSA") is suing defendant Ohio Star Forge...	Mar. 19, 2009	Case		9 11 F.3d
Cited by	170. Kwik-Sew Pattern Co., Inc. v. Gendron 2008 WL 11349985, *1+ , W.D.Mich. The Court has before it pro se Defendant Derek Gendron's motion for appointment of counsel and pro se Defendant Lynn Gendron's motion for appointment of counsel and request to stay...	Sep. 19, 2008	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	171. Midwest Feeders, Inc. v. Bank of Franklin  2016 WL 3945676, *2, S.D.Miss. THIS MATTER is before the Court on the Motion to Compel Discovery [202] filed by Defendant, Bank of Franklin ("the Bank"). Having considered the parties' submissions, the Court...	July 19, 2016	Case		11 12 F.3d
Cited by	172. Byrd v. U.S. Silica Co. 2024 WL 6881526, *10+, E.D.Mo. This matter is before the Court on Plaintiffs' Motion to Compel and Motion for Sanctions Directed to Defendant U.S. Silica Company. ECF No. 66. Plaintiffs contend Defendant U.S....	June 21, 2024	Case		—
Cited by	173. Gammill, Inc. v. Cartwright  2024 WL 4685851, *2, W.D.Mo. Before the Court is Plaintiff's motion to expedite discovery (Doc. #8) and joint proposed scheduling order (Doc. #34). The Court, being duly advised of the premises, grants in part...	May 16, 2024	Case		9 12 F.3d
Cited by	174. Peterson v. City of Minot 2018 WL 5045194, *6+, D.N.D. Before the court is a motion by defendants to compel discovery from plaintiff's laptop computer. This is the second time a discovery issue with respect to this computer has come...	Oct. 17, 2018	Case		9 12 F.3d
Cited by	 175. Peterson v. City of Minot 2018 WL 4550387, *6+, D.N.D. Before the court is a motion by defendants to compel discovery from plaintiff's laptop computer. This is the second time a discovery issue with respect to this computer has come...	Sep. 21, 2018	Case		9 12 F.3d
Cited by	176. Home Instead, Inc. v. Florance  2014 WL 12914304, *5, D.Neb. This matter is before the court on Plaintiffs' Motion for Sanctions, (Filing No. 148). For the reasons set forth below, the motion will be granted in part. As to the remainder of...	Apr. 24, 2014	Case		9 10 F.3d
Cited by	 177. PlayUp, Inc. v. Mintas  350 F.R.D. 47, 53, D.Nev. LITIGATION — Discovery. Company director violated discovery order in bad faith by failing to produce meeting notes in native format, supporting forensic examination.	July 18, 2025	Case		9 11 12 F.3d
Cited by	178. PlayUp, Inc. v. Mintas  2025 WL 27769, *2+, D.Nev. Pending before the Court is Defendant/Counter-Claimant Laila Mintas' renewed motion for a forensic examination or to compel. Docket No. 586. Counter-Defendant Daniel Simic filed a...	Jan. 03, 2025	Case		9 11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	179. PlayUp, Inc. v. Mintas  2024 WL 3621449, *2+ , D.Nev. Pending before the Court is the motion for forensic examination filed by Defendant/Counterclaimant Laila Mintas. Docket No. 509; see also Docket No. 511 (sealed version); Docket...	Aug. 01, 2024	Case		9 11 F.3d
Cited by	180. Korotki v. Cooper Levenson, April, Niedelman & Wagenheim, P.A.  2022 WL 2191519, *6+ , D.N.J. This matter is before the Court by way of the motion to quash subpoenas [Doc. No. 34] filed by third-party Abraham Korotki and the cross-motion to compel compliance with subpoenas...	June 17, 2022	Case		5 F.3d
Cited by	 181. Ford Motor Co. v. Edgewood Properties, Inc. 257 F.R.D. 418, 424 , D.N.J. LITIGATION - Discovery. Third-party witness affidavit was not protected from discovery under attorney work-product doctrine.	May 19, 2009	Case		11 F.3d
Cited by	182. Jemison v. Phillips-Van Heusen 2008 WL 11518519, *1 , D.N.J. Dear Counsel: This matter, having been opened by this Court, upon informal motion, relates to various discovery issues alleged by Plaintiffs Kim Jemison and Patricia Wright...	Sep. 22, 2008	Case		9 10 F.3d
Cited by	183. Aminov v. Berkshire Hathaway Guard Insurance Companies  2022 WL 818944, *1 , E.D.N.Y. Defendant AmGuard Insurance Company has moved to compel Plaintiff to produce—for forensic examination—the cell phone that recorded videos produced by Plaintiff. The motion is...	Mar. 03, 2022	Case		9 10 11 F.3d
Cited by	184. Aviles v. S&P Global, Inc. 2021 WL 2077932, *4 , S.D.N.Y. The above-captioned consolidated actions involve over 500 foreign investors (“Plaintiffs”) who seek relief after losing all of their investments in Lifetrade Fund, B.V....	May 24, 2021	Case		6 F.3d
Cited by	185. Schreiber v. Friedman  2017 WL 11508067, *5+ , E.D.N.Y. Before the Court is an appeal by defendants from orders issued by Magistrate Judge Orenstein on October 13, 2016 (the “October 13 Order”) and October 14, 2016 (the “October 14...	Aug. 15, 2017	Case		6 11 F.3d
Cited by	186. D.M. V. City of Columbus  2026 WL 1601289, *3+ , S.D.Ohio In its Order granting in part and denying in part Plaintiff's motion to seal several exhibits, the Court gave Plaintiff two options for proceeding with Exhibits C, D, E, F, H, K,...	June 04, 2026	Case		9 10 11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	187. Jones v. Franklin County Children Services  2026 WL 787955, *4 , S.D.Ohio Plaintiff, Richard Jones, sues Franklin County Children Services ("FCCS"), and two FCCS employees, James Edwards, and DeJournay Ray, under 42 U.S.C. § 1983 for deprivation of...	Mar. 20, 2026	Case		10 11 F.3d
Cited by	188. Young v. City of Logan  2026 WL 322745, *7+ , S.D.Ohio Plaintiff Harold Young, acting pro se, alleges that Defendants (a police officer and the officer's municipal employer) unlawfully took checks that belonged to Young and gave them...	Feb. 06, 2026	Case		11 F.3d
Cited by	189. Lett v. United Association of Plumbers and Steamfitters  2026 WL 91511, *2+ , S.D.Ohio Before the Court are several motions filed by Plaintiff (Docs. 1, 3, 6, 7). For the following reasons, the Undersigned RECOMMENDS that Plaintiff's second Motion for Leave to...	Jan. 13, 2026	Case		9 10 11 F.3d
Cited by	190. JTH TAX, LLC d/b/a LIBERTY TAX SERVICE, Plaintiff, v. ABDOU SAMB, et al., Defendants. Additional Party Names: Samb LLC, Samb Tax Service  2025 WL 4695279, *5 , S.D.Ohio The following discovery issues raised by Plaintiff JTH Tax, LLC dba Liberty Tax Service are currently pending before the undersigned Magistrate Judge: (1) Plaintiff's Motion To...	Oct. 22, 2025	Case		9 F.3d
Cited by	191. Bradley v. City of Columbus 2025 WL 2451137, *4 , S.D.Ohio Before the Court is Defendants' Motion to Compel (Doc. 127). For the following reasons, the Motion is GRANTED. On or before September 2, 2025, Plaintiffs are ORDERED to (1) execute...	Aug. 26, 2025	Case		5 F.3d
Cited by	192. Ohio ex rel. Yost v. Jones 2025 WL 2249595, *4 , S.D.Ohio Plaintiff's Motion for Sanctions is before the Court. (Doc. 174). For the following reasons, the Undersigned RECOMMENDS that the Motion be GRANTED in part and DENIED in part. As...	Aug. 07, 2025	Case		9 10 F.3d
Cited by	193. Wooten v. Sturts  2025 WL 1447224, *6 , S.D.Ohio Plaintiff, Bailey Wooten, an Ohio resident proceeding without the assistance of counsel, sues numerous Defendants under federal constitutional and statutory provisions in...	May 20, 2025	Case		10 11 F.3d
Cited by	194. United States Equal Employment Opportunity Commission v. Aspire Regional Partners, Inc.  2024 WL 4986997, *4 , S.D.Ohio This matter is before the Court for consideration of Defendants' Motion to Quash, in Part, Non-Party Subpoena Duces Tecum. (Mot., ECF No. 41.) Plaintiff filed an opposition to...	Dec. 05, 2024	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	 195. Buddenberg v. Estate of Weisdack  711 F.Supp.3d 712, 818 , N.D.Ohio LABOR AND EMPLOYMENT — Discrimination. Position statement which county health district submitted to EEOC was not direct evidence of retaliation.	Jan. 16, 2024	Case		9 10 11 F.3d
Cited by	196. Safelite Group, Inc. v. Lockridge  2023 WL 4747987, *2+ , S.D.Ohio This matter is before the Court on Defendant Caliber Collision Centers (Caliber Holdings Corporation) d/b/a Caliber Auto Glass' ("Caliber") "Motion for Protection from Forensic...	July 25, 2023	Case		6 F.3d
Cited by	 197. Frenchko v. Monroe  672 F.Supp.3d 421, 473 , N.D.Ohio CIVIL RIGHTS — Arrest and Detention. County commissioner engaged in protected speech at county commission meeting prior to arrest for disruption of lawful meeting.	Jan. 16, 2023	Case		9 10 11 F.3d
Cited by	198. Safelite Group, Inc. v. Lockridge  2022 WL 17842945, *5 , S.D.Ohio This matter is before the Court on Defendant William Harris Billingsley's ("Billingsley") Motion to Quash the Subpoena of Attorney-Client Privileged Matters (ECF No. 201),...	Dec. 22, 2022	Case		9 F.3d
Cited by	199. Gutierrez v. Selection Management Systems, Inc.  2022 WL 2208761, *3 , S.D.Ohio This contract-dispute action is before the Court on Plaintiffs' Motion for Partial Summary Judgment and Defendants' Motion for Summary Judgment. (Docs. 52, 53.) For the reasons...	June 21, 2022	Case		9 10 F.3d
Cited by	200. Tera II, LLC v. Rice Drilling D, LLC 2022 WL 1114943, *4+ , S.D.Ohio This matter is before the Court on several discovery motions brought by Plaintiffs and by Defendant Rice Drilling D, LLC ("Rice"). For the following reasons, Plaintiffs' Motion to...	Apr. 14, 2022	Case		9 F.3d
Cited by	 201. Drips Holdings, LLC v. Teledrip LLC  2022 WL 3282676, *1+ , N.D.Ohio Before the Court is the motion of Plaintiff Drips Holdings, LLC ("Drips" or "Plaintiff") requesting that the Court sanction Defendants Teledrip and Taylor Murray (collectively,...	Apr. 05, 2022	Case		9 F.3d
Cited by	202. Bleam v. Fritz  2022 WL 254099, *2+ , N.D.Ohio Defendants James A. Fritz, Brian Elliott, and Management Training Center ("MTC") (collectively, "Defendants") move to dismiss the claims asserted against them by pro se Plaintiff...	Jan. 27, 2022	Case		2 9 10 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	203. Siefert v. Hamilton County Board of Commissioners  2021 WL 5918893, *3, S.D.Ohio This civil action is before the Court upon Plaintiffs' request to conduct discovery into the Defendant Children's Hospital's alleged spoliation of evidence. The parties discussed...	Dec. 15, 2021	Case		9 12 F.3d
Cited by	 204. McClafferty  2021 WL 1214841, *11, N.D.Ohio Defendants Portage County Board of Commissioners, David W. Doak, Dale Kelly, Daniel Burns, Bryan Morgenstern, William Burns, Cory Germani, Michael Burda, and Amy Beans' ("Portage...	Mar. 30, 2021	Case		9 10 11 F.3d
Cited by	205. Allstate Insurance Company v. Papanek  2019 WL 6698342, *9, S.D.Ohio This civil consent case arising under the Court's diversity jurisdiction, see 28 U.S.C. § 1332, concerns, inter alia, breach of contract claims following the termination of an...	Dec. 09, 2019	Case		9 10 F.3d
Cited by	206. M.J. v. Akron City School District Board of Education 2019 WL 4918683, *2+, N.D.Ohio These consolidated cases have been rife with discovery disputes that have demanded the attention of the Court and the magistrate judge assigned to the cases. Most recently, on...	Oct. 04, 2019	Case		9 12 F.3d
Cited by	207. List Industries, Inc. v. Umina  2019 WL 1933970, *4+, S.D.Ohio Plaintiff List Industries, LLC (List) brings this action for breach of the confidentiality provision of an employment contract and misappropriation in violation of Ohio's Trade...	May 01, 2019	Case		6 F.3d
Cited by	 208. Enoch v. Hamilton County Sheriff's Office 2019 WL 1755966, *9, S.D.Ohio Plaintiffs Vanessa Enoch and Avery Corbin bring this action under 42 U.S.C. § 1983 and Ohio law seeking injunctive relief and civil damages for alleged violations of their rights....	Apr. 19, 2019	Case		9 F.3d
Cited by	 209. Hogan v. Cleveland Ave Restaurant Inc.  2017 WL 2471022, *3, S.D.Ohio This matter is before the Court on Plaintiffs' Motion for Sanctions and for a Hearing to Show Cause Why Defendants are not in Contempt (ECF No. 43), Defendants' Memorandum in...	June 08, 2017	Case		9 F.3d
Cited by	210. Little Hocking Water Assn., Inc. v. E.I. du Pont de Nemours & Co.  94 F.Supp.3d 893, 918, S.D.Ohio LITIGATION - Sanctions. Manufacturing facility operator did not violate discovery rules when it objected to the relevance of requested well data.	Mar. 24, 2015	Case		10 11 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	211. Champion Foodservice LLC v. Vista Food Exchange, Inc. 2015 WL 12743833, *5+ , N.D.Ohio This matter is before the Court on the objection of Champion Foodservice ("Champion") (Doc. No. 339 ("Obj.")) to a proposed order issued by the Special Master (Doc. No. 338...	Mar. 20, 2015	Case		9 10 11 F.3d
Cited by	212. Express Energy Services Operating, L.P. v. Hall Drilling, LLC 🟢 2015 WL 547766, *3+ , S.D.Ohio This matter is before the Court for consideration of Plaintiff's motion for sanctions due to spoliation of evidence (ECF No. 62), Defendants' memorandum in opposition (ECF No. 68),...	Feb. 10, 2015	Case		9 12 F.3d
Cited by	213. Lucas v. telemarketer Calling From (407) 476-5670 and Other Telephone Numbers 🟢 2014 WL 12656104, *6 , S.D.Ohio The above captioned case involves Plaintiff's allegations of illegal telemarketing practices. Seeking monetary damages and injunctive relief, Plaintiff initiated this litigation...	Nov. 18, 2014	Case		9 10 11 F.3d
Cited by	214. Yoder & Frey Auctioneers, Inc. v. EquipmentFacts, LLC 2013 WL 2151779, *1 , N.D.Ohio On April 8, 2013, this Court issued a Memorandum Opinion denying defendant EquipmentFacts, LLC's motion in limine and for summary judgment. (Docs. 80 & 81.) Before the Court now...	May 16, 2013	Case		—
Cited by	215. Yoder & Frey Auctioneers, Inc. v. Equipmentfacts, LLC 🟢 2013 WL 1411757, *2+ , N.D.Ohio Plaintiffs Yoder & Frey Auctioneers, Inc. and RealTimeBid.Com, LLC brought this action against defendant Equipmentfacts, LLC alleging Equipmentfacts used the plaintiffs' online...	Apr. 08, 2013	Case		9 F.3d
Cited by	216. O'Brien v. Donnelly 🟢 2010 WL 3860522, *4 , S.D.Ohio This matter is before the Court for consideration of Plaintiffs' Objections (Doc. 173) to the April 29, 2010 Report and Recommendation of the Magistrate Judge (Doc. 171). In her...	Sep. 27, 2010	Case		9 F.3d
Cited by	217. Hitachi Medical Systems America, Inc. v. Branch 🟢 2010 WL 11565349, *2 , N.D.Ohio Before this Court is Plaintiff Hitachi Medical Systems America, Inc.'s ("Plaintiff") motion for sanctions, which include but are not limited to, attorney's fees, an entry of...	Aug. 09, 2010	Case		10 F.3d
Cited by	218. O'Brien v. Ed Donnelly Enterprises, Inc. 🟢 2010 WL 1741352, *3 , S.D.Ohio This matter is before the Court on Plaintiffs' Renewed Motion for Sanctions Pursuant to Rule 37 of the Federal Rules of Civil Procedure. Plaintiffs request that the Court permit an...	Apr. 29, 2010	Case		9 11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	219. Rheem v. UPMC Pinnacle Hospitals 2024 WL 4494695, *6 , M.D.Pa. This workplace disability discrimination case comes before us for resolution of a motion to compel. (Doc. 36). With respect to these discovery disputes, the plaintiff's complaint...	Oct. 15, 2024	Case		—
Cited by	220. Doe v. Schuylkill County Courthouse 2022 WL 1506308, *2 , M.D.Pa. THE BACKGROUND OF THIS ORDER IS AS FOLLOWS: This case—which involves allegations of workplace misconduct at the Schuylkill County Courthouse involving alleged sexual harassment,...	May 12, 2022	Case		5 F.3d
Cited by	221. Lawson v. Love's Travel Stops & Country Stores, Inc. ¶¶ 2020 WL 109654, *4 , M.D.Pa. This case is a Fair Labor Standards Act (FLSA) collective action brought on behalf of current and former Operations Managers (OMs) employed at various Love's Travel Stops. (Doc....	Jan. 09, 2020	Case		5 F.3d
Cited by	222. Lawson v. Love's Travel Stops & Country Stores, Inc. ¶¶ 2019 WL 5622453, *6 , M.D.Pa. This case is a Fair Labor Standards Act (FLSA) collective action brought on behalf of current and former Operations Managers (OMs) employed at various Love's Travel Stops. (Doc....	Oct. 31, 2019	Case		5 F.3d
Cited by	223. Stewart v. First Transit, Inc. ¶¶ 2019 WL 13027112, *1+ , E.D.Pa. Defendant First Transit, Inc. asks me to compel Plaintiff Robert Stewart and ten Opt-In Plaintiffs to produce their cell phones and hand-held communication devices for a forensic...	Sep. 03, 2019	Case		5 9 12 F.3d
Cited by	224. Susquehanna Commercial Finance, Inc. v. Vascular Resources, Inc. 2010 WL 4973317, *13 , M.D.Pa. In the above-captioned action, which has generated considerably more rhetorical heat than substantive fire since it was first commenced in October, 2009, Defendants have filed a...	Dec. 01, 2010	Case		11 F.3d
Cited by	225. Romero v. Allstate Ins. Co. 271 F.R.D. 96, 106 , E.D.Pa. LITIGATION - Discovery. Defendant was not required to disclose its prior search methodology used to respond to requests for production of documents.	Oct. 21, 2010	Case		11 F.3d
Cited by	226. Keobounhom v. Tractor Supply Company ¶¶ 2026 WL 1433957, *2 , M.D.Tenn. Pending before the Court is Plaintiff's motion for spoliation sanctions against Defendant Tractor Supply Company. (Doc. No. 68.) Defendant responded in opposition. (Doc. No. 70.)...	May 21, 2026	Case		9 10 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	227. Hester v. Candido's Inc. ¶¶ 2025 WL 3200747, *1, E.D.Tenn. This case is before the undersigned pursuant to 28 U.S.C. § 636, the Rules of this Court, and Standing Order 13-02. Now before the Court is the Motion for Preservation of Evidence...	Oct. 14, 2025	Case		9 10 F.3d
Cited by	228. Evers v. Tennessee Department of Children's Services ¶¶ 2025 WL 2466562, *9+, E.D.Tenn. Before the Court are Plaintiffs Scott and Sharon Evers' Motion for Temporary Restraining Order [Doc. 5], their Motion for Expedited Discovery [Doc. 6], their Emergency Motion for...	Aug. 26, 2025	Case		9 10 F.3d
Cited by	229. Cardenas v. Grey Matter, LLC ¶¶ 2025 WL 2176504, *2, E.D.Tenn. This case is before the undersigned pursuant to 28 U.S.C. § 636, the Rules of this Court, and Standing Order 13-02. Now before the Court is Defendants' Motion to Enjoin Plaintiff...	July 28, 2025	Case		9 10 11 F.3d
Cited by	230. Frazier v. Breville USA, Inc. 2025 WL 3785231, *7, M.D.Tenn. Plaintiff Hannah Frazier brought this products liability action against Breville USA, Inc. ("Breville"), alleging that she sustained permanent injuries to her abdomen when the lid...	Apr. 21, 2025	Case		9 F.3d
Cited by	231. Teran v. Lawn Enforcement, Inc. 2024 WL 5112756, *3, W.D.Tenn. Before the court are the plaintiffs' Motion to Compel filed on March 11, 2024, and Motion for Sanctions filed on May 21, 2024. (ECF Nos. 62, 67.) The defendants filed a response to...	Dec. 13, 2024	Case		9 F.3d
Cited by	232. HYC Logistics, Inc. v. Weiss 2024 WL 4216973, *6, W.D.Tenn. Before the court by order of reference are defendants Jacob Weiss and OJCommerce, LLC's ("OJ Commerce" or "OJC") Motion to Strike and Omnibus Motions in Limine, filed on August 16,...	Sep. 17, 2024	Case		9 F.3d
Cited by	233. Mid-America Apartment Communities, Inc. v. Philipson ¶¶ 2024 WL 1178131, *5, W.D.Tenn. Before the Court are multiple motions. First is Plaintiff Mid-America Apartment Communities, Inc.'s ("MAA") Motion for Contempt and Sanctions for Failure to Respond to Subpoena...	Mar. 19, 2024	Case		9 F.3d
Cited by	234. In re AME Church Employee Retirement Fund Litigation ¶¶ 2024 WL 5690587, *3+, W.D.Tenn. On December 13, 2023, Defendant Symetra Life Insurance Company ("Symetra") filed an Amended Motion to Compel Plaintiffs to Produce Erwin and Motorskill Documents or, in the...	Feb. 26, 2024	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	235. Johnson v. Knox County Schools ” 2024 WL 2029196, *3 , E.D.Tenn. This case is before the undersigned pursuant to 28 U.S.C. § 636, the Rules of this Court, and Standing Order 13-02. Now before the Court is Plaintiff's Motion for Limitation on...	Jan. 29, 2024	Case		5 F.3d
Cited by	236. Johnson v. Knox County Schools ” 2023 WL 11277997, *2 , E.D.Tenn. This case is before the undersigned pursuant to 28 U.S.C. § 636, the Rules of this Court, and Standing Order 13-02. Now before the Court is Deponent's [Charles Johnson's] Objection...	Dec. 28, 2023	Case		5 6 F.3d
Cited by	237. Hargis v. Overton County, Tennessee ” 2023 WL 8604139, *7 , M.D.Tenn. This action arises out of the death of Jonathan Mark Hargis in the custody of the Overton County Sheriff's Department (OCSD) at the Overton County Jail in Livingston, Tennessee....	Dec. 12, 2023	Case		9 10 12 F.3d
Cited by	238. Chatman v. Trugreen Limited Partnership ” 2023 WL 8284401, *3 , W.D.Tenn. Before the court by order of reference is a Motion for Sanctions filed by plaintiff Erica Chatman on August 23, 2023. (ECF No. 26.) Defendant TruGreen Limited Partnership...	Nov. 30, 2023	Case		9 10 F.3d
Cited by	239. Perry v. Jenkins & Stiles, LLC ” 2023 WL 12168023, *6 , E.D.Tenn. This case is before the undersigned pursuant to 28 U.S.C. § 636, the Rules of this Court, and Standing Order 13-02. This matter is before the Court on Plaintiff's Motion for...	Oct. 06, 2023	Case		9 10 F.3d
Cited by	240. Ecolab Inc. v. Ridley ” 2023 WL 11762883, *8 , E.D.Tenn. Before the Court is Plaintiffs' Emergency Motion to Compel Production of Data Repositories Reviewed by ChemTreat's Computer Forensic Expert [Doc. 193]. The motion is accompanied...	Apr. 22, 2023	Case		12 F.3d
Cited by	241. Goodale v. Elavon, Inc. ” 2022 WL 17573909, *7 , E.D.Tenn. Before the Court are (1) Plaintiff's "Motion for Spoliation Sanctions Including Application of the 'Missing Evidence Rule'" [Doc. 71], Defendant's "Response in Opposition" [Doc....	Dec. 09, 2022	Case		9 F.3d
Cited by	242. Gammons v. Adroit Medical Systems, Inc. 2022 WL 19731246, *3 , E.D.Tenn. This case is before the undersigned pursuant to 28 U.S.C. § 636, the Rules of this Court, and Standing Order 13-02. Now before the Court is Plaintiff's Motion to Compel Discovery,...	Nov. 16, 2022	Case		—

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	243. St. Clair County Employees' Retirement System v. Acadia Healthcare Company, Inc. ¶ 2022 WL 4095387, *8+ , M.D.Tenn. Lead Plaintiffs Chicago & Vicinity Laborers' District Council Pension Fund and New York Hotel Trades Council & Hotel Association of New York City, Inc., Pension Fund filed a motion...	Sep. 07, 2022	Case		9 10 F.3d
Cited by	244. Tolson v. Washburn 2022 WL 1479942, *6 , M.D.Tenn. Plaintiff Damiean Devon Tolson has filed three motions related to discovery in this civil rights action, including a motion for six subpoenas (Doc. No. 145) and two motions for...	May 10, 2022	Case		9 F.3d
Cited by	245. Franklin v. Shelby County Board of Education ¶ 2021 WL 6066673, *3+ , W.D.Tenn. Before the court on referral for report and recommendation is defendant Shelby County Board of Education's ("the Board") Motion for Sanctions, filed on July 24, 2021. (ECF No. 29.)...	Sep. 28, 2021	Case		9 10 F.3d
Cited by	246. Santoni v. Mueller ¶ 2021 WL 6752311, *3 , M.D.Tenn. Pending before the Court is Plaintiff's Motion for Sanctions, Discovery, and other Relief for Spoliation of Evidence. Docket No. 38. Defendant filed a response (Docket No. 47) and...	Sep. 03, 2021	Case		9 F.3d
Cited by	247. Gomez v. Metropolitan Government of Nashville and Davidson County, Tennessee ¶ 2021 WL 3406687, *2 , M.D.Tenn. In advance of trial, scheduled to begin on August 17, 2021, Defendant Metro has filed motions in limine (Doc. Nos. 83, 95) along with a Motion to Determine Issues for Trial (Doc....	Aug. 04, 2021	Case		9 10 F.3d
Cited by	248. Black v. Costco Wholesale Corporation ¶ 542 F.Supp.3d 750, 753 , M.D.Tenn. LITIGATION — Evidence. Customer failed to establish that store, in failing to retain surveillance footage, acted with specific intent to deprive customer of footage's use.	June 02, 2021	Case		9 10 11 F.3d
Cited by	249. HelloFilters, Inc. v. Hoover ¶ 2021 WL 1213338, *2 , M.D.Tenn. Plaintiffs HelloFilters, Inc., and Mid-South Maintenance of Tennessee, Inc., have filed a motion to dismiss this action without prejudice under Federal Rule of Civil Procedure...	Mar. 31, 2021	Case		9 10 F.3d
Cited by	250. Shufeldt v. Baker, Donelson, Bearman, Caldwell and Berkowitz, P.C. 2020 WL 1532323, *10 , M.D.Tenn. Plaintiff Dr. John J. Shufeldt is the founder of NextCare, Inc., and the former CEO of NextCare Holdings, Inc. (collectively, NextCare). (Doc. No. 72.) In February 2013, Shufeldt...	Mar. 31, 2020	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	251. United States v. Florence  2020 WL 1047377, *4, M.D.Tenn. For more than a year, the United States has sought production from Defendant Dr. David Florence of patient files related to prescriptions it has identified as relevant to this...	Mar. 04, 2020	Case		9 10 F.3d
Cited by	252. Builders Insulation of Tennessee, LLC v. Southern Energy Solutions  2019 WL 1960359, *2, W.D.Tenn. Before the court by order of reference is plaintiff Builders Insulation of Tennessee, LLC's ("Builders") Motion to Compel Production of Documents. (ECF Nos. 89; 102.) Defendants...	May 01, 2019	Case		9 11 12 F.3d
Cited by	253. Nethery v. Quality Care Investors, L.P.  2019 WL 12023210, *3, M.D.Tenn. Plaintiff Thomila Gale Nethery has filed three motions related to discovery in this matter: (1) a motion to strike the affirmative defenses of Defendant Quality Care Investors,...	Feb. 11, 2019	Case		9 10 F.3d
Cited by	254. EPAC Technologies, Inc. v. HarperCollins Christian Publishing, Inc.  2019 WL 109371, *15+, M.D.Tenn. This case is set for a jury trial beginning on January 8, 2019, at 9:00a.m. The Court held a final pretrial conference on January 4, 2019. For the reasons given at that conference,...	Jan. 04, 2019	Case		9 10 F.3d
Cited by	255. Payne v. Genovese  2018 WL 3849864, *2, M.D.Tenn. Plaintiff Larry Payne's motion for a preliminary injunction and temporary restraining order (Doc. No. 2) is before the Magistrate Judge for a report and recommendation. For the...	July 23, 2018	Case		9 10 F.3d
Cited by	 256. EPAC Technologies, Inc. v. HarperCollins Christian Publishing, Inc.  2018 WL 1542040, *15, M.D.Tenn. What began three years ago as an effort to expedite discovery of electronically stored information (ESI) in this breach-of-contract action by appointing a special master has turned...	Mar. 29, 2018	Case		9 10 F.3d
Cited by	257. EPAC Technologies, Inc. v. HarperCollins Christian Publishing, Inc. 2018 WL 3342931, *2, M.D.Tenn. This matter is before the Court on EPAC Technologies, Inc.'s (EPAC's) motion to compel the production of nonprivileged information in three statements taken by the Special Master...	Mar. 29, 2018	Case		9 F.3d
Cited by	258. Technology for Energy Corporation v. Hardy  2018 WL 8460253, *10, E.D.Tenn. The plaintiff, Technology for Energy Corporation ("TEC"), originally filed this diversity action against its former employee, William H. Hardy ("Hardy") and Power Measurements LLC,...	Jan. 22, 2018	Case		9 10 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	259. EPAC Technologies, Inc. v. Thomas Nelson, Inc. ¶¶ 2015 WL 13729725, *6+ , M.D.Tenn. Pending before the Court are a number of discovery issues submitted by EPAC Technologies, Inc. (EPAC). First, EPAC asserts that Thomas Nelson, Inc. (Thomas Nelson) is improperly...	Dec. 01, 2015	Case		9 10 F.3d
Cited by	260. Specialty Medical Products, Inc. v. Hall 2015 WL 13158325, *2 , M.D.Tenn. Pending in this case are two motions related to discovery: Defendants' Motion to Compel Discovery (Docket Entry No. 30) to which Plaintiff has responded (Docket Entry No. 34), and...	Apr. 03, 2015	Case		—
Cited by	261. Savage v. City of Lewisburg, Tenn. ¶¶ 2014 WL 6827329, *2 , M.D.Tenn. On December 1, 2014, one week before trial is scheduled to begin, Plaintiff Denise Savage filed a Third Motion for Sanctions pursuant to Federal Rule of Civil Procedure 37, arguing...	Dec. 03, 2014	Case		9 10 F.3d
Cited by	262. Drexel Chemical Company v. Fluorochemika Corp., LLC ¶¶ 2013 WL 12253042, *1 , W.D.Tenn. Before the court is plaintiff/counter-defendant Drexel Chemical Company's ("Drexel") Motion for Sanctions, filed on October 26, 2012. In support of its motion, Drexel submitted...	May 06, 2013	Case		9 F.3d
Cited by	263. E.E.O.C. v. New Breed Logistics ¶¶ 2012 WL 4361449, *5+ , W.D.Tenn. Before the court by order of reference is plaintiff Equal Employment Opportunity Commission's ("EEOC") Supplemental Motion for Sanctions. (ECF No. 88.) Defendant New Breed...	Sep. 25, 2012	Case		9 F.3d
Cited by	264. Huntsville Golf Development, Inc. v. Brindley Const. Co., Inc. ¶¶ 2011 WL 3420602, *20 , M.D.Tenn. Plaintiff, Huntsville Golf Development, Inc., an Alabama corporation, filed this action under 28 U.S.C. § 1332, the federal diversity jurisdiction statute, against the Defendants:...	Aug. 04, 2011	Case		9 10 12 F.3d
Cited by	265. U.S. v. Carell 2011 WL 2078023, *5 , M.D.Tenn. This case involves the alleged overpayment of Medicare reimbursements to Defendants. On February 4, 2011, fact discovery closed. Thereafter, the parties filed the following...	May 26, 2011	Case		9 10 12 F.3d
Cited by	266. DeBakker v. Hanger Prosthetics & Orthotics East, Inc. ¶¶ 2009 WL 5031319, *4+ , E.D.Tenn. This civil action is before the Court on plaintiff Catherine S. DeBakker's Motion for Sanctions for Spoliation of Evidence [Doc. 48]. Defendants filed a response [Doc. 56] and...	Dec. 14, 2009	Case		9 11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	267. Stratienco v. Chattanooga-Hamilton County Hosp. Authority 2009 WL 2168717, *2, E.D.Tenn. Before the Court are two filings. The first, filed by Defendant Chattanooga–Hamilton County Hospital Authority (“Erlanger”) (Court File No. 388), is an objection to a Memorandum...	July 16, 2009	Case		9 11 F.3d
Cited by	268. United States v. Planned Parenthood Federation of America ” 2022 WL 22861006, *1, N.D.Tex. Before this Court is Relator's Motion to Compel Production and Appointment of Forensic Examiner to Conduct a Review and Examination of Defendants' Computer Systems and Electronic...	Nov. 08, 2022	Case		6 F.3d
Cited by	269. Areizaga v. ADW Corporation ” 2016 WL 9526396, *3, N.D.Tex. Defendant ADW Corporation (“Defendant” or “ADW”) has filed a Motion for a Ruling on Discovery of Plaintiff's Electronically Stored Information. See Dkt. No. 101 (the “Imaging...	Aug. 01, 2016	Case		9 12 F.3d
Cited by	270. Rimkus Consulting Group, Inc. v. Cammarata 688 F.Supp.2d 598, 613, S.D.Tex. LABOR AND EMPLOYMENT - Sanctions. Adverse inference jury instruction was appropriate due to defendants' intentional and bad faith spoliation of evidence.	Feb. 19, 2010	Case		9 F.3d
Cited by	271. Keller v. Cox Radio, Inc. 2009 WL 10700193, *3, W.D.Tex. Before the Court are defendant, Cox Radio, Inc.'s Motion to Quash Subpoena to Non–Party (Docket no. 14), and Patricia Tomallo's Motion to Quash by Non–Party (Docket nos. 20 and...	Apr. 06, 2009	Case		—
Cited by	272. Eagle Air Med Corporation v. Sentinel Air Medical Alliance, LLC 2019 WL 1434970, *2+, D.Utah Before the Court are Defendants Sentinel Air Medical Alliance and Jeffrey Frazier's (collectively, “Sentinel”) Expedited Motion to Stay Effect of the Court's Orders Regarding...	Mar. 29, 2019	Case		—
Cited by	273. Drueding v. Travelers Home and Marine Insurance Company ” 2022 WL 17092736, *7, W.D.Wash. This matter comes before the Court on Defendant Travelers Home and Marine Insurance Company's Motion to Compel and Request for Sanctions, Dkt. No. 29, and Motion for Limited...	Nov. 21, 2022	Case		9 12 F.3d
Cited by	274. Gergawy v. United States Bakery, Inc. ” 2021 WL 6139419, *3+, E.D.Wash. Before the Court is Plaintiffs Magdi and Alisa Gergawy's Motion to Compel, ECF No. 114. The motion was considered without oral argument. Plaintiffs are represented by Ryan Best,...	Aug. 24, 2021	Case		5 12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	275. Hausman v. Holland America Line-U.S.A.  2016 WL 51273, *9 , W.D.Wash. Defendants, Holland America Line-U.S.A. and other related corporate entities (collectively "Defendants"), move to vacate the judgment entered in this case and to dismiss the matter...	Jan. 05, 2016	Case		9 10 F.3d
Cited by	276. Rivera v. Costco Wholesale Corporation 2025 WL 295667, *3 , D.Puerto Rico This is an action brought by pro se plaintiff Ricardo Rivera (hereinafter "Rivera" or "Plaintiff") against defendant Costco Wholesale Corporation ("Costco") under 42 U.S.C. § 1981,...	Jan. 24, 2025	Case		12 F.3d
Cited by	277. In re Energy Conversion Devices, Inc. 2026 WL 1052905, *39 , Bkrtcy.E.D.Mich. This adversary proceeding arises from an exclusive license to use intellectual property, given by a Chapter 11 debtor several years before it filed bankruptcy. Now before the Court...	Apr. 17, 2026	Case		9 F.3d
Cited by	278. In re Wolf  575 B.R. 794, 796 , Bkrtcy.W.D.Mich. BANKRUPTCY — Discovery. "Exceptional circumstances" supported transfer of motion to quash subpoena.	Oct. 12, 2017	Case		9 F.3d
Cited by	279. Visnic v. Seegrid Corporation  2025 WL 3049039, *2+ , Del.Ch. WHEREAS: 1. Plaintiffs assert claims concerning Seegrid Corporation's ("Seegrid") Stock Incentive Plan in its original 2015 form, and as amended in 2016 ("Amended Plan"). Count II...	Oct. 29, 2025	Case		9 12 F.3d
Cited by	280. Goldstein v. Denner  2024 WL 776033, *25 , Del.Ch. Defendant Alexander Denner is the principal of Sarissa Capital, an activist hedge fund. In 2017, he was also a director of Bioverativ, Inc., a publicly traded biopharmaceutical...	Feb. 26, 2024	Case		9 11 F.3d
Cited by	 281. Carlson v. Jerousek  68 N.E.3d 520, 535+ , Ill.App. 2 Dist. TORTS — Discovery. Bus company was not entitled to invert traditional discovery protocol by searching forensic image of driver's computers in personal injury action.	Dec. 15, 2016	Case		9 11 12 F.3d
Cited by	 282. Crosmun v. Trustees of Fayetteville Technical Community College  832 S.E.2d 223, 227+ , N.C.App. EDUCATION — Discovery. Privilege screen provisions of electronic discovery order were inadequate to protect employer's attorney-client and work-product privileges.	Aug. 06, 2019	Case		5 11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Cited by	283. Red Valve, Inc. v. Titan Valve, Inc. ” 2019 WL 396834, *8 , N.C.Super. 3. Plaintiffs filed a Verified Complaint initiating this action on March 14, 2018. Plaintiffs asserted claims against Defendants Titan Valve, Inc. ("Titan"), Ben Payne ("Payne"),...	Jan. 11, 2019	Case		9 11 12 F.3d
Cited by	284. Lipsky v. New Jersey Association of Health Plans, Inc. ” 288 A.3d 1273, 1288+ , N.J.Super.A.D. LITIGATION — Discovery. Trial court abused its discretion by requiring nonparty to turn its employees' cell phones over to plaintiff's expert for forensic examination.	Jan. 18, 2023	Case		9 12 F.3d
Cited by	285. Scott Process Sys., Inc. v. Mitchell ” 2012 WL 6617363, *5 , Ohio App. 5 Dist. COMMERCIAL LAW - Discovery. History of discovery between party and non-party did not necessitate forensic imaging of non-party's electronic devices.	Dec. 17, 2012	Case		5 F.3d
Cited by	286. Cornwall v. N. Ohio Surgical Ctr. ” 923 N.E.2d 1233, 1239 , Ohio App. 6 Dist. HEALTH - Medical Records. Creation of mirror-image of hard drives did not violate doctor-patient privilege in medical wrongful death action.	Dec. 31, 2009	Case		5 F.3d
Cited by	287. Bennett v. Martin ” 928 N.E.2d 763, 774 , Ohio App. 10 Dist. LITIGATION - Discovery. Sanction requiring defendant to produce forensic copies of computer hard drives of officers was not abuse of discretion.	Nov. 24, 2009	Case		5 11 F.3d
Cited by	288. BRASFIELD & GORRIE, LLC, APPELLANT v. DEPARTMENT OF VETERANS AFFAIRS, RESPONDENT 14-1 BCA P 35806 , Civilian B.C.A. Brasfield & Gorrie, LLC (B&G), appellant, moves the Board to impose sanctions against the Department of Veterans Affairs (VA), respondent, for abuse of the discovery process. B&G...	Nov. 13, 2014	Administrative Decision		—
Cited by	289. In the Matter of OSF Healthcare System, a corporation, and Rockford Health System, a corporation, Respondents. 2012 WL 1155395, *2 , F.T.C. On March 15, 2012, Respondents OSF Healthcare System and Rockford Health System ("Respondents") filed a Motion to Compel Deposition and Documents from Complaint Counsel...	Mar. 27, 2012	Administrative Decision		9 F.3d
Cited by	290. In the Matter of OSF Healthcare System, a corporation, and Rockford Health System, a corporation, Respondents. 2012 WL 1561035, *2 , F.T.C. On March 15, 2012, Respondents OSF Healthcare System and Rockford Health System ("Respondents") filed a Motion to Compel Deposition and Documents from Complaint Counsel...	Mar. 27, 2012	Administrative Decision		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Mentioned by	291. In re United States 945 F.3d 616, 626 , 2nd Cir.(Conn.) CRIMINAL JUSTICE — Writs. Granting mandamus was appropriate to address district court's ruling allowing defense counsel's request for leave to argue jury nullification.	Dec. 18, 2019	Case		8 F.3d
Mentioned by	292. In re FirstEnergy Corporation 154 F.4th 431, 440 , 6th Cir.(Ohio) BUSINESS ORGANIZATIONS — Privileges. Mandamus relief was appropriate to preclude enforcement of district court order requiring company to produce internal investigative documents.	Oct. 03, 2025	Case		1 4 F.3d
Mentioned by	293. Lucas v. Telemarketer Calling from (407) 476-5680 2019 WL 3021233, *8 , 6th Cir.(Ohio) Vincent Lucas, a pro se Ohio resident, appeals a district court judgment dismissing his complaint based upon the Telephone Consumer Protection Act ("TCPA"), 47 U.S.C. § 227; the...	May 29, 2019	Case		—
Mentioned by	294. Medical Center at Elizabeth Place, LLC v. Atrium Health System 922 F.3d 713, 732 , 6th Cir.(Ohio) ANTITRUST — Health Care Providers. Healthcare network's panel limitations in contracts with payers were not entirely anticompetitive and thus did not support per se treatment.	Apr. 25, 2019	Case		8 F.3d
Mentioned by	295. John B. v. Emkes 517 Fed.Appx. 409, 411 , 6th Cir.(Tenn.) LITIGATION - Sanctions. Plaintiffs were not entitled to attorney fees given that sanctions order against defendant had been vacated.	Mar. 13, 2013	Case		9 F.3d
Mentioned by	296. In re Sealed Case 716 F.3d 603, 610 , D.C.Cir. CRIMINAL JUSTICE - Grand Jury. Court of Appeals lacked jurisdiction to review denial of motions by subject of grand jury investigation for documents' return.	Mar. 05, 2013	Case		7 F.3d
Mentioned by	297. Estate of Mario Solis, v. County of Riverside 2025 WL 1090945, *2 , C.D.Cal. On January 14, 2025, the parties held an informal discovery conference before this court regarding plaintiffs Estate of Mario Solis and Sara Solis' Notice of Inspection of...	Mar. 11, 2025	Case		9 12 F.3d
Mentioned by	298. Citizens Business Bank v. Mission Bank 2024 WL 3363593, *4 , C.D.Cal. On February 16, 2024, plaintiff Citizens Business Bank filed a motion to compel a forensic examination of certain of defendant Mission Bank's and its employees' electronic devices,...	Mar. 15, 2024	Case		12 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Mentioned by	299. United States v. California Institute of Technology 2020 WL 13547790, *8 , C.D.Cal. Pending before the Court are two discovery motions filed October 28, 2020. Dkt. Nos. 48-50. Both motions were noticed for hearing on November 18, 2020. See id. The November 18,...	Nov. 18, 2020	Case		12 F.3d
Mentioned by	300. United Artists Corporation v. United Artist Studios LLC 2019 WL 9049050, *9 , C.D.Cal. On September 27, 2019, Plaintiff and Counterdefendant United Artists Corporation ("UAC") filed its Motion to Compel Defendants' and Counterclaimants' Further Search for Responsive...	Oct. 07, 2019	Case		—
Mentioned by	301. Newman v. Associated Press 2024 WL 4433465, *4 , S.D.Fla. THIS CAUSE is before the Court on Plaintiffs Noach Newman, Adin Gess, Maya Parizer, Natalie Sanandaji, and Yoni Diller's ("Plaintiffs") Second Oral Motion to Compel, ECF No. [82],...	Oct. 04, 2024	Case		9 F.3d
Mentioned by	302. EOX Technology Solutions v. Galasso 2023 WL 3478445, *2 , S.D.Fla. THIS MATTER came before the Court upon Plaintiff's Renewed Motion for Preservation of Evidence [DE 19] ("Motion"). I have reviewed the Motion, the Response [DE 21] and Reply [DE...	May 16, 2023	Case		9 F.3d
Mentioned by	303. TEC-Serv, LLC v. Crabb 2012 WL 12925239, *4 , S.D.Fla. THIS CAUSE is before the Court on the Motion of Plaintiffs and Third Party Defendants to Compel Production of Computers for Inspection (DE 98), which was referred to United States...	Dec. 26, 2012	Case		—
Mentioned by	304. Wynmoor Community Council, Inc. v. QBE Ins. Corp. 280 F.R.D. 681, 687 , S.D.Fla. INSURANCE - Discovery. Forensic examination of insured non-profit condominium associations' computers by independent computer expert was warranted.	Mar. 05, 2012	Case		—
Mentioned by	305. Daigre v. Davis 2016 WL 11942748, *3 , N.D.Ill. Plaintiff Christian Daigre filed this lawsuit after being terminated from his position as a police officer with the Village of Robbins Police Department. He has sued the Village of...	May 18, 2016	Case		—
Mentioned by	306. Jackson v. E-Z-GO Division of Textron, Inc. 2018 WL 3721385, *5 , W.D.Ky. Defendant, E-Z-GO Division of Textron, Inc. filed a motion requesting the Court to reconsider its motion in limine ruling permitting Plaintiffs to introduce evidence and testimony...	Aug. 03, 2018	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Mentioned by	307. Allstate Insurance Company v. Jewell 2017 WL 9728236, *2 , W.D.Ky. Before the Court is the motion of Plaintiff Allstate Insurance Company, DN 4, for expedited discovery and preservation of evidence, and a renewed and amended motion at DN 15....	Aug. 25, 2017	Case		9 F.3d
Mentioned by	308. Kellar v. Union Pacific Railroad Company 2024 WL 3818535, *6 , E.D.La. Before the Court is a Motion for Spoilation Sanctions (R. Doc 73), filed by Defendant Union Pacific Railroad Company (hereinafter "UP") seeking an Order from this Court imposing...	July 26, 2024	Case		9 F.3d
Mentioned by	309. Ascot Insurance Company v. American River Transportation Company, LLC 2023 WL 11262197, *3 , E.D.La. Before the Court is a Motion for Spoilation Sanctions (R. Doc 70), filed by Lower River Ship Service, LLC, Crescent Ship Service, and Ascot/XL Insurance Company ("Plaintiffs"),...	Dec. 14, 2023	Case		9 F.3d
Mentioned by	310. In re Marquette Transportation Company Gulf-Inland, LLC 2022 WL 393640, *2 , W.D.La. Before the Court is a Motion for Spoilation Sanctions against C&J Marine Service LLC ("C&J"), filed by Marquette Transportation Company Gulf-Inland, LLC ("Marquette"). According...	Feb. 08, 2022	Case		9 10 F.3d
Mentioned by	311. Blank v. Tomorrow PCS, L.L.C. 2018 WL 3136002, *3 , E.D.La. Before the Court are three motions: (1) Plaintiffs' Motion for Sanctions for Spoilation of Evidence [Doc. #116]; (2) Defendants' Motion to Compel [Doc. #125]; and (3) Defendants'...	June 27, 2018	Case		9 F.3d
Mentioned by	 312. Tingle v. Hebert 2018 WL 1726667, *6+ , M.D.La. Before the Court are two motions filed by Troy Hebert and The Louisiana Office of Alcohol and Tobacco Control (the "ATC") (collectively, "Defendants"), a Motion for Contempt of...	Apr. 10, 2018	Case		12 F.3d
Mentioned by	313. Premier Dealer Services, Inc. v. Duhon 2013 WL 6150602, *3 , E.D.La. Before the Court is Defendants, Troy Duhon, ("Duhon") and Premier Automotive Products, LLC's, ("Premier Automotive") (collectively, "Defendants") Motion to Compel Production and...	Nov. 22, 2013	Case		9 F.3d
Mentioned by	314. Hunt v. Marquette Transp. Co. Gulf-Inland, LLC 2011 WL 3924926, *2 , E.D.La. Before the Court is a Motion for Adverse Inference (R. Doc. 41) filed by the defendant, Marquette Transportation Company Gulf-Inland, LLC ("Marquette"), seeking sanctions in the...	Aug. 05, 2011	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Mentioned by	315. Averette v. Transocean Enterprises, Inc. 2010 WL 11707392, *2 , W.D.La. On July 9, 2010, the Court held oral argument on the Motion to Establish Liability of Transocean, or in the Alternative, for Adverse Presumption Against Transocean, filed by...	July 16, 2010	Case		9 F.3d
Mentioned by	316. Guy v. Absopure Water Company 2021 WL 5511722, *1 , E.D.Mich. This matter is before the Court on Plaintiff Justin Guy's motion for an order governing electronically stored information (ESI) protocol (Dkt. 26). Guy requests that the Court...	July 13, 2021	Case		10 F.3d
Mentioned by	317. T-Mobile USA, Inc. v. My Wireless Wholesale, Inc. 2011 WL 13220787, *4 , E.D.Mich. On May 26, 2011, Plaintiff T-Mobile USA, Inc. ("T-Mobile") brought a fourteen-count Complaint against the Defendants alleging the following: Defendants are engaged in, and...	Aug. 19, 2011	Case		9 F.3d
Mentioned by	318. Cardinal Health 200, LLC v. Cellex, Inc. 🟢 2025 WL 2426338, *3 , S.D.Ohio Plaintiff's Motion for Sanctions (Doc. 30) and Defendant's Motion to Compel (Doc. 38) are before the Court. For the following reasons, Plaintiff's Motion is DENIED, and Defendant's...	Aug. 22, 2025	Case		9 F.3d
Mentioned by	319. McElwee v. Bryan Cowdery, Inc. 2022 WL 985664, *3 , S.D.Ohio This matter is before the Court on an ongoing discovery dispute regarding requests for production and interrogatories served by Plaintiffs. (Doc. 60 at 2). Defendants object to the...	Apr. 01, 2022	Case		8 F.3d
Mentioned by	320. Morgan v. City of Columbus, Ohio 2020 WL 5016800, *9 , S.D.Ohio This matter is before the Court on Defendants' City of Columbus, Ohio and Kimberley Jacobs Motion for Summary Judgment. (ECF No. 20). For the following reasons, Defendants' Motion...	Aug. 25, 2020	Case		9 F.3d
Mentioned by	321. M.A. v. Wyndham Hotels & Resorts, Inc. 2020 WL 1983069, *4 , S.D.Ohio This matter is before the Court on Plaintiffs' Objections in related cases M.A. v. Wyndham Hotels & Resorts, Inc., et al. No. 2:19-CV-849 (M.A. ECF No. 154) and H.H. v. G6...	Apr. 27, 2020	Case		—
Mentioned by	322. William Powell Co. v. National Indemnity Co. 2017 WL 1326504, *17 , S.D.Ohio This matter is before the Court on the following motions filed by the parties: (1) defendant The William Powell Company's Motion to Compel and for Sanctions (Doc. 98), defendant...	Apr. 11, 2017	Case		—

Treatment	Title	Date	Type	Depth	Headnote(s)
Mentioned by	323. Dish Network LLC v. Fun Dish, Inc. 2015 WL 12733391, *2 , N.D.Ohio This matter is before the Court on Plaintiff Dish Network's Objection to the Directive of Special Master Phillip Ciano that Plaintiff be sanctioned with an adverse instruction for...	Feb. 18, 2015	Case		9 10 F.3d
Mentioned by	324. Sound Com Corporation v. Connolly 2010 WL 11681839, *2 , N.D.Ohio This matter is before the Court on Plaintiff Sound Com Corp.'s Motion for Sanctions (ECF #23). For the following reasons, the Court grants, in part, Plaintiff's Motion. On Jul 17,...	Mar. 04, 2010	Case		9 F.3d
Mentioned by	325. Doe v. Loyalsock Township School District 2024 WL 1468352, *2+ , M.D.Pa. Currently before the Court is Plaintiff Jane Doe's Motion to Compel Inspection of Electronically Stored Information. Doe's Motion is the latest salvo in an ongoing discovery...	Apr. 04, 2024	Case		9 F.3d
Mentioned by	326. Murray v. Children's Hospital of Philadelphia 2021 WL 5998453, *4+ , E.D.Pa. In this action, Plaintiff, Angela Murray ("Plaintiff"), brought suit against Defendant, Children's Hospital of Philadelphia ("CHOP" or "Defendant"), alleging that CHOP terminated...	Dec. 17, 2021	Case		12 F.3d
Mentioned by	327. Hogue v. American Paper Optics, LLC 2019 WL 1318559, *3 , W.D.Tenn. On September 6, 2017, the plaintiff, Brian Hogue, proceeding pro se, filed this product liability suit in the United States District Court for the Middle District of Tennessee,...	Jan. 14, 2019	Case		9 F.3d
Mentioned by	328. Bustillos v. Kumar 2025 WL 384049, *12 , W.D.Tex. Before the Court are: • Plaintiff Nancy Cano Bustillos's "Motion to Strike Defendants' Expert, Richard V. Baratta" ("Baratta Motion") (ECF No. 100), filed on August 12, 2024;...	Feb. 04, 2025	Case		9 F.3d
Mentioned by	329. Accresa Health LLC v. Hint Health Inc. 2020 WL 6325733, *7 , E.D.Tex. The above-referenced cause of action were referred to the undersigned United States Magistrate Judge for pre-trial purposes in accordance with 28 U.S.C. § 636. The following motion...	Feb. 28, 2020	Case		9 F.3d
Mentioned by	330. Quantlab Technologies Ltd. (BGI) v. Godlevsky 2014 WL 651944, *10 , S.D.Tex. Plaintiffs Quantlab Technologies Ltd. (BGI) and Quantlab Financial, LLC, ("Plaintiffs" or "Quantlab") have brought suit against Defendants Vitaly Godlevsky, Andriy Kuharsky, Anna...	Feb. 19, 2014	Case		9 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
Mentioned by	331. Talon Transaction Technologies, Inc. v. Stoneeagle Services, Inc. 2013 WL 12172924, *1 , N.D.Tex. On February 27, 2013, Plaintiffs Talon Transaction Technologies, Inc. and NexPay, Inc. (collectively, "Plaintiffs") filed an Application for Expedited Computer Imaging,...	May 01, 2013	Case		9 F.3d
Mentioned by	332. Harper v. Caldwell County 2012 WL 13065890, *2 , W.D.Tex. Before the Court are Plaintiff's Motion for Spoliation Sanctions (Clerk's Doc. No. 33), Defendant's Response (Clerk's Doc. No. 47), Plaintiff's Reply (Clerk's Doc. No. 51),...	May 16, 2012	Case		9 F.3d
Mentioned by	333. Ashton v. Knight Transp., Inc. 772 F.Supp.2d 772, 800 , N.D.Tex. TORTS - Sanctions. Appropriate remedy for spoliation of evidence was to strike pleadings and defenses to liability.	Feb. 22, 2011	Case		9 10 12 F.3d
Mentioned by	334. In re Correr 589 B.R. 76, 133 , Bkrtcy.N.D.Tex. BANKRUPTCY — Evidence. Debtor had duty to preserve financial records on computer that had been used for many years to store debtor's financial files.	Aug. 21, 2018	Case		9 F.3d
Mentioned by	335. LendingTools.com, Inc. v. Bankers' Bank of Kansas, N.A. 426 P.3d 536, 536 , Kan.App. These appeals are companions to case No. 116,382 arising out of an action brought by LendingTools.com, Inc. (LendingTools) against the Bankers' Bank of Kansas, N.A. (BBOK) and The...	Sep. 28, 2018	Case		9 F.3d
Mentioned by	336. Besman v. Stafford 2021 WL 5122023, *3 , Ohio App. 8 Dist. {¶ 1} Defendants-appellants Joseph Stafford and Nicole Cruz ("appellants") appeal the trial court's decision to grant plaintiff-appellee Sherri Besman's ("Besman") motion to compel...	Nov. 04, 2021	Case		5 F.3d
—	337. E-DISCOVERY IN THE CLOUD ERA: WHAT'S A LITIGANT TO DO? 5 Hastings Sci. & Tech. L.J. 139 , 189 There has been considerable growth in the adoption of cloud computing in the past few years, with this trend forecasted to continue. In 2008, the total cloud service revenue was...	2013	Law Review	—	9 F.3d
—	338. AVOIDING AN E-DISCOVERY ODYSSEY 36 N. Ky. L. Rev. 491 , 520 Sing to me of the man, Muse, the man of twists and turns driven time and again off course Pity poor Odysseus. Admire him, if you prefer. The heroic warrior, after all,...	2009	Law Review	—	11 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
—	339. PROTECTING SEARCH TERMS AS OPINION WORK PRODUCT: APPLYING THE WORK PRODUCT DOCTRINE TO ELECTRONIC DISCOVERY 161 U. Pa. L. Rev. 2063 , 2099 Introduction. 2064 I. Attorneys Develop Search Terms By Working with the Client to Decide What Is Relevant to the Case. 2066 A. The Purpose and Use of Search Terms. 2067 B....	2013	Law Review	—	—
—	340. Electronic Spoliation of Evidence 3 A.L.R.6th 13 As the use of computers and data processing systems has increased, the scope of information potentially subject to discovery has skyrocketed. It is generally recognized that the...	2005	ALR	—	9 10 F.3d
—	341. Discovery of Deleted E-mail and Other Deleted Electronic Records 27 A.L.R.6th 565 Electronic documents are no less subject to discovery than paper records, and this is true not only of electronic documents that are currently in use, but also of documents that...	2007	ALR	—	12 F.3d
—	342. 20090629 AHLA Seminar Papers 30, E-Discovery and Electronic Medical Records: What Lawyers Need to Know to Advise Their Clients The rules governing E-Discovery mandate a change in litigation stance from purely adversarial, with playing of games expected, to somewhat cooperative The meet & confer is a...	2025	Other Secondary Source	—	11 F.3d
—	343. 20091102 AHLA Seminar Papers 20, The Art of War: E-Discovery in the Electronic Medical Record Environment Caveat: This is not an attempt to cover in detail the e-Discovery rules. This is one geek lawyer's thoughts on how to make e-Discovery work a little better. Some experts project...	2025	Other Secondary Source	—	11 F.3d
—	344. Arkansas Civil Practice and Procedure s 21:16, § 21:16. Preservation of evidence Arkansas Civil Practice and Procedure Massive document shredding in connection with the 2001 collapse of Enron Corporation brought the issue of destruction of evidence to the public's attention and prompted federal...	2026	Other Secondary Source	—	9 F.3d
—	345. Attorney-Client Privilege in the U.S., 2d s 11:33, Mandamus/prohibition Parties can obtain appellate review of orders requiring privilege disclosure through a writ of mandamus. Pursuant to the All Writs Act, federal circuit courts of appeals may issue...	2025	Other Secondary Source	—	4 F.3d
—	346. Attorney-Client Privilege in the U.S., 2d s 11:35, Mandamus/prohibition—No other adequate means of obtaining relief Before a court will issue a writ of mandamus, the petitioner must demonstrate that there are no other adequate means to obtain relief. Thus, the petitioner must demonstrate why...	2025	Other Secondary Source	—	3 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
—	347. Bruner and O'Connor on Construction Law s 7:59, § 7:59. Specifying the forms of production There is little argument that "automated collection methods" made available through the use of litigation software are more efficient than "manual" collection processes...	2023	Other Secondary Source	—	—
—	348. Business and Commercial Litigation in Federal Courts s 33:50, § 33:50. System access issues When assessing how documents are to be produced, courts have on occasion permitted litigants to access opposition parties' computers, rather than limiting access to computerized...	2025	Other Secondary Source	—	9 F.3d
—	349. Business and Commercial Litigation in Federal Courts s 79:14, § 79:14. Document strategy—Document formats Another important issue that arises in the context of document management is the form in which the information will be stored and manipulated. The standard practice, even when...	2025	Other Secondary Source	—	—
—	350. Casey Federal Tax Practice s 16:06, § 16:06. Judicial Review of FPAA Within 90 days after the day on which the FPAA is mailed to the TMP, the TMP, but no other partner, may file a petition for readjustment of partnership items in the Tax Court, the...	2025	Other Secondary Source	—	4 F.3d
—	351. Corporate Counsel's Guide to The Attorney-Client, Work-Product & Self-Evaluative Privileges s 1:86, § 1:86. Privilege and technology—Keyword search protocol In Ford Motor Co. v. Edgewood Properties, Inc., 257 F.R.D. 418 (D.N.J. 2009), the parties were involved in litigation concerning contaminated debris the defendant had been hired to...	2024	Other Secondary Source	—	—
—	352. Corporate Counsel's Guide to The Attorney-Client, Work-Product & Self-Evaluative Privileges s 1:87, § 1:87. Privilege and technology—Websites In Victor Stanley, Inc. v. Creative Pipe, Inc., 250 F.R.D. 251, 70 Fed. R. Serv. 3d 1052 (D. Md. 2008), discussed previously, the court examined the keyword search protocol adopted...	2024	Other Secondary Source	—	9 11 F.3d
—	353. Corporate Counsel's Guide to Legal Audits & Investigations s 5:70, § 5:70. Privilege and technology—Keyword search protocol In Crosmun v. Trustees of Fayetteville Technical Community College, 266 N.C. App. 424, 832 S.E.2d 223, 369 Ed. Law Rep. 1071 (2019), the plaintiffs were formerly employed by the...	2025	Other Secondary Source	—	9 11 F.3d
—	354. Corporate Counsel's Guide to Legal Audits & Investigations s 5:71, § 5:71. Privilege and technology—Format of electronic records In Ford Motor Co. v. Edgewood Properties, Inc., 257 F.R.D. 418 (D.N.J. 2009), the parties were involved in litigation concerning contaminated debris the defendant had been hired to...	2025	Other Secondary Source	—	—

Treatment	Title	Date	Type	Depth	Headnote(s)
—	355. Discovery Proceedings in Federal Court s 23:1, § 23:1. Final order rule; Application to discovery orders, generally 28 U.S.C.A. § 1291 grants the courts of appeals, other than the United States Court of Appeals for the Federal Circuit, jurisdiction of appeals from all final decisions of the...	2026	Other Secondary Source	—	6 7 F.3d
—	356. Discovery Proceedings in Federal Court s 23:5, § 23:5. Orders imposing sanctions for abuse of discovery—Contempt orders There is a distinction between criminal and civil contempt citations entered as sanctions for abuse of discovery. Criminal contempt proceedings have for their purpose the...	2026	Other Secondary Source	—	7 F.3d
—	357. Discovery Proceedings in Federal Court s 22:10.50, § 22:10.50. Spoliation of evidence Yacht purchaser's replacement of boom during the litigation, but before seller could conduct sea trials, was not bad-faith spoliation of evidence, and thus, an adverse inference...	2026	Other Secondary Source	—	9 10 11 F.3d
—	358. eDiscovery & Digital Evidence s 11:8, § 11:8. Grounds for compelling computer forensics Increasingly, courts have focused on the central role that the science of computer forensics has in the implementation of the rules of evidence and procedure today. In Commercial...	2025	Other Secondary Source	—	—
—	359. eDiscovery & Digital Evidence s 6:15, § 6:15. Inspection of computer systems At some point, it may be necessary for a discovering party to seek direct access to a responding party's computer system, although today imaging is the preferred manner of access...	2025	Other Secondary Source	—	5 F.3d
—	360. eDiscovery for Corporate Counsel s 2:4, § 2:4. The Sedona Conference In March 2003, around the same time Judge Scheindlin began issuing her opinions in Zubulake, the Sedona Conference, a not-for-profit legal think tank, released for public comment a...	2026	Other Secondary Source	—	9 F.3d
—	361. eDiscovery for Corporate Counsel s 8:11, § 8:11. Understanding the data universe available for investigation—Deleted data/data fragments Certain investigations may require examining a computer hard drive to identify and, to the extent possible, restore for examination deleted files or file fragments. This requires...	2026	Other Secondary Source	—	11 F.3d
—	362. Electronic Discovery and Records Management Guide s 14:22, § 14:22. Databases While discovery frequently centers on e-mail messages and digital versions of documents, in many cases e-discovery requests include databases. A digital database is a collection of...	2025	Other Secondary Source	—	5 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
—	363. Employment Discrimination Law and Litigation s 14:45, § 14:45. Cellphone privacy in discovery—Forensic examination is a drastic and intrusive measure Cellphones are an essential part of daily life, and frequent usage has produced large amounts of personal data. It is unavoidable that some of this data, such as email, text...	2026	Other Secondary Source	—	9 12 F.3d
—	364. Engineering Evidence s 2:4, § 2:4. Preservation of evidence In a case highlighting the need to properly preserve evidence a contractor fell to the ground while climbing a wooden ladder. One side rail of the ladder had allegedly snapped...	2026	Other Secondary Source	—	9 10 F.3d
—	365. Federal Appeals Jurisdiction and Practice, 3d s 8:6, § 8:6. Mandamus and prohibition in civil cases—Discovery disputes Discovery is a matter largely within the discretion of the trial courts. Discovery decisions are accordingly rarely granted review by writ. Even where a statute would appear to...	2024	Other Secondary Source	—	7 F.3d
—	366. Federal Procedural Forms s 23:390, § 23:390. Scope of discovery Fed. R. Civ. P. 34 is subject to the limitations imposed on the scope of discovery by Fed. R. Civ. P. 26(b), which defines the scope of discovery generally and is expressly cited...	2026	Other Secondary Source	—	10 11 12 F.3d
—	367. Federal Procedure, Lawyers Edition s 26:894, § 26:894. Review of discovery order on appeal from final judgment; effect of harmless error doctrine When a case reaches the stage of final judgment, a discovery order can then be reviewed. However, the reversal of a discovery order is difficult to obtain because of the harmless...	2026	Other Secondary Source	—	8 F.3d
—	368. Federal Procedure, Lawyers Edition s 26:911, § 26:911. Appellate review of discovery orders by writ of mandamus, generally Discovery orders are ordinarily not reviewable by mandamus. However, in the wake of the United States Supreme Court's ruling in Schlagenhauf, it has been established that in...	2026	Other Secondary Source	—	2 3 8 F.3d
—	369. Federal Procedure, Lawyers Edition s 26:916, § 26:916. Appellate review of discovery-related protective orders and rulings by writ of mandamus Mandamus may be used as a means of immediate appellate review of orders compelling the disclosure of documents and information claimed to be protected from disclosure by privilege...	2026	Other Secondary Source	—	—
—	370. Federal Procedure, Lawyers Edition s 42:2381, § 42:2381. Writs in aid of jurisdiction in health, education, or welfare cases; mandamus The Supreme Court and all other courts established by act of Congress may issue all writs necessary or appropriate in aid of their respective jurisdictions and agreeable to the...	2026	Other Secondary Source	—	5 F.3d

Treatment	Title	Date	Type	Depth	Headnote(s)
—	371. Federal Rules of Civil Procedure, Rules and Commentary s 34:13, Direct access to computer files Parties sometimes request direct access to another party's computer files. In general, this situation is covered by the presumption that responding parties are entitled to search...	2026	Other Secondary Source	—	9 F.3d
—	372. Fundamentals of Litigation Practice s 11:27, § 11:27. Relevancy in Discovery—Reasonable Limits Discovery does have its limits. The Supreme Court has reminded the trial courts to "not neglect their power to restrict discovery where appropriate." The rules do not permit a...	2025	Other Secondary Source	—	12 F.3d
—	373. Handbook Of Federal Civil Discovery and Disclosure E-Discovery and Records s 6:26, § 6:26. Requests to inspect—Generally Handbook Of Federal Civil Discovery and Disclosure E-Discovery and Records There are many types of evidence that can only be recovered if one has access to a computer system. If there is a concern that the responding party's search of its computer was not...	2024	Other Secondary Source	—	11 F.3d
—	374. 2009 Health Law Handbook s 14:13, Recipients and a medicaid plan In John B. v. Goetz, Medicare & Medicaid 302216, the court examines another long and tortured discovery dispute between Medicaid recipients and Tennessee's Medicaid program. This...	2014	Other Secondary Source	—	10 F.3d
—	375. Kentucky Practice, Rules of Civil Procedure Ann. R 26.02, Rule 26.02. Scope of discovery (Amended by Order 2004-5, eff. 1-1-05; prior amendments eff. 1-1-78, 10-1-71; adopted eff. 7-1-53) Source: Former Fed. R. Civ. P. 26(b) (prior to 1993 and 2000 amendments to the...	2025	Other Secondary Source	—	5 10 11 F.3d
—	376. Litigating Age Discrimination Cases s 7:3, § 7:3. Electronically stored information (ESI) Modern employers store most of their records electronically, communicate through e-mails, and use the Internet for public relations. Today's applicants and employees are also...	2024	Other Secondary Source	—	11 F.3d
—	377. Litigation Management Handbook s 7:30, § 7:30. Managing electronic discovery—The scope of electronic discovery Common targets of this discovery are a party's past e-mails, word-processing documents and such data as financial spreadsheets, customer lists and personnel records. Standard...	2026	Other Secondary Source	—	12 F.3d
—	378. Litigation Management Handbook s 7:31, § 7:31. Managing electronic discovery—Electronic discovery issues The following issues sometimes arise in electronic discovery. Electronic discovery has the potential of being very costly. Its costs arise from the large amount of information...	2026	Other Secondary Source	—	9 F.3d

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—	379. Medicare and Medicaid Claims and Procedures s 31:1, § 31:1. Overview Whenever legally appropriate, judicial review may be had in both federal courts and state courts in Medicaid disputes. Judicial review of state appeal procedures may be available...	2025	Other Secondary Source	—	5 11 F.3d
—	380. 5 Nebraska Practice s 24:17, § 24:17. Electronically stored information—Access for forensic imaging Nebraska Practice Series - Nebraska Civil Procedure Just like paper discovery, electronic discovery requires a degree of trust. The requesting party must trust the responding party to produce the requested documents. Sometimes the...	2026	Other Secondary Source	—	—
—	381. O'Connor's Federal Civil Forms FORM 6A:18, Response to motion to compel discovery responses Fed. R. Civ. P. 26(b), 30, 31, 33, 34, 37(a) "Motion to compel discovery," O'Connor's Federal Rules * Civil Trials, ch. 6-A, § 14 (2026 ed.); "Motion to compel," O'Connor's...	2026	Other Secondary Source	—	9 F.3d
—	382. O'Connor's Federal Rules * Civil Trials CH 6-C s 4, § 4. Preparing for electronic discovery A party should prepare for electronic discovery before litigation begins. See Sedona Conference, Sedona Principles, Third Edition, 19 Sedona Conf.J. at 93 (Principle 5) (parties...	2026	Other Secondary Source	—	9 F.3d
—	383. O'Connor's Federal Rules * Civil Trials CH 6-C s 9, § 9. ESI & specific types of discovery ESI, or information about it, can be requested using any discovery method. Because of the unique nature of ESI, discovery requests involving ESI should be as specific as possible,...	2026	Other Secondary Source	—	5 F.3d
—	384. O'Connor's Federal Rules * Civil Trials CH 6-A s 14, § 14. Motion to compel discovery A party may ask the court for an order compelling disclosure or discovery. FRCP 37(a)(1). When a party seeks to compel discovery from a party, a motion to compel must be made in...	2026	Other Secondary Source	—	9 F.3d
—	385. O'Connor's Federal Rules * Civil Trials CH 6-A s 16, § 16. Review of discovery orders Discovery orders are ordinarily interlocutory and may be reviewed on appeal only after a final judgment. See Cunningham v. Hamilton Cty., 527 U.S. 198, 204–05 (1999); Church of...	2026	Other Secondary Source	—	4 F.3d
—	386. O'Connor's Federal Rules * Civil Trials CH 6-C s 11, § 11. Resolving ESI disputes A party can ask the court for an order (either for protection or to compel) to resolve discovery disputes about ESI. A producing party can seek a protective order on issues...	2026	Other Secondary Source	—	12 F.3d

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—	387. Overly on Electronic Evidence in California s 3:5, § 3:5. Demands for inspection of other physical evidence In addition to documents, a demand under § 2031.010 of the Code of Civil Procedure can require a party to permit tangible things in its possession, custody, or control to be...	2025	Other Secondary Source	—	9 11 12 F.3d
—	388. Records Retention s 8:14, § 8:14. Use of electronic records in litigation—Issues in discovery—Keyword searches In Custom Hardware Engineering & Consulting, Inc. v. Dowell, 2012 WL 10496 (E.D. Mo. 2012), the plaintiff brought an action against the defendants for breach of contract, copyright...	2026	Other Secondary Source	—	9 11 F.3d
—	389. State Computer Law: Commentary, Cases & Statutes s 8:5127, § 8:5127. Discovery of computerized information State Computer Law: Commentary, Cases & Statutes The court declined to authorize a forensic examination of defendant's computer system, finding that plaintiff had not provided reliable information to show that defendant's...	2025	Other Secondary Source	—	5 F.3d
—	390. Tenn. Prac., Rules of Civil Procedure R 26, Rule 26. GENERAL PROVISIONS GOVERNING DISCOVERY When considering the appropriateness of discovery requests, courts are guided by the time-honored rule that the public has a right to every man's evidence. Funk v. Scripps Media,...	2026	Other Secondary Source	—	5 6 11 F.3d
—	391. Tenn. Prac., Rules of Civil Procedure R 37, Rule 37. FAILURE TO MAKE OR COOPERATE IN DISCOVERY: SANCTIONS Although a sanction for a discovery violation must fit the offense, trial judges have wide discretion in determining the sanction to be imposed. Justice v. Board of Professional...	2026	Other Secondary Source	—	9 10 11 F.3d
—	392. Tenn. Prac., Rules of Civil Procedure s 26:3, AC 26:3. Discovery of electronically stored documents Tenn. R. Civ. P. Rule 26.02(1) addresses the discovery of information that is stored electronically and the protection of such material if it is not reasonably accessible or if its...	2026	Other Secondary Source	—	9 10 12 F.3d
—	393. Wage and Hour Law: Compliance & Practice s 20:26, § 20:26. Electronic discovery in wage and hour cases Electronic discovery is becoming an important part of litigating FLSA cases. The use of electronic discovery and the effectiveness of such discovery varies even among FLSA cases....	2025	Other Secondary Source	—	9 12 F.3d

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—	394. Wright & Miller: Federal Prac. & Proc. s 2006, § 2006. Appellate Review of Discovery Orders Wright & Miller: Federal Prac. & Proc. A discovery order, as such, is normally merely an interlocutory order in the course of proceedings and is not appealable. The rule is otherwise if the only proceeding pending is...	2025	Other Secondary Source	—	6 F.3d
—	395. Wright & Miller: Federal Prac. & Proc. s 3935.3, § 3935.3. Mandamus Use in Civil Action —Discovery Orders Wright & Miller: Federal Prac. & Proc. Mandamus has shone prominently in the constellation of appellate devices to review discovery orders. The appeal doctrines that have been discussed at length in earlier sections...	2025	Other Secondary Source	—	4 F.3d
—	396. 125 Am. Jur. Proof of Facts 3d 93, Spoliation of Electronic Evidence Am. Jur. Proof of Facts 3d In 1996, the Advisory Committee on Civil Rules ("Advisory Committee") first became aware of problems with computer-based discovery. At that time, the Advisory Committee...	2025	Other Secondary Source	—	9 10 11 F.3d
—	397. 126 Am. Jur. Proof of Facts 3d 281, Managing Metadata in Litigation Matters Am. Jur. Proof of Facts 3d Metadata is data typically stored electronically that describes characteristics of electronically stored information (ESI) and is found in different places in different forms....	2025	Other Secondary Source	—	—
—	398. 189 Am. Jur. Trials 407, Litigation of Discovery of Information Contained on Nonparty Employee's Personal Cellular Phone or Electronic Device Am. Jur. Trials This article discusses discovery of information from nonparty employees' personal electronic devices under Fed. R. Civ. P. 34 and substantially similar state rules of civil...	2026	Other Secondary Source	—	11 F.3d
—	399. CJS Federal Civil Procedure s 694, § 694. Relevancy of documents and things sought to be produced in federal civil action CJS Federal Civil Procedure Discovery by production and inspection of documents and tangible things may be had of matters relevant to the subject matter of the action which are reasonably calculated to lead...	2026	Other Secondary Source	—	9 10 F.3d
—	400. SUMMONING THE RAIN Overcoming Challenges to the Use of Social Networking Information 9 NO. 4 ABA SciTech Law. 38 , 43 A major function of the legal profession is preserving, collecting, and then testing the information of society, so as to resolve disputes. An exponentially increasing amount of...	2013	Law Review	—	—

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—	401. FEDERAL RULES UPDATE 79 The Advoc. (Texas) 103 , 114 I. INTRODUCTION. 1 II. COOPERATION. 1 III. CASE MANAGEMENT. 1 A. Rule 4(m) Summons (2015 and 2016 amendments). 1 B. Rule 6(d): Computing and Extending Time (2016 Amendment). 1 C....	2017	Law Review	—	9 10 F.3d
—	402. PRACTICAL E-DISCOVERY ISSUES 51 The Advoc. (Texas) 37 , 40 THIS ARTICLE ADDRESSES PRACTICAL ISSUES related to e-discovery. It suggests stipulations designed to narrow disputes over the discovery of electronically stored information...	2010	Law Review	—	11 F.3d
—	403. ATTORNEY NEGLIGENCE AND NEGLIGENT SPOILIATION: THE NEED FOR NEW TOOLS TO PROMPT ATTORNEY COMPETENCE IN PRESERVATION 51 Akron L. Rev. 607 , 637 I. Introduction. 608 II. Attorney Competence and Negligent Spoliation. 612 A. The Relative Simplicity of Preservation in the Past. 612 B. The High Level of Attorney Competence...	2017	Law Review	—	9 F.3d
—	404. E-DISCOVERY AND ANTITRUST LITIGATION 26-FALL Antitrust 58 , 58+ EVER SINCE THE SUPREME COURT first articulated the "rule of reason" in 1918, antitrust cases have been famously complex and expensive. The complexity and expense are only...	2011	Law Review	—	9 F.3d
—	405. THE FUTURE OF EDISCOVERY IN TENNESSEE 1 Belmont L. Rev. 181 , 200 Introduction. 182 I. The Modern Digital World. 185 A. Moore's Law. 186 B. Kryder's Law. 187 C. Butters' Law of Photonics. 188 D. Metcalfe's Law. 189...	2014	Law Review	—	—
—	406. "THE PERFECT IS THE ENEMY OF THE GOOD": THE CASE FOR PROPORTIONALITY RULES INSTEAD OF GUIDELINES IN CIVIL E-DISCOVERY 43 Cap. U. L. Rev. 153 , 200 Rules-not mere guidelines-order civil litigation. However, in the context of electronic discovery, judges have been remarkably reluctant to treat these rules as anything more than...	2015	Law Review	—	—
—	407. SPECIAL MASTERS AND E-DISCOVERY: THE INTERSECTION OF TWO RECENT REVISIONS TO THE FEDERAL RULES OF CIVIL PROCEDURE 30 Cardozo L. Rev. 347 , 405+ This article will address the fortuity of two recent revisions to the Federal Rules of Civil Procedure. The first, which occurred in 2003, was the much-needed update of Rule 53,...	2008	Law Review	—	5 6 11 F.3d

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—	408. PAROL METADATA: NEW BOILERPLATE MERGER CLAUSES AND THE ADMISSIBILITY OF METADATA UNDER THE PAROL EVIDENCE RULE 4 Case W. Reserve J.L. Tech. & Internet 237 , 274+ How does metadata interact with the parol evidence rule? The parol evidence rule often determines the success or failure of contract litigation by excluding evidence extrinsic to a...	2012	Law Review	—	—
—	409. AVOIDING SPOILIATION-THE IMPACT OF NEW BUSINESS PROCESSES ON RECORD RETENTION AND LITIGATION HOLD PROCESSES 33 Corp. Couns. Rev. 173 , 189 Introduction. 173 New Technologies Driving Changes in Business Processes. 174 Basics of Spoliation, Records Retention, and Litigation Holds. 175 Spoliation. 175 Records...	2014	Law Review	—	9 F.3d
—	410. JUST EMAIL ME-THE ART OF COMMUNICATION IN PRESENT TIMES AND ITS IMPACT ON CLAIMS HANDLING AND LITIGATION 18 Fidelity L.J. 1 , 20+ Think back and reminisce a bit to the days when eye-to-eye communications were the norm, not the exception. Take a look and really take it in the next time you are walking down the...	2012	Law Review	—	9 F.3d
—	411. NOT SO FAST ... "SEND" IS A FOUR-LETTER WORD: THE IMPLICATIONS OF ELECTRONIC DISCOVERY 15 Fidelity L.J. 149 , 164+ Are you old enough to recall the days of white out, electric typewriters, even oversized car phones, not to mention telegrams? How about the first time you watched in amazement as...	2009	Law Review	—	9 F.3d
—	412. MEDIATED INVESTIGATIVE E-DISCOVERY 4 Fed. Cts. L. Rev. 77 , 98 The standard methodology used by parties today in formulating and responding to discovery requests is "keyword searching." But this methodology is ineffective: the percentage of...	2010	Law Review	—	—
—	413. Electronic Discovery - Copying Hard Drive 26 Fed. Litigator 13 , 13 F.R.C.P. 26(b)(1), 34(a)(1) Han v. Futurewei Technologies, Inc. 2011 WL 4344301 (S.D.Cal. 2011) Before a court will order "mirror imaging" of a computer hard drive, the party...	2011	Law Review	—	5 6 F.3d
—	414. UNLOCKING THE MOBILE FILING CABINET: THE EXPANDING ROLE OF PDA DISCOVERY 90-DEC Fla. B.J. 8 , 8 The letters "PDA" are no longer synonymous with "public displays of affection." These days, "personal data assistants" are all the rage. In just a short time, PDAs...	2016	Law Review	—	9 F.3d

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—	415. ADULT SUPERVISION? APPELLATE REVIEW, MANDAMUS, AND THE FEDERAL RULES IN MULTIDISTRICT LITIGATION 50 Fla. St. U. L. Rev. 187 , 217+ When a disaster of nationwide importance is dropped into the lap of a single federal judge as a multidistrict litigation (MDL), we expect a lot. The judge is supposed to...	2022	Law Review	—	2 4 F.3d
—	416. THE PRESERVATION OBLIGATION: REGULATING AND SANCTIONING PRE-LITIGATION SPOILIATION IN FEDERAL COURT 79 Fordham L. Rev. 2005 , 2034+ The issue of discovery misconduct, specifically as it pertains to the pre-litigation duty to preserve and sanctions for spoliation, has garnered much attention in the wake of...	2011	Law Review	—	9 10 11 F.3d
—	417. A RIGHT TO PRIVACY FOR MODERN DISCOVERY 29 Geo. Mason L. Rev. 675 , 727 Abstract. In recent years, the Supreme Court found that a person has a Fourth Amendment right to privacy in historical cell phone records and GPS information because the nature of...	2022	Law Review	—	5 F.3d
—	418. SHOULD THE SCOPE OF WORK PRODUCT IMMUNITY AND THE DUTY TO PRESERVE BE COEXTENSIVE?: ANTICIPATING LITIGATION IN A WORLD OF ELECTRONICALLY STORED INFORMATION 53 How. L.J. 467 , 512+ INTRODUCTION. 468 I. INTERPRETING "IN ANTICIPATION OF LITIGATION": THE TRADITIONAL APPLICATIONS OF THE DOCTRINES OF WORK PRODUCT AND PRESERVATION. 472 A. Attorney Work...	2010	Law Review	—	9 12 F.3d
—	419. GARBAGE IN, GARBAGE OUT: IS SEED SET DISCLOSURE A NECESSARY CHECK ON TECHNOLOGY-ASSISTED REVIEW AND SHOULD COURTS REQUIRE DISCLOSURE? 2018 U. Ill. J.L. Tech. & Pol'y 197 , 220 C1-2Table of Contents I. Introduction. 197 II. Background. 200 III. Analysis. 206 A. Courts Have Split on Whether Seed Sets Should be Disclosed, in Part Because TAR Does Not...	2018	Law Review	—	—
—	420. THE FEDERAL RULES OF CIVIL PROCEDURE, ELECTRONIC HEALTH RECORDS, AND THE CHALLENGE OF ELECTRONIC DISCOVERY 28 J.L. & Health 379 , 405 I. Introduction 379 II. The World of Discovery 382 III. Spoliation 385 IV. Zubulake v. UBS Warburg, L.L.C. 387 V. Updating the Federal Rules of Civil Procedure 389 VI. "Meet and...	2015	Law Review	—	—
—	421. THE BURDEN OF PRIVACY IN DISCOVERY 105 Judicature 66 , 69+ With the proliferation of social media platforms and other new technologies has come a renewed legal focus on privacy. Most of that focus has centered on data collection, storage,...	2021	Law Review	—	5 F.3d

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—	422. HEALTH CARE REFUGEES 6 Loy. U. Chi. Int'l L. Rev. 339 , 365+ Developed nations of the world have long helped refugees who have been forced to flee their homes because of natural disasters, wars, genocides, and other catastrophes. Developed...	2009	Law Review	—	2 5 F.3d
—	423. THE DECISION TO COMPEL UNRESTRICTED FORENSIC IMAGING: A NOTE DISCUSSING JOHN B. V. GOETZ 36 N. Ky. L. Rev. 629 , 654+ Evidence gathered during discovery can determine the outcome of litigation. The amended Federal Rules of Civil Procedure now recognize electronic discovery as integral to the...	2009	Law Review	—	5 F.3d
—	424. LEGALLY CORRECT BUT TECHNOLOGICALLY OFF THE MARK 9 Nw. J. Tech. & Intell. Prop. 1 , 9 Today's judges face numerous challenges in determining the truth of the matter at hand, but none is more challenging than ruling on issues that pivot on digital evidence. Gone are...	2010	Law Review	—	—
—	425. THE UNWRITTEN NORMS OF CIVIL PROCEDURE 118 Nw. U. L. Rev. 853 , 926	2024	Law Review	—	—
—	426. TWO BIRDS WITH ONE STONE THROUGH MDL INTERLOCUTORY APPEAL: LESSONS FROM RULE 23(F) 118 Nw. U. L. Rev. Online 1 , 25 Abstract--Debates rage over whether multidistrict litigation, or MDL, should have a mechanism for interlocutory appeal. Though the territory on this topic is well trod, the two...	2023	Law Review	—	4 F.3d
—	427. THE BIG DATA COLLECTION PROBLEM OF LITTLE MOBILE DEVICES 21 Rich. J.L. & Tech. 10 , 14+ There should be little question that mobile device-based data are discoverable if relevant. However, as was the case with ordinary computer-based data a decade or more ago, there...	2015	Law Review	—	5 9 11 F.3d
—	428. ELECTRONICALLY STORED INFORMATION AND THE NEW JERSEY COURT RULES 39 Rutgers Computer & Tech. L.J. 1 , 29 I. Introduction. 1 II. Background. 4 A. The Texas Model for E-Discovery. 4 III. The 2006 E-Discovery Amendments to the Federal Rules of Civil Procedure. 5 A. Federal Cases. 9...	2013	Law Review	—	9 F.3d
—	429. E-DISCOVERY'S THREAT TO CIVIL LITIGATION: REEVALUATING RULE 26 FOR THE DIGITAL AGE 63 Rutgers L. Rev. 521 , 597+ Introduction. 522 A. The Problem. 522 B. Attempts to Solve the Problem. 532 C. Proposed Solution. 538 I. The History of Discovery. 540 A. American Discovery. 542 B. The...	2011	Law Review	—	2 4 8 F.3d

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—	430. 20 Sedona Conf. J. 415, THE BURDEN OF PRIVACY IN DISCOVERY 20 Sedona Conf. J. 415 , 425+ Traditionally, the scope of discovery under Rule 26 of the Federal Rules of Civil Procedure and its state law analogues was defined exclusively in terms of relevance, with...	2019	Law Review	—	5 F.3d
—	431. 19 Sedona Conf. J. 745, META-DISCOVERY: ALLEGATIONS OF AN INCOMPLETE DOCUMENT PRODUCTION 19 Sedona Conf. J. 745 , 766 The federal courts have not yet provided a clear standard to apply to cases where a requesting party alleges that the producing party has made an incomplete production. The Texas...	2018	Law Review	—	9 12 F.3d
—	432. 10 Sedona Conf. J. 377, MANCIA v. MAYFLOWER BEGINS A PILGRIMAGE TO THE NEW WORLD OF COOPERATION 10 Sedona Conf. J. 377 , 386 The Sedona Conference® Cooperation Proclamation was first announced on October 7, 2009. One week later, Magistrate Judge Paul W. Grimm became the first judge to cite and endorse...	2009	Law Review	—	11 F.3d
—	433. 5 Seton Hall Circuit Review 99, FIRST IMPRESSIONS 5 Seton Hall Circuit Rev. 99 , 136+ The following pages contain brief summaries, drafted by the members of the Seton Hall Circuit Review, of issues of first impression identified by a federal court of appeals opinion...	2008	Law Review	—	5 6 11 F.3d
—	434. E-DISCOVERY PRACTICE, THEORY, AND PRECEDENT: FINDING THE RIGHT POND, LURE, AND LINES WITHOUT GOING ON A FISHING EXPEDITION 56 S.D. L. Rev. 25 , 85+ E-discovery, although not necessarily a "new" concept, is an up-and-coming area of litigation procedure. Despite its prevalence in both civil and criminal matters, however, many...	2011	Law Review	—	9 11 F.3d
—	435. CALL OFF THE U.S. MARSHALS: E-DISCOVERY CLASH HEATS UP IN THE SIXTH CIRCUIT 44-DEC Tenn. B.J. 17 , 17+ On June 26, 2008, the Sixth Circuit issued an important decision in the quickly-growing body of law governing electronic discovery. It exercised the rare power of mandamus, finding...	2008	Law Review	—	5 6 11 F.3d
—	436. DEALING WITH DEMANDS FOR PHONE INSPECTIONS AND SOCIAL MEDIA ACCOUNT DATA DURING CLAIM INVESTIGATIONS 49-SPG Brief 32 , 32 The typical first-party property insurance policy requires the insured to "cooperate" with the insurer's investigation in the event of loss or to perform other postloss duties...	2020	Law Review	—	9 F.3d

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—	437. USING COMPUTER FORENSICS TO ENHANCE THE DISCOVERY OF ELECTRONICALLY STORED INFORMATION 7 U. St. Thomas L.J. 727 , 748+ "The duty to preserve relevant evidence is fundamental to federal litigation." Failing to preserve and produce electronically stored information is costly for attorneys and...	2010	Law Review	—	9 10 11 F.3d
—	438. THE PRIVACY PARADOX IN DISCOVERY 26 Vand. J. Ent. & Tech. L. 615 , 654+ US citizens enjoy strong protection against criminal searches pursuant to the Fourth Amendment, but they must produce a diary entry from a bedroom drawer or a text message to a...	2024	Law Review	—	—
—	439. 120408 American Bankruptcy Institute 1097, Concurrent General Session Getting Ahead of the E-discovery Curve The E-Discovery Amendments to the Federal Rules of Civil Procedure: The 2007 Restyled Version and 2006 Committee Notes American Bankruptcy Institute (3) Contents of the Order. (B) Permitted Contents. The scheduling order may: (iii) provide for disclosure or discovery of electronically stored information; (iv) include any...	2008	Other Secondary Source	—	5 F.3d
—	440. NO GOOD DEED GOES UNPUNISHED: THE UNINTENDED CONSEQUENCES OF USING YOUR PERSONAL DEVICES FOR WORK Reproduced with permission from Digital Discovery & e-Evidence, 12 DDEE 20, 09/27/2012. Copyright _ 2012 by The Bureau of National Affairs, Inc. (800-372-1033) http://www.bna.com...	2014	Other Secondary Source	—	—
—	441. ELECTRONIC DISCOVERY: TRENDS AND DEVELOPMENTS UNDER THE FEDERAL RULES OF CIVIL PROCEDURE AND BEYOND • Bit [a binary digit-either 0 or 1] • Byte [8 bits] • Kilobyte [1,000 bytes] • Megabyte [1,000,000 bytes] • Gigabyte [1,000,000,000] • Terabyte [10 bytes] See McNulty v. Reddy Ice...	2011	Other Secondary Source	—	—
—	442. ELECTRONIC DISCOVERY: TRENDS AND DEVELOPMENTS UNDER THE FEDERAL RULES OF CIVIL PROCEDURE AND BEYOND • Bit [a binary digit-either 0 or 1] • Byte [8 bits] • Kilobyte [1,000 bytes] • Megabyte [1,000,000 bytes] • Gigabyte [1,000,000,000] • Terabyte [10 bytes] See McNulty v. Reddy Ice...	2011	Other Secondary Source	—	—
—	443. DISCOVERY IN ENVIRONMENTAL LITIGATION ● Voluminous and distributed ● Fragile yet persistent ● Capable of taking many forms ● Contains non-apparent information ● Created and maintained in complex systems ● Desktop...	2010	Other Secondary Source	—	6 F.3d

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—	444. DISCOVERY IN ENVIRONMENTAL LITIGATION • Voluminous and distributed • Fragile yet persistent • Capable of taking many forms • Contains non-apparent information • Created and maintained in complex systems Places where...	2009	Other Secondary Source	—	5 F.3d
—	445. CF001 American Law Institute Continuing Legal Education 1265, E-DISCOVERY IN THE WORKPLACE: EMPLOYEE PERSPECTIVE Workplace data: law and litigation / editor-in-chief, Robert Sprague, Department of Management and Marketing, University of Wyoming College of Business, Laramie, WY. pages cm 1....	2023	Other Secondary Source	—	—
—	446. EUROPEAN PRIVACY LAWS, ELECTRONICALLY STORED INFORMATION, AND OTHER KEY ISSUES IN THE DISCOVERY PROCESS AFFECTING INTERNATIONAL COMPANIES Discovery in any jurisdiction is typically governed by the rules of the forum where the lawsuit is pending. Consequently, when representing clients whose businesses are...	2012	Other Secondary Source	—	9 F.3d
—	447. PATENT SUBJECT MATTER ELIGIBILITY, TRADE SECRET CASE STRATEGIES, AND ESI ISSUES IN IP LITIGATION I will discuss three current hot topics in intellectual property (IP) litigation that will touch almost every IP litigator at some point. The first is patent subject matter...	2012	Other Secondary Source	—	9 F.3d
—	448. P 31,924 DESIGN BASICS, LLC, PLAINTIFF V. MITCH HARRIS BUILDING CO., INC., BLANK-HAM DEVELOPMENT, LLC, MINDEN INVESTMENTS, LLC, AND MITCHELL L. HARRIS, DEFENDANTS. Substantial Similarity — Architectural Works — Common Elements An architectural firm was permitted to go to trial on its claim that a Michigan homebuilder stole its designs for...	2021	Other Secondary Source	—	9 F.3d
—	449. 26 NO 4 Corporate Counsel's Quarterly ART 5, Records Destruction Case Law Update	2025	Other Secondary Source	—	9 F.3d
—	450. CBCA, 14-1 BCA P 35,806 BRASFIELD & GORRIE, LLC V. DEPARTMENT OF VETERANS AFFAIRS Contract Appeals Decisions Disputes, Procedure — Discovery — Sanctions A motion for sanctions was granted in part because the government egregiously abused the discovery process. The contractor...	2014	Other Secondary Source	—	—
—	451. S 11.03 THE RISKS OF UNCONTROLLED INFORMATION Corporate Legal Compliance Handbook Last Updated: 12/2025 Apart from transactional costs, there are significant risks inherent in uncontrolled information flows. An ineffective records and information management...	2025	Other Secondary Source	—	11 12 F.3d

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—	452. FOLLOWING THE TRAIL OF LOST OR DESTROYED ESI WITH FORENSIC IMAGING DRI For the Defense What do we do when the trail goes cold or comes to a dead end? When there is potentially crucial evidence on a computer or device once controlled by the opposing party, an...	2024	Other Secondary Source	—	9 11 12 F.3d
—	453. DID YOU KNOW... Federal Discovery News The duty to preserve evidence is triggered when a "party has notice that the evidence is relevant to litigation or ... should have known that the evidence may be relevant to...	2009	Other Secondary Source	—	9 F.3d
—	454. Complex and Multidistrict Cases—Applicable Rules A transferee judge presiding over multidistrict litigation is bound to follow the procedures established in the rules of civil procedure as much as in any other case. The judge...	2020	Other Secondary Source	—	4 F.3d
—	455. BL Florida Bar Continuing Legal Education Materials 24-1, ELECTRONIC DISCOVERY Florida Bar Continuing Legal Education Materials Computers generate vast amounts of electronic records that may become evidence in litigation. Discovery of such information, recognized as electronic discovery, has emerged as an...	2014	Other Secondary Source	—	12 F.3d
—	456. GRAND JURY Grand Jury Procedures. The Fifth Amendment provides that "[n]o person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of...	2020	Other Secondary Source	—	7 F.3d
—	457. GRAND JURY Grand Jury Procedures. The Fifth Amendment provides that "[n]o person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of...	2019	Other Secondary Source	—	7 F.3d
—	458. II. PRELIMINARY PROCEEDINGS The government has broad discretion to initiate and conduct criminal prosecutions because of the separation of powers doctrine and because prosecutorial decisions are...	2018	Other Secondary Source	—	7 F.3d
—	459. GRAND JURY Grand Jury Procedures. The Fifth Amendment provides that "[n]o person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of...	2017	Other Secondary Source	—	7 F.3d
—	460. P 803,653 THE MEDICAL CENTER AT ELIZABETH PLACE LLC V. ATRIUM HEALTH SYSTEM Health Care Compliance Reporter The Medical Center at Elizabeth Place LLC v. Atrium Health System U.S. Court of Appeals, Sixth Circuit, No. 17-3863, 922 F.3d 713, April 25, 2019. The Medical Center at Elizabeth...	2019	Other Secondary Source	—	8 F.3d

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—	461. P 801,236 UNITED STATES V. CARELL Health Care Compliance Reporter Fraud and abuse — Civil actions under the False Claims Act — Discovery disputes In a False Claims Act action against a home health agency (HHA) and related parties, the...	2011	Other Secondary Source	—	9 10 12 F.3d
—	462. P 800,784 THOMPSON V. QUORUM HEALTH RESOURCES, LLC Health Care Compliance Reporter Employment termination — False Claims Act — Pretext for termination of protected employee A question for trial exists on whether a health care management company's termination of...	2009	Other Secondary Source	—	9 F.3d
—	463. MDPS MD. Inst. for Contin. Prof. Educ. of Lawyers 113, DISCOVERY OF ELECTRONICALLY STORED INFORMATION MD. Inst. for Contin. Prof. Educ. of Lawyers AUTHOR NOTE: We offer our gratitude to Honorable J. Mark Coulson, Magistrate Judge, U.S. District Court for the District of Maryland, for his contribution to this chapter. Omnibus...	2021	Other Secondary Source	—	—
—	464. IPPRAC Massachusetts Continuing Legal Education Materials 4-1, TRADE SECRET LAW Massachusetts Continuing Legal Education Materials Trade secrets have taken on increasing importance in recent years as the world has shifted to an information economy increasingly reliant on technology, software, and services....	2020	Other Secondary Source	—	12 F.3d
—	465. TSL Massachusetts Continuing Legal Education Materials 3-1, LITIGATING THE TRADE SECRETS CASE Massachusetts Continuing Legal Education Materials Many issues must be evaluated when deciding whether—and, if so, how— to enforce or defend against trade secrets rights. That analysis should not be undertaken in a vacuum. For...	2019	Other Secondary Source	—	12 F.3d
—	466. ELECTRONIC DISCOVERY: TRENDS AND DEVELOPMENTS UNDER THE FEDERAL RULES OF CIVIL PROCEDURE AND BEYOND (POWERPOINT) • United States Magistrate Judge, District of New Jersey, 1986-2007 • Senior Counsel, Dentons US LLP • Lead Author, Managing Discovery of Electronic Information, Third Edition...	2020	Other Secondary Source	—	—
—	467. P 234,632 SAFELITE GROUP, INC., PLAINTIFF, VS. NATHANIEL LOCKRIDGE, ET AL., DEFENDANTS. Labor & Employment Law	2022	Other Secondary Source	—	9 F.3d

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—	468. P 234,632 SAFELITE GROUP, INC., PLAINTIFF, VS. NATHANIEL LOCKRIDGE, ET AL., DEFENDANTS. Labor & Employment Law SAFELITE GROUP, INC., Plaintiff, vs. NATHANIEL LOCKRIDGE, et al., Defendants. Case No. 2:21-cv-04558. U.S. District Court, S.D. Ohio, Eastern Division. December 22, 2022. Judge...	2022	Other Secondary Source	—	9 F.3d
—	469. P 234,632 SAFELITE GROUP, INC., PLAINTIFF, VS. NATHANIEL LOCKRIDGE, ET AL., DEFENDANTS. Labor & Employment Law SAFELITE GROUP, INC., Plaintiff, vs. NATHANIEL LOCKRIDGE, et al., Defendants. Case No. 2:21-cv-04558. U.S. District Court, S.D. Ohio, Eastern Division. December 22, 2022. Judge...	2022	Other Secondary Source	—	9 F.3d
—	470. P 234,171 ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, PLAINTIFF, V. ACADIA HEALTHCARE COMPANY, INC., ET AL., DEFENDANTS. Labor & Employment Law	2022	Other Secondary Source	—	9 10 F.3d
—	471. P 234,171 ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, PLAINTIFF, V. ACADIA HEALTHCARE COMPANY, INC., ET AL., DEFENDANTS. Labor & Employment Law ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, Individually and on Behalf of All Others Similarly Situated, Plaintiff, v. ACADIA HEALTHCARE COMPANY, INC., et al., Defendants. Case...	2022	Other Secondary Source	—	9 10 F.3d
—	472. P 234,171 ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, PLAINTIFF, V. ACADIA HEALTHCARE COMPANY, INC., ET AL., DEFENDANTS. Labor & Employment Law ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, Individually and on Behalf of All Others Similarly Situated, Plaintiff, v. ACADIA HEALTHCARE COMPANY, INC., et al., Defendants. Case...	2022	Other Secondary Source	—	9 10 F.3d
—	473. P 234,176 ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, PLAINTIFF, V. ACADIA HEALTHCARE COMPANY, INC., ET AL., DEFENDANTS. Labor & Employment Law	2022	Other Secondary Source	—	9 10 F.3d

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—	474. P 234,176 ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, PLAINTIFF, V. ACADIA HEALTHCARE COMPANY, INC., ET AL., DEFENDANTS. Labor & Employment Law ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, Individually and on Behalf of All Others Similarly Situated, Plaintiff, v. ACADIA HEALTHCARE COMPANY, INC., et al., Defendants. Case...	2022	Other Secondary Source	—	9 10 F.3d
—	475. P 234,176 ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, PLAINTIFF, V. ACADIA HEALTHCARE COMPANY, INC., ET AL., DEFENDANTS. Labor & Employment Law ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, Individually and on Behalf of All Others Similarly Situated, Plaintiff, v. ACADIA HEALTHCARE COMPANY, INC., et al., Defendants. Case...	2022	Other Secondary Source	—	9 10 F.3d
—	476. P 233,295 AMANDA MCELWEE, ET AL., PLAINTIFFS, V. BRYAN COWDERY, INC., ET AL., DEFENDANTS. Labor & Employment Law	2022	Other Secondary Source	—	8 F.3d
—	477. P 233,295 AMANDA MCELWEE, ET AL., PLAINTIFFS, V. BRYAN COWDERY, INC., ET AL., DEFENDANTS. Labor & Employment Law AMANDA MCELWEE, et al., Plaintiffs, v. BRYAN COWDERY, INC., et al., Defendants. Civil Action 2:21-cv-1265. U.S. District Court, S.D. Ohio, Eastern Division. April 1, 2022. Judge...	2022	Other Secondary Source	—	8 F.3d
—	478. P 233,295 AMANDA MCELWEE, ET AL., PLAINTIFFS, V. BRYAN COWDERY, INC., ET AL., DEFENDANTS. Labor & Employment Law AMANDA MCELWEE, et al., Plaintiffs, v. BRYAN COWDERY, INC., et al., Defendants. Civil Action 2:21-cv-1265. U.S. District Court, S.D. Ohio, Eastern Division. April 1, 2022. Judge...	2022	Other Secondary Source	—	8 F.3d
—	479. P 225,014 PAR PHARMACEUTICAL, INC., ET AL., PLAINTIFFS, V. QUVA PHARMA, INC., ET AL., DEFENDANTS. Labor & Employment Law	2019	Other Secondary Source	—	12 F.3d
—	480. P 184,205 JUN HAN, AN INDIVIDUAL, PLAINTIFF, V. FUTUREWEI TECHNOLOGIES, INC., ETC., ET AL., DEFENDANTS. Labor & Employment Law JUN HAN, an individual, Plaintiff, v. FUTUREWEI TECHNOLOGIES, INC., etc., et al., Defendants. Case No. 11—CV—831—JM (JMA).U.S. District Court, S.D. California. September 15, 2011...	2011	Other Secondary Source	—	—

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—	481. P 177,357 TERESEA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANT. Labor & Employment Law	2010	Other Secondary Source	—	9 F.3d
—	482. P 177,357 TERESEA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANT. Labor & Employment Law	2010	Other Secondary Source	—	9 F.3d
—	483. P 177,357 TERESEA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANT. Labor & Employment Law TERESESEA O'BRIEN, et al., Plaintiffs, v. ED DONNELLY ENTERPRISES, INC., et al., Defendant. Civil Action 2:04—cv—0085.United States District Court, S.D. Ohio, Eastern Division....	2010	Other Secondary Source	—	9 F.3d
—	484. P 177,357 TERESEA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANT. Labor & Employment Law TERESESEA O'BRIEN, et al., Plaintiffs, v. ED DONNELLY ENTERPRISES, INC., et al., Defendant. Civil Action 2:04—cv—0085.United States District Court, S.D. Ohio, Eastern Division....	2010	Other Secondary Source	—	9 F.3d
—	485. P 174,074 IN RE: THE METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE, PETITIONER, CLAUDE GRANT, ORALENE DAY, PRINCESS MARTINDALE, FALETHA B. REID, DARRYL MCKIBBENS, DARREL GANT, ANTONIO MCKISSACK, PA Labor & Employment Law IN RE: THE METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE, PETITIONER, CLAUDE GRANT, ORALENE DAY, PRINCESS MARTINDALE, FALETHA B. REID, DARRYL MCKIBBENS,...	2010	Other Secondary Source	—	2 3 4 F.3d
—	486. P 173,098 TERESA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANTS. Labor & Employment Law	2010	Other Secondary Source	—	9 F.3d
—	487. P 173,098 TERESA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANTS. Labor & Employment Law	2010	Other Secondary Source	—	9 F.3d
—	488. P 173,098 TERESA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANTS. Labor & Employment Law	2010	Other Secondary Source	—	9 F.3d

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—	489. P 173,098 TERESA O'BRIEN, ET AL., PLAINTIFFS, V. ED DONNELLY ENTERPRISES, INC., ET AL., DEFENDANTS. Labor & Employment Law TERESA O'BRIEN, et al., Plaintiffs, v. ED DONNELLY ENTERPRISES, INC., et al., Defendants. Civil Action 2:04—cv—85.United States District Court, S.D. Ohio, Eastern Division. April...	2010	Other Secondary Source	—	9 F.3d
—	490. P 165,812 DAVID MCDERMOTT, PLAINTIFF-APPELLANT, V. CONTINENTAL AIRLINES, INC., DEFENDANT-APPELLEE. Labor & Employment Law DAVID McDERMOTT, Plaintiff—Appellant, v. CONTINENTAL AIRLINES, INC., Defendant—Appellee. No. 08—3557.United States Court of Appeals, Sixth Circuit. July 30, 2009. [EDITOR'S NOTE:...	2009	Other Secondary Source	—	8 F.3d
—	491. P 303,791 UNITED STATES V. CARELL Medicare and Medicaid Guide	2011	Other Secondary Source	—	9 10 12 F.3d
—	492. P 303,174 THOMPSON V. QUORUM HEALTH RESOURCES, LLC Medicare and Medicaid Guide	2009	Other Secondary Source	—	9 F.3d
—	493. P 389,495 ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED, PLAINTIFF, V. ACADIA HEALTHCARE COMPANY, INC., ET AL., DEFENDANTS. Pension Plan Guide (CCH) ST. CLAIR COUNTY EMPLOYEES' RETIREMENT SYSTEM, Individually and on Behalf of All Others Similarly Situated, Plaintiff, v. ACADIA HEALTHCARE COMPANY, INC., et al., Defendants. Case...	2022	Other Secondary Source	—	9 10 F.3d
—	494. P 281,270 CHRISTY DOWNS, PLAINTIFF, V. VIRGINIA HEALTH SYSTEM, ET AL, DEFENDANT Pension Plan Guide (CCH) CHRISTY DOWNS, Plaintiff, v. VIRGINIA HEALTH SYSTEM, et al, Defendant Civil No. 5:13cv00083. U.S. District Court, W.D. Virginia. June 02, 2014. James G. Welsh, Magistrate Judge All...	2014	Other Secondary Source	—	12 F.3d
—	495. P 80,756 THE MEDICAL CENTER AT ELIZABETH PLACE, LLC, PLAINTIFF-APPELLANT V. ATRIUM HEALTH SYSTEM, ET AL., DEFENDANTS-APPELLEES. Trade Regulation Reporter Rule of Reason vs. Per Se Analysis — Joint Ventures — Health Care An acute-care hospital failed to meet the high standard required for asserting per se claims against a joint...	2019	Other Secondary Source	—	8 F.3d

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—	496. P 35,610 TERESA O'BRIEN ET AL; JESSICA DELLARUSSIANI ET AL, PLAINTIFFS-APPELLANTS V ED DONNELLY ENTERPRISES, INC AND ED DONNELLY, DEFENDANTS-APPELLEES. Wages & Hours Wage Suits — Class Actions — Attorney Fees In a suit that involves two related cases in which former employees of two McDonald's franchises alleged that their employer refused to...	2009	Other Secondary Source	—	9 F.3d
—	497. Electronic Documents: Record Management, E-Discovery and Trial s 7:21, § 7:21. Hard Drives Hard drives, like any other kind of evidence, will only be ordered to be produced if relevant. It has been recognized that there may be cases where an entire hard drive itself is...	2026	Other Secondary Source	—	—

Table of Authorities (27)

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Cited	 1. Ameriwood Industries, Inc. v. Liberman 2006 WL 3825291, E.D.Mo., 2006 Plaintiff alleges in its first amended complaint that defendants—plaintiff's former employees and their recently formed company and corporation—improperly used plaintiff's...	Case			459
Cited	 2. Balboa Threadworks, Inc. v. Stucky 2006 WL 763668, D.Kan., 2006 Plaintiffs bring this action pursuant to the Copyright Act, 17 U.S.C. §§ 101, et. seq. and the Lanham Act, 15 U.S.C. §§ 1051, et. seq., claiming that Defendants wrongfully copied...	Case		”	459+
Mentioned	3. Balfour Beatty Rail, Inc. v. Vaccarello 2007 WL 169628, M.D.Fla., 2007 THIS CAUSE is before the Court on Plaintiff's Motion to Compel (Doc. 33). Defendants filed a response in opposition to this motion on January 12, 2007 (Doc. 36). Accordingly, the...	Case			460
Cited	 4. Bill Call Ford, Inc. v. Ford Motor Co. 48 F.3d 201, 6th Cir.(Ohio), 1995 Former automobile dealership franchisee filed action against franchisor asserting various breach of contract and state law claims. The United States District Court for the...	Case		”	459
Mentioned	 5. Cenveo Corp. v. Slater 2007 WL 442387, E.D.Pa., 2007 Plaintiff alleges in its second amended complaint that its former employees improperly used plaintiff's computers, confidential information and trade secrets to divert business...	Case			459
Cited	 6. Church of Scientology of California v. U.S. 113 S.Ct. 447, U.S.Cal., 1992 APPEALS - Mootness. State court clerk's compliance with IRS summons did not render taxpayer's appeal moot.	Case		”	458
Mentioned	 7. Coleman v. American Red Cross 979 F.2d 1135, 6th Cir.(Mich.), 1992 Recipient of transfused blood who was infected with Human Immunodeficiency Virus (HIV) brought action against blood supplier, alleging that it negligently accepted blood from...	Case			458

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Cited	 8. Criss v. City of Kent 867 F.2d 259, 6th Cir.(Ohio), 1988 Plaintiff arrested for offense of receiving stolen property brought civil rights action in state court, which was subsequently removed to federal district court, against city and...	Case			458
Mentioned	9. Diepenhorst v. City of Battle Creek 2006 WL 1851243, W.D.Mich., 2006 This is an action for sexual harassment brought by a former employee of the City of Battle Creek Police Department. The gravamen of plaintiff's complaint is that a supervisor, Sgt....	Case			460
Cited	10. Dow Chemical Co. v. Taylor 519 F.2d 352, 6th Cir.(Mich.), 1975 Chamber of commerce and employer instituted action seeking declaratory judgment and injunction against enforcement of Michigan Employment Security Act to extent Act was construed...	Case		”	458
Mentioned	 11. E.E.O.C. v. K-Mart Corp. 694 F.2d 1055, 6th Cir.(Mich.), 1982 Equal Employment Opportunity Commission filed motion to clarify order affirming decision of the magistrate allowing target of the Commission's investigation a limited opportunity...	Case			457
Mentioned	 12. Frees, Inc. v. McMillian 2007 WL 184889, W.D.La., 2007 Before the Court is a Motion to Compel [Doc. # 17] and a Cross Motion for Protective Order [Doc. # 53] filed by plaintiff, Frees, Inc. ("Frees") and a Motion to Quash [Doc. # 21]...	Case			459
Cited	 13. Fujitsu Ltd. v. Federal Exp. Corp. 247 F.3d 423, 2nd Cir.(N.Y.), 2001 TRANSPORTATION - Carriers. Air carrier's shipment of rejected merchandise was not "return of goods" under Warsaw Convention.	Case		”	459
Cited	 14. In re Bendectin Products Liability Litigation 749 F.2d 300, 6th Cir.(Ohio), 1984 Products liability action was brought to recover for injuries sustained by persons exposed in utero to prescription drug. The United States District Court for the Southern...	Case			457
Mentioned	 15. In re Chimenti 79 F.3d 534, 6th Cir.(Mich.), 1996 Travelers filed in personam maritime claims in state court. Travel agencies removed. The United States District Court for the Eastern District of Michigan, Gerald E. Rosen, J.,...	Case			457

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Cited	 16. In re Ford Motor Co. 345 F.3d 1315, 11th Cir.(Ala.), 2003 TRANSPORTATION - Discovery. Plaintiff was not entitled to direct, unlimited access to automobile company's computer databases.	Case			457
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Discussed	 18. In re Perrigo Co. 128 F.3d 430, 6th Cir., 1997 Shareholder derivative action was brought against present and former directors, officers, and controlling shareholders and others, based on their conduct during public offering. ...	Case			457+
Cited	19. In re Wilkinson 137 F.3d 911, 6th Cir.(Ohio), 1998 Ohio Department of Rehabilitation and Correction and individual prison officials petitioned for writ of mandamus directing district court to vacate order directing prison officials...	Case			461
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Cited	  21. Mallard v. U.S. Dist. Court for Southern Dist. of Iowa 109 S.Ct. 1814, U.S.Iowa, 1989 After District Court required attorney to represent indigent inmates in their suit in court against prison officials under § 1983, attorney sought to withdraw. After motion to...	Case			457
Cited	22. McCurdy Group v. American Biomedical Group, Inc. 9 Fed.Appx. 822, 10th Cir.(Okla.), 2001 COMMERCIAL LAW - Contracts. Presence of express contract did not preclude quantum meruit claim by business consulting company.	Case			460
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Mentioned	 24. Taylor v. U.S. Parole Com'n 734 F.2d 1152, 6th Cir.(Ky.), 1984 Parole Commission, upon finding that petitioner violated condition of his parole by engaging in new criminal conduct, revoked parole. Reincarcerated parolee then brought writ of...	Case			459
Cited	 25. U.S. ex rel. Pogue v. Diabetes Treatment Centers of America, Inc. 444 F.3d 462, 6th Cir.(Tenn.), 2006 LITIGATION - Appeals. Order compelling a nonparty deponent to return inadvertently disclosed documents was not appealable.	Case		”	457+
Cited	26. U.S. v. James T. Barnes and Co. 758 F.2d 146, 6th Cir.(Mich.), 1985 On motion to dismiss appeal from the United States District Court for the Eastern District of Michigan, Julian Abele Cook, Jr., J., the Court of Appeals held that it lacked...	Case		”	458
Mentioned	 27. Zubulake v. UBS Warburg LLC 220 F.R.D. 212, S.D.N.Y., 2003 LABOR AND EMPLOYMENT - Discrimination. In suit for gender discrimination, employer had duty to preserve backup tapes containing e-mails.	Case			459